

BETTING & GAMBLING

A NATIONAL EVIL

EDITED BY

B. SEEBOHM ROWNTREE

AUTHOR OF 'POVERTY'

London

MACMILLAN AND CO., LIMITED

NEW YORK: THE MACMILLAN COMPANY

1905

All rights reserved

BETTING & GAMBLING

A NATIONAL EVIL

EDITED BY

B. SEEBOHM ROWNTREE

AUTHOR OF 'POVERTY'

London

MACMILLAN AND CO., LIMITED

NEW YORK: THE MACMILLAN COMPANY

1905

All rights reserved

The Project Gutenberg eBook of Betting & Gambling: A National Evil

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Betting & Gambling: A National Evil

Editor: B. Seebohm Rowntree

Release date: May 1, 2019 [eBook #59402]

Language: English

Other information and formats: www.gutenberg.org/ebooks/59402

Credits: E-text prepared by Turgut Dincer and the Online Distributed Proofreading Team (<http://www.pgdp.net>) from page images generously made available by Internet Archive (<https://archive.org>)

*** START OF THE PROJECT GUTENBERG EBOOK BETTING &
GAMBLING: A NATIONAL EVIL ***

E-text prepared by Turgut Dincer
and the Online Distributed Proofreading Team
(<http://www.pgdp.net>)
from page images generously made available by
Internet Archive
(<https://archive.org>)

Note: Images of the original pages are available through Internet Archive.
See <https://archive.org/details/bettinggamblingn00rown>

BETTING AND GAMBLING



BETTING & GAMBLING
A NATIONAL EVIL

EDITED BY
B. SEEBOHM ROWNTREE
AUTHOR OF 'POVERTY'

London
MACMILLAN AND CO., LIMITED
NEW YORK: THE MACMILLAN COMPANY
1905

All rights reserved

TO THE
MEMBERS OF THE COMMITTEE
OF
THE YORK ANTI-GAMBLING LEAGUE
AT WHOSE SUGGESTION
THIS WORK WAS UNDERTAKEN

PREFACE

Until comparatively recent years, betting and gambling were largely confined in this country to the wealthy few. Now, however, the practice has spread so widely among all classes of the community that those who know the facts name gambling and drinking as national evils of almost equal magnitude.

There is no doubt that the social conscience is as yet only very partially awakened to the widespread character of the gambling evil and to its grievous consequences. Like a cancer, the evil thing has spread its poisonous roots throughout the length and breadth of the land, carrying with them, where they strike, misery, poverty, weakened character, and crime.

Nor is the practice any longer spontaneous. It is encouraged and organised by an army of social parasites in the shape of bookmakers and their touts; these men or women (for the “profession” is not confined to men) pursue their calling in every town of Britain—indeed, there are probably but few villages or large workshops which are free from them. In many places, indeed, they regularly call for “orders,” the itinerant packman or agent combining this with his recognised business. Even little children have been known to bet their slate pencils in the playgrounds of our State schools, while women and girls in all ranks of society no longer regard the practice as unwomanly.

And yet, in spite of the acknowledged magnitude of the evil, there are, with a very few notable exceptions, no organised efforts to check it. The apparent apathy of the nation to the extraordinary spread of this mischief in its midst is in sharp contrast to the great efforts organised to combat intemperance. For this there are probably three main causes:—

1. Ignorance on the part of the general public as to the rapid growth and the mischief of the practice.
2. Lack of clear thought regarding the ethics of the question.

3. The difficulty of suggesting practical steps to counteract so insidious an evil.

The purpose of this book is to supply, in concise and readily accessible form, information which may meet these needs. After a preliminary chapter devoted to the ethics of Betting and Gambling, facts are stated concerning the extent of the evil and its effects on national life. The present position of legislation affecting betting is then dealt with, and suggestions are made as to needed improvements in the law. A concluding chapter considers remedial measures outside the sphere of legislation. In the Appendix additional information is given, which, it is hoped, may be useful, more particularly to speakers and writers, together with a Bibliography of books and papers upon the subject. All the articles are by writers who have given special attention to the topics with which they deal. Three of them, viz. those by John A. Hobson, B. Seebohm Rowntree, and "The Deluded Sportsman," have appeared before. Two, though originally written for this book, have appeared in periodicals which have a limited circulation in this country, and the third has appeared in pamphlet form.

B. SEEBOHM ROWNTREE.

YORK, *April 1905.*

CONTENTS

	PAGE
THE ETHICS OF GAMBLING JOHN A. HOBSON, M.A.	<u>1</u>
THE EXTENT OF GAMBLING JOHN HAWKE, Hon. Sec. National Anti-Gambling League.	<u>21</u>
STOCK EXCHANGE GAMBLING A. J. WILSON, Editor <i>Investor's Review</i> .	<u>45</u>
GAMBLING AMONG WOMEN J. M. HOGGE, M.A.	<u>69</u>
CRIME AND GAMBLING CANON HORSLEY.	<u>84</u>
THE DELUDED SPORTSMAN A BOOKMAKER.	<u>92</u>
GAMBLING AND CITIZENSHIP J. RAMSAY MACDONALD, Sec. Labour Representation Committee.	<u>117</u>
EXISTING LEGISLATION JOHN HAWKE.	<u>135</u>
THE REPRESSION OF GAMBLING B. SEEBOHM ROWNTREE.	<u>170</u>
APPENDICES—	
1. LORDS' RECOMMENDATIONS, June 1902	<u>191</u>
2. LORD DAVEY'S STREET BETTING BILL, 1903	<u>199</u>
3. SUMMARY OF LORDS' COMMISSION	<u>203</u>
4. OPINIONS OF EMINENT MEN ON BETTING	<u>213</u>
5. A NOTE ON PEDESTRIANISM	<u>219</u>
6. TIPSTERS AND TIPSTERS' ADVERTISEMENTS	<u>222</u>
7. BETTING STATISTICS	<u>232</u>
8. BIBLIOGRAPHY	<u>236</u>
INDEX	<u>245</u>

THE ETHICS OF GAMBLING

By JOHN A. HOBSON

Gambling is the determination of the ownership of property by appeal to chance. By chance is here implied the resultant of a play of natural forces that cannot be controlled or calculated by those who appeal to it. In tossing "heads or tails" for the possession of a coin, neither party has any knowledge or control of the adjustment of forces which determines upon which side the coin will fall, or if by practice the tosser acquires such knowledge or control, he cannot possibly predict or control the "call" of his opponent, which thus keeps the determination of the issue within the realm of "Chance."

Gambling may be described as "pure" or "mixed" according as the determining power of chance is or is not blended with other powers. Few so-called games of chance are entirely destitute of skill, even if the skill consists entirely of speed or accuracy in calculating "chances." Where such skill plays a large and a continuous part, the game ceases to be classed as "gambling," though chance may exercise a quite considerable influence in determining the result. In betting on horse-races and in commercial gambling superior knowledge of some of the determinant causes may so qualify the chance that, from the standpoint of those who have such knowledge, the operation ceases to be gambling. If such knowledge is equally attainable by all those who "speculate," the game becomes one of skill; if it consists in genuine "tips" or private knowledge, the operation is fraudulent. This last fact is generally recognised: all gamblers denounce betting on "certainties." Again, both on the turf and the stock exchange chance may be reduced or even eliminated by an actual manipulation of the forces so as to yield a result favourable to the interests of some of those who pose as gamblers. But when the result supposed to rest on chance is known or controlled by any sort of skill, fraud, or force, the case is not one of pure gambling; for though it is a matter of significance that gambling commonly keeps company with cheating, the latter is not gambling.

Where the skilful draftsmanship of a lottery prospectus allures the dull or sanguine reader into staking his money, by deceiving him as to the size of his chance of winning, such trickery, though designed to appeal to the gambling instinct of investors, is not itself an act or a part of gambling: it is simply fraud, though not necessarily fraud in a legal sense.

On the other hand, when the terms of a lottery are clearly understood by those who stake their money, the mere fact that the managers arrange the speculation so as to procure for themselves a known and certain gain, offering prizes admittedly of less value than the aggregate of the stakes, need not debar us from regarding the proceeding as “pure gambling” so far as the players are concerned. So with the roulette-table at Monte Carlo: the players are aware that the chances are favourable to the bank over a prolonged piece of play, they even know the precise amount of this bias. But this knowledge does not prevent their play from ranking as pure gambling, for no skill or knowledge or trickery on their part can enter in as a determinant of the result.

Thus an honestly managed lottery, or roulette, may fairly serve as a type of pure gambling which will serve to enable us to test the psychology and ethics of the proceeding.

Before approaching the distinctively moral aspects of gambling, we must clearly realise its intellectual reactions. The rational basis of the acquisition of property is the “natural” relation of effort to satisfaction. A man who converts an unshaped piece of matter into an object of human utility may be said to have a “natural” property in it. And this in a double sense. The expenditure of human energy given out in this piece of labour requires recuperation: this recuperation is achieved by “consuming” that which he has made, or its equivalent obtained by processes of equal exchange. The effort of production requires the satisfaction of consumption. Thus it is commonly recognised that labour, or human effort, is the natural basis of the right of property. Or, regarding the same relation on its psychical side with reference to motive, we perceive that a property in that which he has made must be accorded to the maker wherever any painful effort of production is required, in order to induce his will to sanction the effort. In a society where social forces co-operate with individual effort a *full* property in that which a man is said to make may not be essential, but that is because no man working in society and for a market can truly be said to make the

whole of anything, much less its “value” when it is made. But everywhere some proportion of property must be guaranteed to the individual who is required to exert himself in productive labour. Any form of theft, fraud, extortion, “sweating,” on the part of individuals or governments, is liable to interfere with this physical and psychical adjustment between production and consumption, output of effort and intake of satisfaction, which forms the natural or rational basis of individual property. Just in proportion as this rational character is firmly and clearly stamped upon the processes of the acquisition of property do we possess security of social order and progress. When property comes to any one in any other way, its transfer has an “unreasonable” character. So a society where force or fraud habitually or frequently displaces this sane process of acquiring property, where some persons eat bread *sudore vultus alieni* and others consequently sweat without eating, is not only economically enfeebled, but is irrationally constituted. And this unreason in the social organism corrupts and derationalises the individual members. But even an unjustly ordered society, where the domination of one class is accompanied by the subjection of another, where organised parasitism or plunder prevails, differs from “anarchy” as regards its reactions upon the intelligence of man. A bad system, the worst of systems, is less derationalising than no system. So the habitual exploitation of the poor by the rich, the “have-nots” by the “haves,” though substantially irrational in the modes of acquisition of property involved, is less demoralising than the abandonment of the determination of property to pure chance.

Gambling involves the denial of all system in the apportionment of property: it plunges the mind in a world of anarchy, where things come upon one and pass from one miraculously. It does not so manifestly sin against the canons of justice as do other bad modes of transfer,—theft, fraud, sweating,—for every one is said to have an equal chance; but it inflicts a graver damage on the intellect. Based as it is on an organised rejection of all reason as a factor, it removes its devotees into a positive atmosphere of miracles, and generates an emotional excitement that inhibits those checks which reason more or less contrives to place upon emotional extravagances. The essence of gambling consists in an abandonment of reason, an inhibition of the factors of human control. In the history of mankind, civilisation of the individual has chiefly consisted in and been measured by this increased capacity of rational control—a slow, gradual,

imperfect taming of the animal instincts which made for emotional anarchy of conduct.

This assertion of rational control, implying some sort of plan in life, restraints on conduct, and trust in orderly processes of phenomena, has doubtless been most imperfectly established even in the picked members of the more highly civilised races. But such as it is, it represents order in society and progress in humanity.

The practice of gambling is thus exhibited as a deliberate reversion to those passions and that mental attitude which characterise the savage or pre-human man in his conduct and his outlook. There lurk in “civilised” man the remnants of survivals of countless ages of pre-human and of savage heredity, anarchic passions associated with barbarous superstitions. The order of civilisation claims to have killed or atrophied the grosser forms of these atavistic tendencies, but many of them are not dead; social control and education of individual habits keeps them in subordination or acquiescence, but on temptation they are ready to awake. Just as war and certain forms of sport can call from the caverns of heredity brutish traits whose presence was utterly unknown to their possessors, so the interest of gambling discovers in many natures a similarly fatal inheritance.

Maeterlinck has recently sought to find a quasi-rational basis for “luck” in the occasional revival of certain primitive instincts of self-protection which, seldom needed in the higher progress of humanity, have died down and rarely assert themselves. Whether such latent powers of extra-rational warning exist or ever did exist, we need not here discuss; it is, however, quite evident that the widespread belief in “luck” among gamblers is a reversion to a form of unreason which carries no sound instinct of direction with it. It is fair to adduce this belief in luck as an important testimony to the derationalising influences of gambling.

It does not seem true that the gambling habit pervades only or chiefly the least intelligent types of men. Among habitual gamblers on the stock exchange, on the turf and in the card-room, and wherever skill tempers chance, high degrees of cunning, memory, and judgment are often found, while certain qualities of determination and of self-command are conducive to success. But while many men possessing these qualities are drawn to games or business pursuits where a strong element of chance is present,

there is no real affinity between any of these personal powers and pure gambling. It is not, for instance, true that skill, judgment, or self-command is of the least assistance at the roulette-table or at rouge-et-noir. The fact that these qualities are so commonly regarded as serviceable to the player may be cited as a conspicuous evidence of the derationalising influence of gambling even in the case of those who do not gamble. For in reality they are only useful in proportion as the game is not pure gambling.

The curious cunning expended in devising “systems” and the attention to multifarious incidents of “luck” indicate a genuine inhibition of the reasoning faculty. Both modes of manipulating chance are vitiated by the same two fallacies. Belief in the efficacy of a “system” implies that a series of consecutive coups is a causally connected chain, whereas, in fact, the result of each coup is entirely unaffected by the coup which preceded or follows it. The “system” gambler also believes that he is able to forecast to some extent the drift or current of chances which makes this causal connection. Similarly with the cruder superstitions, such as the notion that a virgin player will win his opening bout of play, or that turning one’s chair or changing one’s seat will break a spell of bad luck: they also imply that a sequence of separately determined events is in some unintelligible way a mutually determined group, and that a tendency running through the series can be altered by a casual or purposed action which is interjected from outside. The amazing hold which these superstitious notions obtain over persons of education and intelligence is a striking testimony to the intellectual havoc wrought by gambling. How insidious is the illusion about runs of luck may be shown by the ease with which the minds of most persons, who are averse to gambling and would deride the notion of a “system,” fall into the snare when it is set in the following form: Enter a room where rouge-et-noir is going on and learn that red has turned up twenty times in succession, when the next card is in the act of being drawn there is an almost irresistible tendency to expect black, from a first impulsive judgment which has false reference to the general improbability of red turning up twenty-one times running. Most persons, including trained scientists to whom I have put the case, requiring an immediate reply, have admitted that they would be disposed to bet against red.

A practice so corrupting to the intelligence not only of the habitué but even of the casual spectator stands condemned as a formidable enemy of

education and of intellectual order.

In thus exposing the irrationality of gambling, both as a mode of transferring property and as a mental occupation, I have implicitly exposed its immorality also. Its repudiation of equitable order involves at once an intellectual and a moral descent to a lower plane of thought and feeling. Perhaps no other human interest, not based on purely physical craving, arouses so absorbing a passion: alcoholism itself scarcely asserts a stronger dominion over its devotees.

So widespread has been the zest for gambling among whole races as widely different in character and environment as the British, the Zulu, the Chinese, that we are almost driven to seek some physiological root for the passion. To give an added weight of interest to chance by attaching to it a transfer of property seems to imply a love of hazard as a permanent feature in humanity. Though the transfer of property by gambling not merely feeds the passion but imports grave moral injuries of its own, it cannot be said to originate gambling or to be essential to the play of the interest in chance or hazard. The folly and the social injury of gambling grow with the proportion of the stakes; but high stakes, while they concentrate and dramatise the play, do not create the interest.

Educationalists and other reformers who would exorcise the gambling habit must look deeper for its origin and early sustenance. The fevered excitement of the gambler is part of an exaggerated reaction against certain excesses of orderly routine imposed upon the life in which he lives. The dull, prolonged monotony of uninteresting drudgery which constitutes the normal workaday life of large masses of people drives them to sensational reactions which are crude and violent. The factory employee, the shop assistant, the office clerk, the most typical members of modern industrial society, find an oppressive burden of uninteresting order, of mechanism, in their working day. Their work affords no considerable scope for spontaneity, self-expression, and the interest, achievement, and surprise which are ordinary human qualities. It is easily admitted that an absolutely ordered (however well-ordered) human life would be vacant of interest and intolerable: in other words, it is a prime condition of humanity that the unexpected in the form of happening and achievement should be adequately represented in every life. Art in its widest sense, as interested effort of production, and play, as interested but unproductive effort, are essential. But

where either the physical or mental exhaustion of industry, or other external conditions, prevent the due cultivation or the expression of wholesome art or play instincts, baser attractions usurp their place. It is impossible, and it would be undesirable, to deny to man the satisfaction of his instinctive zest in the unexpected, the hazardous, the disorderly: he needs not only achievement but accident to sustain his interest in life. The latter factor may yield largely to the former in highly civilised man, in a society where varied modes of art offer varied stimuli to self-expression and achievement: the artist who is a true artist is least likely to be a gambler. But a margin of disorder, or hazard and unreason, will always remain a factor in the interest of life: hence an element of unordered play as distinct from art will always survive.

Even a moral order imposed in the public interest, if too uniform and rigorous, will arouse, not merely in bad but in good natures, reactions towards lawlessness. There is much truth in what Charles Lamb wrote of his interest in the Seventeenth Century Comedy:—

I confess for myself that (with no great delinquencies to answer for) I am glad for a season to take an airing beyond the diocese of the strict conscience—not to live always in the precincts of the law courts—but now and then, for a dream-while or so, to imagine a world with no meddling restrictions—to get into recesses where the hunter cannot follow me—I am back to my cage and my restraint the fresher and more healthy for it.

So it is with all sorts and conditions of men: the incalculable, the lawless remains an ineradicable factor in life.

Where there is little or no provision of or stimulus to art, the crudest and most sensational play tends to absorb the entire margin of energy left after work is done.

In such a state of society every field of activity capable of generating such elements of hazard is pressed into the service of gambling: sports and business occupations become popular in proportion as they can by their structure be made to minister to the craving for hazard; every sort of

competition where a sufficient element of the incalculable exists is pervaded by gambling.

If the monotony of toil drives large numbers of workers to seek violent sensational relief in gambling, the ennui of idleness prompts the leisured classes to the same abuse. A totally or partially parasitic life (where little or no socially directed labour is imposed), though leaving a large margin of free energy, makes more for dilettantism than for art, and depriving play of its healthy interest as a relief from work induces a “boredom” which fosters gambling among other sensational extravagances. Moreover in the rich, leisured class the disproportion between earning and spending loosens the just sense of property more than in any other class, so that large miraculous transfers of property by betting seem less discrepant with the ordinary conditions of their life.

This line of diagnosis makes it quite apparent what are the real supports of gambling, and how the vice inheres in the wider “social problem,” only to be cured or abated in proportion as sounder general conditions of social order are obtained. When we regard the actual life of an ordinary worker in a factory town we can easily understand the attraction of “betting.” It is hard to refuse sympathy to the factory “hand” or clerk who occasionally puts his “shilling” on a horse, going through his weary day’s work with the zest of expectancy and hope afforded by his speculation. It gives him a topic of conversation in the intervals of his work, and is for him a sort of “politics” in leisure hours: into his dull life it introduces an element of romance.

It is, however, impossible to discuss the practical ethics of modern gambling without regarding that factor of pure gambling, which we have analysed, in its actual place as part of a vicious amalgam in a dissipated life.

We have chiefly considered the derationalising influence of the anarchic element of chance which is the nucleus of the process. But, regarded as a mode of transfer of property, gambling involves a union of several anti-social desires. The desire to take unearned gains is, as we have seen, itself immoral, for such gains of necessity imply an injury to some other known or unknown persons, nor in the case of gambling is the damage thus done to the character of a winner mitigated by the knowledge that those from whom he wins have sought similar unearned gains at his expense. In many natures

the possibility of such facile gain quickens the latent instinct of avarice, one of the most insidiously disintegrating influences in human society, inviting as it does complete self-absorption and an entire loss of sympathy with the material interests of one's fellows. The brooding infatuation of the habitual gambler chills human sympathy more certainly than any other practice, inducing not indeed enmity or active animosity so much as a callousness which views the misfortunes of others with placid indifference. It is just this absorption upon selfish ends in reference to incidents fraught with emotional strain that is prone at once to break down the whole fabric of the moral character and to dethrone the reason. For as man is only moral and rational as a being who stands in orderly relation to other similar beings in human society, so a practice based on a virtual denial of this social order is the arch-enemy of human personality: instead of a man we have a self-absorbed emotionalist. "In the making of a bet—a man resolves to repress the use of his reason, his will, his conscience, his affections; only one part of his nature is allowed free play, and that is his emotions."^[1]

The passion of gambling, once settled in a man, seems to take physical root in him and to be almost as difficult to expel as drink, opium, or any other acquired physical vice. In extreme cases, it is often held, gambling tends to absorb all other interests, even swallowing up its associate vices. This, however, is not the normal case. Gambling commonly consorts with drink: gambling-houses are commonly places for the sale of alcoholic liquors, and wherever the law permits, or can be evaded, drink-shops are betting haunts. Professional gamblers are doubtless sober when they ply their craft, for skill and cunning are requisite in most kinds of "mixed" gambling: a broker "cornering" the market, like a bookmaker handling a sudden shift in the odds, or a card-sharper with suspicious dupes, needs to have his wits about him. But it is not as gamblers but as tricksters that these men need to be sober, and as they require sobriety in themselves they desire the opposite in their dupes. Hence, the business of gambling is often done in an atmosphere of alcohol. This is not, indeed, invariably the case. The temperament of some people is so sanguine and so prone to reckless play that no physical stimulant seems necessary. But in Northern European peoples drink is usually necessary to induce that instability of judgment and disregard of the future which are conditions of gambling.

The statistics of crime prove beyond all cavil that gambling is the king's highway to fraud and theft. This is not merely because it loosens general morality and in particular saps the rationale of property, but because cheating is inseparably associated with most actual modes of gambling. This does not imply that most persons who bet are actually cheats or thieves; but persons who continue to be cheated or robbed, half-conscious of the nature of the operations, are fitting themselves for the other and more profitable part if they are thrown in the way of acquiring a sufficient quantity of evil skill or opportunity. The "honour" of a confirmed gambler, even in high life, is known to be a very hollow commodity, and where there is less to lose in social esteem even this slender substitute for virtue is absent. What percentage of "men who bet" would refuse to utilise a secret tip of a "scratched" favourite or the contents of an illegally disclosed sporting telegram? The barrier between fraud and smartness does not exist for most of them.

Serious investigation of the gambling process discloses the fact that pure gambling does not afford any economic basis of livelihood, save in a few cases where, as at the roulette-table or in a lottery, those who gamble know and willingly accept the chances against them. And even in the case of the roulette-table the profits to the bank come largely from the advantage which a large fund possesses in play against a smaller fund: in the fluctuations of the game the smaller fund which plays against the bank is more likely at some point in the game to be absorbed so as to disable the player from continuing his play. If a man with £1000 were to play "pitch and toss" for sovereigns with a number of men, each of whom carried £10, he must, if they played long, win all their money. So, even where skill and fraud are absent, economic force is a large factor in success.

Since professional gambling in a stockbroker, a croupier, a bookmaker, or any other species, involves some use of superior knowledge, trickery, or force, which in its effect on the "chances" amounts to "loading" the dice, the non-professional gambler necessarily finds himself a loser on any long series of events. These losses are found in fact to be a fruitful cause of crime, especially among men employed in businesses where sums of money belonging to the firm are passing through their hands. It is not difficult for a man who constantly has in his possession considerable funds which he has collected for his employer to persuade himself that a temporary use of these

funds, which otherwise lie idle, to help him over a brief emergency, is not an act of real dishonesty. He is commonly right in his plea that he had no direct intention to defraud his employer. He expected to be able to replace the sum before its withdrawal was discovered. But since not only legally but morally a person must be presumed to “intend” that which is a natural or reasonable result of his action, an indirect intention to defraud must be ascribed to him. He is aware that he is acting wrongly, as well as illegally, in using the firm’s money for any private purpose of his own. But in understanding and assessing the quality of guilt involved in such action, two circumstances extenuating his act, though not the gambling habit which has induced it, must be taken into account. A poor man who frequently bets must sooner or later be cleared out and unable, out of his own resources, to meet his obligations. He is induced to yield to the temptation the more readily for two reasons. First, there is a genuine probability (not so large, however, as he thinks) that he can replace the money before any “harm is done.” So long as he does replace it, no harm appears to him to have been done: the firm has lost nothing by his action. This narrower circumstance of extenuation is supported by a broader one. The whole theory of modern commercial enterprise involves using other people’s money, getting the advantage of this use for one’s self and paying to the owner as little as one can. A bank or a finance company is entrusted with sums of money belonging to outsiders on condition that when required, or upon agreed notice, they shall be repaid. Any intelligent clerk in such a firm may be well aware that the profits of the firm are earned by a doubly speculative use of this money which belongs to other people: it is employed by the firm in speculative investments which do not essentially differ from betting on the turf, and the cash in hand or other available assets are kept at a minimum on the speculative chance that depositors will not seek to withdraw their money as they are legally entitled to do. In a firm which thus lives by speculating with other people’s money, is it surprising that a clerk should pursue what seems to him substantially the same policy on a smaller scale? It may doubtless be objected that a vital difference exists in the two cases: the investor who puts his money into the hands of a speculative company does so knowingly and for some expected profit; the clerk who speculates with the firm’s money does so secretly, and no possible gain to the firm balances the chance of loss. But even to this objection it is possible to reply that the revelation of modern finance in such cases as the Liberator and the

Globe Finance Companies shows that real knowledge of the use to which money will be put cannot be imputed to the investor in such companies, and that, though some gain may possibly accrue to him, such gain is essentially subsidiary to the projects of the promoters and managers of these companies.

It is true that these are not normal types of modern business: they are commonly designated gambling companies, some of them actually criminal in their methods. But they only differ in degree, not in kind, from a very large body of modern businesses, whose operations are so highly speculative, their risks so little understood by the investing public, and their profits apportioned with so little regard to the body of shareholders, as fairly to bring them under the same category. In a word, secret gambling with other people's money, on the general line of "heads I win, tails you lose," is so largely prevalent in modern commerce as perceptibly to taint the whole commercial atmosphere. Most of these larger gambling operations are either not illegal or cannot easily be reached by law, whereas the minor delinquencies of fraudulent clerks and other employees are more easily detected and punished.

But, living in an atmosphere where secret speculation with other people's money is so rife, where deceit or force plays so large a part in determining profitable coups, it is easy to understand how an employee, whose conduct in most matters is determined by imitation, falls into lax ways of regarding other people's money, and comes in an hour of emergency to "borrow" the firm's money. This does not excuse his crime, but it does throw light upon its natural history.

Publicity and education are, of course, the chief instruments for converting illegitimate into legitimate speculation, for changing commercial gambling into commercial foresight. This intelligent movement towards a restoration of discernible order and rationality in business processes, by eliminating "chances" and placing the transfer of property and the earning of industrial gains on a more rational foundation, must, of course, go *pari passu* with other movements of social and industrial reforms which aim simultaneously at the education of individual personality and the reformation of the economic environment. Every step which places the attainment of property upon a sane rational basis, associating it with proportionate personal productive effort, every step which enables men and

women to find orderly interests in work and leisure by gaining opportunities to express themselves in art or play under conditions which stimulate new human wants and supply means of satisfying them, will make for the destruction of gambling.

THE EXTENT OF GAMBLING

By JOHN HAWKE

GROWTH OF BETTING

The most disquieting feature in the consideration of the state of the country with regard to this habit is its spread among the wage-earning classes. By them it was little practised when it first became systematic in connection with horse-racing among people of better means. Groups of the latter class lost money and fortunes long before the fashion took any general hold of very considerable numbers of the aristocratic and wealthy classes. Betting took place principally at the race meetings. There were grand-stands upon some of the race-courses many years before the close of the eighteenth century, probably the largest being the one at Doncaster, erected in 1779 at a cost of £7000. It was not until ten years later that a regular market for credit betting was established by the institution of Tattersall's Subscription Rooms; and, that the original purpose of the grand-stand was only for viewing the races, is made clear by the contemporary records. At Ascot Heath, a separate wooden shed had to be used by those who wished to bet. Even as late as 1833, although the Epsom stand was the largest in Europe, the betting market was kept away elsewhere, upon the hill. Six years later, complaints having been made of the betting market being held in the grand-stand at Doncaster, to the annoyance of the spectators, especially ladies, arrangements were decided upon for the future to form an enclosure for betting outside the stand. Similar precautions had previously been taken at Goodwood. Betting was transacted at Newmarket at betting posts, where rings were formed on the heath. Betting was also carried on away from the courses at premises belonging to Tattersall's in London (which, however, in 1839 consisted merely of a small apartment, with only 300 members on the books), and in the vicinity of the course at the Newmarket Subscription Rooms, where there were only 57 members, other than those belonging to the Jockey Club. There were also special rooms hired at Doncaster, York, and Liverpool for members of either of the

above clubs to bet in. A chronicle informs us, in the reign of William the Fourth, that although the number of spectators at Newmarket seldom exceeded 500, mostly of the highest classes, the majority on horseback, the turf was becoming more popular in 1836 and the attendances larger.

It will thus be understood that the general public, for a long time entirely excluded from the privileged betting circle, could only take part in the business by the connivance of some of the professional men having the entrée. In 1849, however, the Newmarket authorities, seeing the feasibility of largely adding to their funds, arranged that a small subscription should confer temporary membership of the Newmarket Rooms. This caused many complaints by the old habitués, and it was found necessary, in view of the dubious standing of some of the new-comers, to modify the credit system, and to insist upon daily settlements. The cash gaming of the race-course indulged in by the great bulk of race-goers was not betting, but was carried on by means of roulette-tables, lotteries, sweepstakes, and other adjuncts of the gambling-booth. The Select Committee of the House of Commons (1844), in reporting against the miscellaneous race-course gambling, clearly did not anticipate that the grand-stands and enclosures would take the place of these other methods, and become sources of great profit as places used for gambling by betting, and that the abolition of booths would merely result in the transfer of the gamblers to the enclosures or rings, as may be seen by the following paragraph from their report:—

Your Committee cannot consider the establishment of gambling-booths on race-courses as in any way an essential accompaniment to racing, and they feel that they cannot too strongly express their opinion that all such practices ought to be entirely and universally discontinued. If there is in any place a real demand for races, money enough is sure to be subscribed for plates and stakes to be run for, and if at any place sufficient sums for these purposes cannot be raised without the aid of gambling-booth rents, the races at such places had much better be left off.

Sixty years have gone by, and race-course proprietors acknowledge that the loss of the present gambling-ring rents, or entrance fees, would put a

stop to three-fourths of the race meetings in the kingdom.

Legislative enactments followed the Parliamentary Reports, and to a great extent swept away the miscellaneous gambling, which was only to make way, unhappily, for the more subtle form of turf betting. For years before the middle of the nineteenth century, many of the proprietors of public-houses (or persons in collusion with them), and of specially hired offices in the great towns, had been in the habit of using their premises for the purpose of accepting betting money, and, after a time, relations were established between them and some of the credit-betting professionals belonging to the clubs and subscription rooms. This was how betting by those away from the race-course continued, and even increased in volume, notwithstanding the effect of the Betting House Act in 1853, which, immediate as it was with regard to these betting offices, was partially neutralised by the change of location brought about when the new railways were beginning to convey large numbers at a moderate expense to the course, and by the laying on of the telegraph offering the means to others of rapid communication with the betting men at the race meetings, for gambling purposes, by those unable to make the journey.

The time was one of transition, and legislators appear to have overlooked the fact that the miscellaneous booth gambling having been previously suppressed, their enactment putting an end to ready-money betting establishments, then chiefly in towns, would only result in their virtual transfer to every race-course and so-called club. There had been a great deal of irregular and surreptitious cash betting upon the race-course, but it was not a generally recognised system. It was one that had gradually grown. The bookmaker with a satchel taking money in advance and giving tickets, was unknown on our race-courses in the forties. Later on it was particularly recorded that at the Chester Cup race of 1852, one large bookmaker took a great many £5 notes, and the practice was then coming into fashion. It was, however, to laxity in applying the law that the ready-money, or deposit, system owed its subsequent continuation and increase in volume, for there is no doubt whatever that the Act of 1853 was considered at that time to apply to the evil in race-course enclosures as elsewhere. A recognised contemporary authority wrote: "The fatal facility induced by the open deposit system is nipped in the bud"; and another, "Cash betting stopped upon the passing of the Act." The temptation, however, to race managers to

wink at wholesale infraction of the law was very great. Entrance fees to the enclosures promised to become their financial backbone, and to enable them to add enormously to the value of the stakes and cups. And it was found that to permit ready-money betting was to turn a few score of entrance fees to the rings into thousands. That the practice was even many years afterwards considered illegitimate is shown by the Jockey Club notice in the *Racing Calendar* of July 23, 1874, and the official notice at Goodwood by the Duke of Richmond, "No ready-money betting will be allowed upon any part of the course or park," in the *Calendar* of the same date.

AN ACCOUNT OF THE PRESENT INCREASE

BETTING

It is not necessary to follow in any detail, beyond this period, the growth of horse-racing, and the practice of betting connected with it which had now become a national foible. The foregoing sketch was desirable for the understanding of the subject, owing to the absence of any other authentic continuous record, and by the fact that the masses of the nation had not become a gambling people as compared with foreign populations, either in other ways or in this, until long after the introduction of the sport. The above review of the past takes us up to the year mentioned (1874), when the failure of a prosecution, owing to the interest or prejudice of the Newmarket magistrates, for permitting ready-money betting in the rings, finally opened the flood-gates of the system, which now, aided by railway, telegraph, and press, spread over the country in an ever-increasing volume, and from tens of thousands of sources in city, town, and village drew its main increment from the money-making and wage-earning classes. Hardly any portion of the country, any section of the population, was free from the blight. The bookmakers multiplied. The wealthy and the idle squandered fortunes on them; the toilers brought their sovereigns and half-crowns in myriads. A large portion of the press batten upon the advertisements of prosperous betting men. Servants of the state in high legal positions, devotees of the race-course, and others of subordinate station, gave decisions as to the construction of the law so framed as to put no check upon the spread of professional betting; and horse-racing became a trade instead of a sport. The

enormous money interests honeycombed it with dishonesty. Sometimes owners, and more often trainers, jockeys, touts, and betting men, arranged which horse should win, according to the exigencies of the betting market; and, not unfrequently, poison played its part when it was necessary, from the trade point of view, to prevent an animal from first passing the winning-post. The very atmosphere of the turf was pestiferous; it corrupted everything of it and connected with it. The pretence that it was any longer a noble sport was only countenanced by the fashion of titled people patronising it. The ancient plea as to its improving the breed of horses became a byword as the number of yearling races increased and the length of the courses was reduced. The pregnant sentence in the Report of the old Committee (1844) of the House of Lords was forgotten: "The Committee would consider the advantages of horse-racing more than problematical if they were to be unavoidably purchased by excessive gambling and the vice and misery which it entails." The streams of small bets swelled into rivers, and the rivers filled an ocean swamping the land. The twenty or so bookmakers of the beginning of the century grew into an army of twenty thousand. Many made fortunes; nearly all made a living. Those who confined their operations to the race-courses might be said to do less harm than those who offered facilities away from the course, only that they usually acted in relation to these latter as the wholesale dealer does for the retailer. One of these retail men who was not given to boasting (*Chambers's Journal*, 1898) admitted that his business had a turnover of £250,000. It must be remembered that the individuals in the streets are merely the journeymen of well-to-do bookmakers. During last year, amongst the many thousands of fines for the offence, evidence was given—and there are scores of similar cases—that a lad of 16 was one of several servants of a master bookmaker, who mapped out the district amongst his subordinates.

From unofficial but perfectly reliable sources, hundreds of items of information quite as striking as the above could be given, but they are unnecessary in view of the statements of officials and others made before the Select Committee of the House of Lords (1901-2). Briefly summarised, the evidence showed that the practice of betting had grown to such an extent amongst the working classes that it was quite commonly carried on in factories and workshops by agents of the bookmakers, and outside of them by the street betting men. In speaking of the former method, one of many testimonies was given by the Lord Provost of Glasgow, who said that

betting was carried on to an enormous extent in the great workshops there; while an idea of the latter can be obtained from Police Superintendent Shannon's statement that in Lambeth alone 441 persons had been proceeded against in the previous year, the fines amounting to £2000. The evidence proved also that it was not confined to men, but had spread to women and children; that it caused the neglect of wives and children, disregard for parents, and carelessness and indifference in their occupations, frequently resulting in embezzlement from their employers; that this professional betting was largely responsible for corrupting the police, for turning athletic sports into a trade, and for a general neglect of duty amongst those who indulged in it; that all efforts to cope with it under the existing law had failed to restrict it to any extent, including those of the trade unions, some of which exclude from official positions any one known to be given to betting. Excepting those witnesses who in some way, direct or indirect, were interested in the professional betting business, there was a volume of convincing testimony as to its baneful effects. A former prison chaplain, through whose hands in ten years a hundred thousand persons had passed, said that in one jail a whole wing had been set aside for prisoners in connection with betting, which was now increasing more than ever. Several years subsequently to this a carefully kept unofficial register for Great Britain (which is probably a very imperfect one in the sense of much understating the numbers from the difficulty of compiling a comprehensive list by private effort) showed that in the previous five and a half years no less than 80 cases of suicide, 321 embezzlements, and 191 bankruptcies had appeared upon the records of the Courts owing to professional betting, and it must be pointed out that probably not nearly all the embezzlements resulted in prosecution. The Mayor of Salford, for instance, told an influential meeting at Manchester that he was responsible for the conduct of a large business in which several cases of embezzlements had been discovered, but that in no instance had a prosecution taken place. A continuation of these statistics for the three following years, as quoted by the Archbishop of Canterbury in the House of Lords on May 3, 1904, adds to the significance of the figures by revealing that not only has the evil gone on, but that the embezzlements have increased at the rate of 40 per cent. With regard to the allegation that betting was often pleaded as an untruthful excuse in the Police Courts, the senior Metropolitan Magistrate, who spoke with twenty-five years' experience, and others averred that this statement

had been investigated, and proved to have very little foundation; in the very great majority of cases the magistrates having come to the conclusion that betting was at the root of embezzlements.

Evil consequences, unfortunately, are by no means confined to these immediate victims. Testimony as to the corruption of the police, rendered possible by the large profits of the bookmakers, and the great proportion of defaulting Post Office employees owing their ruin to the betting system, seriously supplemented the main evidence. And the inquiries since set on foot at New Scotland Yard with regard to the Metropolitan Police give a pointed significance to the revelations made. The gigantic monetary interest of the Post Office in the betting system appears in one item of the evidence of Mr. Lamb, the secretary, who said that in the previous September the department had sent 82 telegraphists to the Doncaster race meeting, who dealt with 30,000 private telegrams of persons attending the races, besides 184,000 words of racing news for the press.

Betting used to be chiefly confined to the large centres of population, but almost every town and village is now infected. A Chairman of Committees of the House of Commons, in joining the society organised to deal with the evil, stated that his doing so was owing to finding that it had penetrated to the rustic neighbourhood adjoining his Devonshire home. The strange increase in village telegrams on race days has become very noticeable, and charges of tampering with messages to cheat bookmakers are becoming quite common. Such facts, and others, incline those who have studied the subject to consider that the estimate adopted by Sir Robert Giffen at the last meeting of the British Association, in the Economic Science Section, during a discussion on the nation's wealth, of £5,000,000 per annum as going into the pockets of bookmakers, is a very conservative one.

As to the condition of the race-courses themselves, from the ruffianism of the professional betting men and their hangers-on, interesting revelations were made before the close of the nineteenth century by the efforts of one of the great London daily newspapers. It is not needful to quote the comments drawn forth by the journals friendly to reform, as those in favour of the institution of the Turf are sufficiently pungent. A few of these will suffice. Thus *The Field*, August 20, 1898:—

Those unacquainted with race-courses must stand aghast as they read the extraordinary tale of misdoing that is unfolded day by day.... A body of miscreants who are prepared to stop at nothing in the way of violence so long as they attain their object, and care not the least if they leave their victim injured for life, as is sometimes the case. The scum that formerly attended the prize-ring has turned its attention to the most promising substitute.... It depends entirely upon the efficiency and vigilance of the management and those it employs by way of guardians, whether or not the rings are invaded by those who have only to be numerically strong enough to do as they please with the respectable element.

The meeting at Epsom is then criticised, but we must devote our little space to the following, also from *The Field*:—

The goings-on at Brighton, both on the course and in the town, have reached such a pitch that we have discontinued sending a representative to report the racing. Sad to tell, almost as much justification for such a course exists in connection with Goodwood. This has been the happy hunting-ground of the thief for very many years, but we doubt if matters ever reached the pitch they did this year, the gangs of pickpockets working with such impunity that an inoffensive visitor was bludgeoned on the head actually in the very entrance to Tattersall's ring. Small wonder, then, when an act like this can be fearlessly perpetrated at an aristocratic gathering like Goodwood, that it should be repeated elsewhere.

Here is an extract from one of the letters which appeared at the time:—

Words fail to convey any idea of the ruffianism, robbers, and welshing which took place at the so-called Grand Stand at Alexandra Park on Saturday last. There were from two to

three hundred organised professional welshers, thieves, and bullies, with few exceptions well known to the officials and police and even to an occasional race-goer like myself. Woe to the unfortunate individual who insisted on the payment of a bet—a split skull dealt from behind, a scuffle, and robbery. I have no hesitation in saying that the life of every man and woman in that enclosure was absolutely at the mercy of this organised and desperate gang, and a feeling of fear paralysed the stoutest of us.

There were scores of such public communications. One racing correspondent of a large provincial paper stated that he should never think of going to the course without a revolver in his pocket. Of course the so-called sporting and publicans' papers tried to make out that these letters were not genuine, or were exaggerated, but without exception they bear on their face evidence of their reality. The writer of these lines, however, ascertained the fact of their genuineness from the editor who published them in one of the largest and oldest of our daily newspapers, which has been by no means otherwise conspicuous in this phase of social reform. We may be allowed to quote the following reflections, which witness to the existence of this ruffianly condition of the Turf, from Mr. George Gissing's *Private Papers of Henry Rycroft* (1903), pp. 43-44:—

To-day's newspaper contains a yard or so of reading about a spring horse-race. The sight of it fills me with loathing. It brings to my mind that placard I saw at a station in Surrey a year or two ago, advertising certain races in the neighbourhood. Here is the poster as I copied it into my notebook:—

“Engaged by the Executive to ensure order and comfort to the public attending the meeting: 14 detectives (racing), 15 detectives (Scotland Yard), 7 police inspectors, 9 police sergeants, 76 police, and a supernumerary contingent of specially selected men from the Army Reserve and Corps of Commissionaires. The above force will be employed solely for the purpose of maintaining order and excluding bad

characters, etc. They will have the assistance also of a strong force of the Surrey Constabulary.”

I remember once when I let fall a remark on the subject of horse-racing among friends chatting together, I was voted “morose.” Is it really morose to object to public gatherings which their own promoters declare to be dangerous for all decent folk? Every one knows that horse-racing is carried on mainly for the delight and profit of fools, ruffians, and thieves. That intelligent men allow themselves to take part in the affair, and defend their conduct by declaring that their presence “maintains the character of a sport essentially noble,” merely shows that intelligence can easily enough divest itself of sense and decency.

For a good insight from a bookmaker’s point of view of the “sport of kings” the reader is referred to *Sixty Years on the Turf*, by George Hodgman.

Bad as all this is, the continued permission of existence to these scores of peripatetic gambling hells would be an isolated evil were it not inextricably mixed up indirectly with the daily life of the masses of the population, who very seldom or never visit the courses. But these baneful institutions and the gambling clubs are fed by the life-blood of the people, whose hard-earned money flows by the thousand retail conduits of street and factory bookmakers to these gambling marts and clearing houses. It is not only where working men and women gather in numbers, but in the home, amongst domestic servants of both sexes, in the shop, the office, on the journey, in educational establishments, even in the Sunday school and the juvenile social club and class, that betting is discovered. A lady who devotes her life to the young, and lives among them in a poor part of London, says that she has very little difficulty about drink amongst the youths, but hardly dare attack the betting systematically for fear of losing her protégés. She found one lad actually receiving telegrams from France during the Continental racing season.

An alarming development, for those who travel by rail (and who does not?), is disclosed in several cases of signalmen having been found

gambling and carrying on bookmakers' businesses. Any one who, like the writer, has been in a railway collision, will vividly appreciate this. The crunch of the carriages, the awful succeeding moment between life and death, are among the ills that mortality is heir to in modern times, and are borne with more or less philosophy, to some extent perhaps depending upon the preventibility of the cause. But it will be well for railway directors, many of whom provide special facilities for the race-course gamesters all through the summer, to the inconvenience of the ordinary traffic, and wink at the gambling which goes on in their carriages however illegal, to draw the line at signal-boxes being made places under the Act and their signalmen being bookmakers. The conviction recently of a signalman for bookmaking at Knaresborough is by no means a solitary instance. In reporting to the Board of Trade on the North British Railway collision at Lochmill siding, Major Pringle states that just before it occurred there were five persons in the signal-box playing games. There are reasons to fear that there are bookmakers' agents in many of the large railway stations, carrying on their regular nefarious business with the staffs, and affecting the comfort and safety of the public. As to the race-course ruffians, whose patronage is so carefully nursed, they have been known to descend from race trains and relieve refreshment rooms of the provisions without payment, so that it is now the practice in some places to clear them of their contents before the advent of these traffic-cherished caravans.

There could be no greater mistake than to suppose that such cases as that of the clerk through whom the bookmakers robbed the Liverpool Bank of £170,000 (1901), or of the man who began life as a ready-money bookmaker, married into a titled family, was presented at Court, made a member of fashionable clubs, owned the best race-horse of the year, and ended his society career in his cross-examination in the High Court (1904), are exceptional beyond the fact of their striking notoriety. All sections of society are more or less corrupted by the gambling habits prevalent, and particularly by the professional betting system. It would be interesting to trace how many of the unhappy people figuring in the Divorce Court have been connected with the Turf.

In the Civil Service the evil has spread most seriously in the Post Office and Police departments, but is not confined to them. Information having been sent to the writer of this paper that a clerk in a Government office was

using the public stationery and other conveniences to issue betting lists from that office, personal application was made to the principal of the establishment, who investigated the matter, found the allegation to be correct, and promptly put a stop to the proceeding. Upon another occasion it was discovered that two clerks were hired to spend their two-day holiday from Civil Service work by the betting men financially interested in a race meeting, who employed them in taking the entrance money to the rings. Having lost a good deal by dishonest janitors, these shrewd speculators had secured the services of individuals who dared run no risk.

The published opinions of such men as Field-Marshal Sir George White, General Wavell, Lord Charles Beresford, Admiral Rawson, and others bear eloquent testimony to the fact that the militant Services are suffering from the immunity obtained by professional gamblers, owing to the lax application of our existing laws and the need for others. The soldiers returning from South Africa were systematically induced by gamblers to part with their savings; and is it not probable that some of the regrettable incidents during the South African campaign, which the nation had to deplore, arose in part from the time of our officers in peace, if not in war, having been occupied more with betting and gambling than in the study of their profession? Many items of information, both of a private and public nature, are alarmingly suggestive of such considerations. A single instance of the latter may be found space for. One of the witnesses before the Select Committee of the House of Lords was an officer commanding a battalion of the Scots Guards, and he gave evidence of the fact that he was a sort of chairman of a betting committee, the go-between of the Jockey Club and Tattersall's, upon which he spent a considerable portion of his time, the principal duty apparently being to settle betting squabbles between members of the betting clubs and the professional betting men. If this is not considered *infra dig.* for the colonel of a crack regiment, what is to be expected of the rank and file? His colleagues upon this important tribunal included, he said, a representative of the Ring and two well-known commission agents, the trade alias for bookmakers. We have no hesitation in saying that the Navy is as badly tainted, not only upon the evidence of officers whom we have mentioned and others, but on information from different sources. It was the painful duty of one in authority some time ago to court-martial a young comrade who had got into the hands of bookmakers, and took £200 to pay his debts from funds which, as orderly

officer of the mess, he was able to lay hands upon. He was dismissed the Service and suffered a year's imprisonment. In 1904 Rear-Admiral Henderson, Superintendent of Devonport Dockyard, discovered that betting was being systematically carried on, and published an order notifying the discharge of a skilled labourer of nineteen years' service.

Professional betting is not confined to horse-racing. Lists are habitually issued in connection with other sports, particularly football. It is gambling which causes the rush for the football editions of the halfpenny journals, and, notwithstanding the efforts made by some of its principal patrons, leading officials of the football world have been found taking part in the disreputable gambling arrangements of sporting newspapers. There are numerous instances in athletics, such as foot-racing, of the proceedings being reduced to a farce by the bookmakers, who controlled the runners; and more than one serious accident on the cycle track has been caused by the efforts of one or more competitors to obey the roping orders from their masters in the ring without arousing the suspicions of the public spectators.

GAMBLING

CARDS

In miscellaneous gambling, cards, harmless in themselves, are still prominent. The game of Bridge amongst the wealthier classes is responsible for reproducing many of the vicious situations we read of in the chronicles of our forefathers. While Queen Victoria was lying dead, one very prominent female society leader could not be got to abstain from this form of gambling even for a brief space. At the aristocratic mansion over which she presides guests must play. One young man of moderate income suggested that his means were quite unequal to such hazards as the hostess and her friends were accustomed to, but he was given to understand that he could play or leave. He unhappily chose the former alternative, and in a few hours lost half-a-year's income. There are hundreds of smaller imitators of this woman, whose husband ranks high in the political world. The disgusting position is frequently created of young girls, not discouraged from gambling by their parents, losing money which they have difficulty in paying to men with whom they are not otherwise well acquainted. In

speaking to a young lady who moves in society circles, and on inquiring with due diffidence as to her knowledge of gambling among the friends of her family, she said, without the slightest hesitation, "Oh, every one we know gambles." One of the speakers at the council meeting of a ladies' association, of which Lady Trevelyan is president, said that a society lady, on a friend observing that £150 a year seemed a small allowance for her daughter, replied that the latter was such a good Bridge player that she easily made £1000 a year.

Amongst the poor, where horse-race betting does not prevail, cards, to which juveniles are largely taking, as well as automatic machine gambling, are often made the vehicle for disposing of their small means.

THE STOCK AND PRODUCE EXCHANGES

A very large proportion of the business done upon the Stock Exchange is nothing else than gambling. No stock passes. It is merely gambling in the rise or fall for differences. Here, as elsewhere, neglect, for which the whole nation is to blame, has allowed matters to get into a groove, and great difficulty will be found in getting out of it. In another chapter suggestions are made, and if the proposed remedy is necessarily a serious one for those whose business is to a great extent founded upon an illegitimate basis, some of them at least feel that the present system is indefensible, and the following pathetic extracts from a letter written by a member of a leading Stock Exchange firm merely express the conscientious misgivings of the best class of men there—misgivings which are more or less shared by all but the hardened gamblers of the establishment:—

The evils of speculation, in common with many more fellows here, I much deplore; but at the same time, when three-fourths of the business is of that nature, what is the alternative to most Stock Exchange men? Either starvation or gaining a livelihood by means which one's conscience tells you to be wrong; and human nature is not proof against the temptation. That is the naked truth, not to mince matters; and God knows it is an awful fact, to those who give any thought to these things. I am perfectly certain that the

majority of Stock Exchange men loathe the business, and would be glad to get out of it. The subject is never absent from my mind. I have felt in a great strait over it for years. God grant that I may get out of it somehow; but how, He only knows. It seems queer to write like this to a stranger, but you have struck such a chord of sympathy that it is a relief to unbosom one's mind.

The above remarks also apply to the produce and metal exchanges. The misery caused in Lancashire and elsewhere by American gamblers cornering the cotton market is calling the attention of merchants to this branch of the subject, and with a little goodwill on the part of the Governments concerned there should be no insuperable difficulty in framing regulations which will greatly hamper, if not destroy, the possibility in future of such proceedings.

CONDITION OF THE COUNTRY

Thus in England, at the commencement of the twentieth century, the world of society, commerce, finance, and athletic sport is saturated with gambling, more or less veiled or entirely open. Individual and family ruin from it in all classes is frequent; and there are thousands of cases stopping short of this, but entailing, besides material loss and suffering, the lowering of the moral and mental nature, thus affecting the intellectual and religious fibre of the people. But the evil to the nation does not stop here. Until lately, at all events, the highest Courts of Law, as well as the lower ones, did not escape the indirect taint, and even now politicians and office-holders, who would be ostracised in Japan, continue to allow themselves, and very often their households, to be deeply involved in gambling transactions in their homes, their clubs, and with low practitioners of the race-course ring, their children in numberless cases copying the evil habit. A young heir to a peerage, a candidate for a seat in Parliament, whose father is considered to be a great political light and would wish it to be supposed that he is not without reforming zeal, although fencing with the question of the betting ring, boasted to a companion of his sudden acquisition of £2000, laughing at the idea of having worked for it, and explained that it came from the bookmakers at one meeting. The public services are corrupted, particularly

the Police and the Post Office, the latter institution rendering many unnecessary services to the gambling system, in the profits of which it largely shares, and not making the special efforts which we see in the United States and elsewhere to hamper professional gambling. The nation as a whole is, it may be hoped, too healthy in a moral sense to allow a further continuance of this social plague without a great effort to grapple with it; but the bitter experience of the nineteenth century demonstrates how futile it would be to rely solely, or even to any great extent, upon the unaided attempts of educational persuasion to root it out. These, indeed, must not be relaxed, they must be increased and multiplied, and should be supplemented by more extensive and systematic endeavours, aiming at improved conditions of life for the poor, and further amelioration of health, and opportunities for recreation; but betting and gambling should also be made, as they can be made, by amended and better applied legal regulations, far less profitable, and more difficult, dangerous, and disgraceful, whether for the rich or the needy. There need be no real interference with the liberty of the subject; for that liberty, regarded in a true light, should not confer any licence to trade upon the ignorance, weakness, or folly of others, which is the characteristic of all gamesters, and not least of those belonging to the professional betting system.

STOCK EXCHANGE GAMBLING

By A. J. WILSON

Nothing is easier than to heap abuse upon the Stock Exchange and to place to its debit every crime of which the gambler can be guilty. And all the abuse would have a sediment of truth beneath it, for infinite are the evils that have grown up and spread their roots far and wide through all strata of modern society since the day when dealing in stocks and shares first became a passion or a habit. True as this is, and numberless as may be the demoralising consequences of indulgence in the habit of stock and share “bulling” and “bearing,” it would be none the less false and unjust to lay upon Stock Exchanges and their members all, or even half, the blame for the moral undermining of society that may ensue from subjection to the hazards of the play. In many of its functions the Stock Exchange has always done admirable service to civilised mankind, and the great majority of the members of all such institutions are men as upright, as humane and high-principled as could be found among any body of merchants in the world. It is not their fault but often their misfortune that the spirit of unbridled lust after unearned wealth should so continually strive for the mastery and so often become dominant in their business.

From the point of view, however, of the highest ideal of national morality, it is unquestionable that the trade of the stockbroker is of tainted origin. In this country the business began in an organised sense when William III. founded the National Debt and called the Bank of England into existence to furnish him easily with the means to carry on his Continental wars; and an evil day surely it was for the peace of the world, for the progress of mankind and civilisation, for the masses of those who toiled in all countries endowed with a settled form of government, when national debts were invented—debts laid upon the shoulders of the people without either the intelligent or deliberate sanction of those called upon to bear the load, or adequate estimate of the consequences in any direction.

We must, however, in most things take the world as we find it, and in spite of my hatred of all debts, and of my belief that debt never paid off in the long run ruins the debtor, whether individual or state, it has to be admitted that good of many kinds came out of evil in this instance. Debt, by the intermediary of the banker, begat credit; and credit, based upon a security which was reliable, the fruits of a nation's labour and enterprise, gave an irresistible impetus to that industrial and mercantile expansion which has carried the prosperity of the United Kingdom to heights never before seen on earth, and changed the course of human progress everywhere. Imagine what might have happened if the banker's utilitarian fiction, which treated the symbols or book entries of moneys spent in wars as so much realised wealth, capable of being utilised to call still more wealth into existence, had never been allowed to have free play. The nation would have perished beneath the dead weight of its obligations. Called upon to find the interests of the debts imposed upon it, out of resources suffering continual depletion, unstimulated by any new capital beyond what the minority might or might not have been able to furnish at the moment out of its savings, it would have sunk lower and lower in poverty, until its condition might have become one of hopeless anarchy.

The banker and the stock-jobber between them saved England from that fate—unconsciously, perhaps, but they none the less saved it. Their operations often exhibited a kind of inverted, topsy-turvy communism. Gravely treating the promises to pay emitted by governments of all degrees of irresponsibility as the inviolable obligations of the people at large, they used these promises and symbols of wealth already dissipated as the bases on which to rest further credits granted to joint-stock enterprises—to South Sea bubbles no doubt, but also to East India companies, Hudson Bay companies, mining companies, canal companies, adventures of all kinds, some of which outlived the manias amid which they came into existence, and survive in one form or another to this hour. Throughout modern history, the part played by debt in engendering credit, in calling capital into existence as it were out of nothing, and providing the means to carry out great undertakings by whose completion alone could the credit-born capital become living and real, has been such as to transform the world, girdle and seam it with railways, bind it together by electric cables, and cover its oceans with ships almost as sure and safe in their comings and goings as a suburban railway train. In ways almost infinite, credit was created to

represent assets not yet in being; and, by putting in pawn of previously existing debts, and through the intermediary of banks, it drew out hoards from the keeping of the thrifty. Dead capital—capital spent—came to life again as it were, and was a potent agent for the advancement of mankind in civilisation. By this means modern nations not only stimulated their manufacturing industries, awoke and encouraged inventiveness, spread their productions over the whole world, but developed cities at home and made life bearable for aggregates of population whose healthy existence would have been impossible under the conditions prevalent, say, at the close of the Napoleonic wars and for long after.

Many other forces doubtless were at work so far as England alone is concerned—wealth drawn from India, the tireless energy of the race, the backwardness of other nations—but it was in no small measure the impetus supplied by those portions of our otherwise intolerable National Debt, utilised as a means of creating credit through our banks, that the resources and energies of the nation, and such forces as it drew from the yearly accretions of its savings, the ever-increasing fruition of its accomplished enterprises, were given full scope. In this development the Stock Exchange played a leading part. Without it as intermediary, little progress could have been made. Human nature rather than the share market must therefore be blamed for the manias and delirious gambling by which every step in the triumph of man over the forces of nature, of time and space, has been accompanied. The younger generation does not remember the days of the railway mania, when men went demented over wild and hopeless-looking projects, and rushed worthless shares to fantastic premiums in the height of the disease; but amid that insanity the warp and woof of our present network of roads came into being. There were enormous losses inflicted upon the multitude by the collapse, the always inevitable collapse; but good work was none the less done, progress made. Again, I may say, had the masses of mankind been capable of obeying high ideals, all this could have been avoided. It is possible to conceive a state governed by a spirit of mutual help and wholesome brotherliness in citizenship, wherein all would have been united according to their means to build these new iron highways for the good of the whole community, not for private gain; but it is vanity to think thoughts like these, men being what they are. The one effective force that could be relied on to attract the necessary capital to any enterprise is cupidity in one degree or another, the desire for individual profit. It may be

the restrained and wholesome acquisitiveness of the man who merely seeks a safe repository for the fruits of his thrift, but more often it is the greed which cherishes the desire and hope of excessive and untoiled-for profit.

A subject full of temptation to the student of human passions is provided by the history of Stock Exchange *furores*, but I cannot pursue it. I will only cite some characteristics as ground for suggestions towards the abatement of admitted evils. Their eradication, I fear, is beyond hope until the spirit of mankind changes and its ideals. Certain characteristics stand out prominently to distinguish Stock Exchange gambling of the present day from that prevalent before the first Limited Liability Act, that of 1862, came into force. Previous to that date gambling in stocks had been confined to a limited class of the wealthy, whether aristocratic or professional—to the narrow, plutocratic classes and their immediate flunkies and hangers-on; but after the Limited Liability Act of 1862 gave definite form to this kind of joint-stock enterprise and enlarged the field of operations, speculation gradually became the fashion with classes of people hitherto unfamiliar with it, and the fascinations of the play attracted wider and ever-widening circles of society. After 1870 education came to the help of the share manufacturer, and by and by the financial newspaper, the professional tipster, the “bucket-shop” agencies outside the Stock Exchange, conducted with the avowed purpose of guiding the play so as to bring wealth to the gamblers, exercised their malign influence. Then came the £1 share, fully paid up, with no further liability, as the most attractive speculative instrument of them all. When I first knew the City, more than thirty years ago, no joint-stock undertaking whose projectors wished to be thought respectable could have been launched with a capital composed of £1 shares, whereas now very few companies of any sort are constructed on any more substantial-looking foundation. Mines, even gold-mines, in the early days of limited liability were rarely launched as joint-stock undertakings with shares of merely £1 nominal value. Nowadays, shares of 5s. nominal value are not uncommon in the case of such companies, and a few months ago the shares of several prosperous Indian gold-mines were subdivided into half-crown units, really in order to facilitate market dealings, *i.e.* gambling, in them over a wider field.

By the aid of the £1 share, all manner of enterprises have during the last fifteen years, or since 1890, been converted into joint-stock companies on

the basis of an excessive capitalisation that would have been impossible to the same extent under the old fashion of the £10, £20, £50, or £100 share; and the losses consequent upon the unprincipled rapacity of the promoter, gratified by means of this ensnaring instrument of speculation, have been greater and more widespread than those inflicted upon an easily deluded public by all other forms of joint-stock swindling put together. When the new fashion was just coming into favour, one of the shrewdest members of the Stock Exchange, a broker of high character, predicted to me that it would be so. Talking of railway manias, shipping manias, and the losses they have caused, he remarked that they were “trifles to what the public is going to suffer through the £1 share.” Not many years after this opinion was expressed to me, the nation plunged into the South African gold and diamond mine dementia, with results not yet by any means fully visible, but whose harvest of loss and affliction has already transcended in magnitude and in the numbers of the victims all the plagues of this sort that have preceded it.

It looks so easy for the “small man,” as the City slang would put it, to have his “little fling” with a £1 share. Even when such share rises to five, ten, or twenty times its nominal value, it still seems easy, tempts the multitude more perhaps than when it may be at a discount, and there are such facilities for indulgence in the passion to make money without effort, with “no risk at all,” as the bucket-shop puffer is ever iterating. The market gives every facility, is ready to lend its means to the player, to smooth the field for him at the start. He need not pay for the shares he buys. The dealer and broker will “carry” them for him fortnight after fortnight, as each market “settlement” comes round, lending the money at handsome rates of interest, and charging an infinitesimal commission, or, perhaps, no commission at all, for performing this necessary operation. A man possessed of £50 may in this way be induced to speculate in £500 or £1000 worth of these small shares, staking his all. If the buyer wins, as in seasons of fever he often for a time does, the heavy interest he is charged does not affect him. Each fortnight, as the Stock Exchange account comes round, he pockets his “difference,” the sum left over as product of the advance in price after all charges have been met, and thinks himself on the high road to affluence. Initial success inflames the appetite, fresh purchases are made, probably before the earlier speculations are closed, and while the profits already reaped by the earlier gambles are being spent as fast as received. By

and by reaction comes, losses accrue, expressed in “differences” to be paid instead of received, and the end is usually misery for years, for a lifetime, or sudden and irretrievable ruin. Slowly, and amid infinite suffering, this harvest of the South African, the Kaffir market insanity is now being reaped, as that of more than one Australasian and American rage of speculative abandon has been again and again during the present generation.

Is the disease thus indicated incurable—a disease whose course is invariable, whose end is profit, wealth perhaps, to one in a quarter of a million among the players, and to all the others various gradations of loss, from a few pounds disbursed in exchange for wisdom-fraught experience to complete ruin and social degradation? Yes, I believe it to be incurable, especially in a society constructed with such all-pervading artificiality as ours. One’s first impulse is to cast unmitigated censure upon the gambler; but that also would be unjust. The motives of mankind are mixed always, and at the beginning the impulse which starts the speculator in shares on his downward course is oftener than not at least half laudable, is at the worst the product of a man’s surroundings, of the vanities of life by which he may be lured. Constituted, moreover, as the social economy of modern England is, the great bulk of our fellow-citizens have no assured foothold in the land of their birth. They toil without hope, and see only privation or absolute want at the end of the day’s work—be it long, be it short. Essentially we are a nation of nomads, uprooted from the soil, and with no assured hold on the means of existence, speaking of the mass, beyond what the weekly wage or yearly salary furnishes. What more natural, one may say inevitable, than that this divorcement should generate in a vigorous race a hunger after security, a craving for some refuge, some shield against the uncertainties of existence, a way of escape, perhaps, from the irksomeness of individual surroundings, the tyranny of a hard taskmaster, the caprices of employers, whose power over all beneath them is too often almost that of life and death. By their surroundings, by the circumscribed horizon of their life, the minds of many men are prepared for the tempter who comes to them with the promise of deliverance by means of a successful gamble on the Stock Exchange. Others, again, are moved merely by vanity, by false standards of social wellbeing, by jealous emulation of those who may seem richer than they are, for is not the possession of money our one standard of “wealth” and wellbeing? To all such, once the plunge is taken, degeneration comes. A

habit is established, and may become a craze, a passion, a lust that in time will devour all that is best in the heart and intellect.

Such seems to me a fair summary of the psychology of gambling, and I do not see how its ravages are to be stayed, the disease eliminated from society, without radical changes in its structure implying loss of privilege and an abatement of class selfishness by the few who now stand apart, the nation's drones and hive-harriers, or without the cultivation of higher ideals than those implied in mere purse-proud social emulation. And of one thing I am sure; the London Stock Exchange can do little or nothing to check the ravages of this social canker, nothing effectual can be done in any Stock Exchange of them all. To expect bodies of men, associated together for purposes of gain, in the conduct of their daily business to lay down self-denying rules for their conduct, is not merely unwise but futile. The more the organised groups of stock-jobbers and brokers doing business at particular centres called Stock Exchanges hemmed themselves in by restrictions established with a view to limit the facilities for play, for buying and selling, the more such business would be thrown into the hands of irresponsible outsiders, most, if not all, of whom are mere vultures and cormorants, devourers of the substance of all who fall into their hands. In a very real sense the saying is just that the less restricted, within well-regulated limits, the constituted market may be the greater is the safety of the public from fraud and loss. Often when the London Stock Exchange, by far the most powerful and best organised institution of the kind in the world, has attempted to bar the way to the mere speculator in certain directions it has been defeated. It refused many years ago to sanction dealings before allotment, that is to say, purchases and sales of a security before it was really in the hands of the market or the public. The dealings went on all the same, until the liberty had to be restored. Unto this hour many members of the "House," as the Stock Exchange is affectionately called by its members, set their faces against gambling in "options"—against, that is, the system of play by which a speculator puts down so much money, parts with it for good, in exchange for the right to "call" for the delivery, or to give delivery, of a certain specified amount of a particular security—to "put," the slang is—on a certain future day at a price fixed when the transaction is entered into. But this kind of pure betting business grows every year all the same, and is now of a magnitude an Act of Parliament could hardly do much to lessen. Against the force of human passions no Stock Exchange can hope to

war with success, and I do not believe that any such body should be asked to impose self-denying ordinances upon itself, the only effect of which would be to drive the business away from it into channels more fertile still in ruin.

But if there is no root and branch remedy, there must be some palliatives. It ought to be possible to restrain and diminish the ravages of the share manufacturer and professional market thief, at the same time that the range of temptation was narrowed for the multitude. It should be possible to do this, and with goodwill something might be done even by the Stock Exchange. Take as example the habit now prevalent of introducing new securities of all kinds on the market without the preliminary of a prospectus. This habit has received a great stimulus from the latest attempts at company law reform, in virtue of which the liability of directors for statements in prospectus has been sensibly increased. To escape that risk, new companies are now launched without preliminary statements of any sort. Certain members of the Stock Exchange, acting in concert with the schemers outside by whom they are employed, begin to buy and sell shares in an undertaking whose very name may be until that moment unknown everywhere, and about which neither market nor public has any information whatever. By arrangements with the financial press, whose charges for such services are most remunerative, quotations representing these unreal sales and purchases are daily and weekly paraded before the public, often accompanied by vague general statements regarding the wonderful wealth this particular share represents. Attracted in this way, the ignorant presently begin to itch to take a hand in the game, and gradually, if times are favourable and what the contemptuous broker calls the "fool public" is "on the feed," quite a lively market arises, whose end is the stripping of the outsiders by those who laid the snare. The end of the fraud comes afterwards, when the plotters have got safely away with their plunder. All that the public may have left is worthless shares. Dozens, one may say scores, of African and other swindles of this sort have been perpetrated during recent times of excitement, and now and then the Stock Exchange itself has been cheated. Surely it ought to require no great amount of self-denial on the part of this body to stop peremptorily all impostures conceived and carried out after this fashion. It need only refuse to grant a settlement of bargains in any share thus foisted upon the public until the whole of the facts relating to it are laid before its committee, and quotations

in the official list ought never to be granted to any company until the whole facts regarding it have been properly laid before the public. In other words, I think nothing but good could arise even to the market were the Stock Exchange to enact a rule forbidding the introduction of any security on its floor by the members until full information had been published by those responsible for its inception, whether by prospectus or by properly authenticated and signed declarations.

Another reform within the power of the Stock Exchange that might do much good would be the prevention of dealings in shares that represent goodwill, and therefore, as a rule, merely the plunder of promoters. Often, as it is, vendors' shares are not "good delivery" until after a certain time has elapsed. If this irregular and capricious usage, dependent really upon the action of those who found the company, were to be made an invariable rule, and if such shares were kept out of the play altogether until a reserve had been gathered against them to give them substantial value, one fertile cause of loss would be reduced to small proportions. The plunderings of the Cecil Rhodeses, Whitaker Wrights, Hooleys, and the like would in this way be circumscribed, although by no means stopped. Unhappily, as I hold, the mischief cannot be entirely stopped until the spirit of the nation changes.

Once the habit of "bulling" and "bearing"—of buying more than one can pay for or of selling what one does not possess—lays hold of a man, the disease is too often incurable. When the victim suffers loss—gets caught by the market, as he would put it—he doubtless suffers more or less acute mental agony according to his character, the traditions of honourable conduct he may possess, or the extent of his risk. Then his mood becomes that of the old rhyme: "When the devil was sick, the devil a monk would be." Vows are registered never more to be caught in this snare; the mind is prey to remorse, and virtue is honoured. But let the danger pass, the threatened loss become a profit, and all is forgotten when next temptation comes. The player resumes the game, and, on a "tip" from some interested source, sells a "bear," in the hope of robbing the unknown counter player through a fall in the price that will enable him to buy back at a profit and pocket the difference drawn out of such counter player's resources. Or he buys a "bull" to effect the same purpose when a rise on the market shows a profit. Morally, I may say, there is not an atom of difference in the character of these two operations, unless it be found in the fact that the "bear," the

speculative seller, is on the average a man of wider intelligence than the “bull.” To the public and the market he is also by much the more valuable gambling animal of the two, because in proportion as a speculative account is oversold is the capacity of a market strengthened to resist shocks from bad news. The publication of such bad news becomes the signal for those who have sold what they do not possess to rush into the market and repurchase. This operation often causes prices to advance on bad news, and always steadies the market against disturbing influences, to the great benefit of the real holder, who is thus enabled to sell at a smaller loss than would otherwise be possible. Bad news on an over-bought account—on a market, that is, where the great majority of the players are holding securities for the rise on borrowed money—always brings disaster. From this point of view, the “bear” is much more useful to the genuine investor than his opponent; but morally there is nothing to choose, so far as the individual operator is concerned, between the two methods of speculating.

“Bulling” and “bearing,” it may be said, constitute the daily business of a large proportion of dealers, wholesale merchants in the Stock Exchange, and for them it is legitimate enough to sell according to their judgment what they have not got and buy what they could not out of their own means pay for. It is in their power to cut their losses always when such begin to accrue, and many amongst them close the day with their books “even.” That is to say, they have neither a “bull nor a bear open,” to use the market phrase. They are mere traders, whose judgment of the market tendencies guides them in taking the one course or the other for the day only. It is altogether different, however, for the outsider, the man amongst the public, whether he resides in the City, or at Land’s End, or in Connemara. Such cannot operate with rapidity, and usually act upon tips and prepossessions, which in ninety-nine cases out of a hundred prove fatal to their peace of mind and injurious to their pocket.

Is it, then, impossible to induce the multitude amongst the people to abandon this method of hunting after wealth without labour, for that is our only hope? A change in the spirit of the people, a higher sense of self-respect, a deeper regard for the community of interests which would lead a man to treat his neighbour as a man to be helped, not injured, would do more to put an end to this modern habit than any number of rules and regulations. It has been suggested that gambling could be almost entirely

put an end to were sellers of shares to be compelled to hand in the name of the possessor, or the numbers of bonds where bonds are sold. Undoubtedly this would stop every kind of free-handed gambling, except by way of options; but could any such regulation be established that would apply to the irresponsible dealings of the outside gambler through bucket-shops? I think not. Moreover, any such regulation would in the long run be injurious to genuine holders of securities. Take the example of Bank shares. It is almost forgotten nowadays that, as a consequence of the banking panic of 1866, an Act, known as Leeman's Act, from the name of the man by whom it was introduced and carried through Parliament, effectually stopped speculative dealing in Bank shares. These are now consequently exclusively an investment security. They cannot be sold without giving the numbers of the shares and the name of the holder out of whose possession the shares are to come. There is consequently never any "bear" account, that is to say, any account open in unspecified shares sold for the fall, in Bank shares, and unquestionably this immunity from attack has been most valuable in checking Bank scares when credit has become strained. But what would happen supposing a crisis arose through the failure of one or two important Banks? Would it be possible for frightened shareholders to escape their liability and sell out before the crisis became acute? No, it would not. The shares would simply be unsaleable on any terms; there would be no market for them at all, and each individual holder would be compelled to face his loss without chance of escape. From a moral point of view this may be all right—I am not objecting—but undoubtedly the acuteness of the disaster would be concentrated to a cruel and most ruinous extent upon the then existing groups of Bank shareholders.

Recently, when a panic threatened in Russian securities upon the Paris Bourse, the official brokers there notified to the outside market that they would not record sales of the bonds unless the numbers thereof were handed in with the order. This at once stopped speculative selling, but I doubt whether the consequence was not to weaken the market and to render the credit of Russia suspect amongst the multitude who, speculatively or otherwise, held this particular national debt. At any rate, the rule was very soon abandoned, and dealings resumed on the old footing. In Germany a number of restrictions and vexatious taxes have been placed upon Bourse transactions, especially those of a speculative kind, without increasing the health of the market or really diminishing the amount of gambling done.

The business is transferred to other markets, very largely to London—that is all.

Again, it may be said that the English Government put an end to one form of gambling, still prevalent on the Continent, with complete success. Lotteries were put down by Act of Parliament, and the trade of the lottery-ticket jobber summarily stopped. That is true enough, but there is no analogy between a step of this kind and stopping gambling in actually existing securities. If lottery loans themselves had not been discontinued, it would have been impossible for any Government to stop the pernicious dealing in lottery tickets. If we could stop all issues of securities, wipe off the National Debt, Municipal debts, the intolerable burdens of Colonial debts, and turn all joint-stock undertakings into communistic organisations, there would be an end of Stock Exchange gambling, at least in any form now familiar to the public; but short of that I do not see how the legislature can interfere with effect without creating other, and perhaps worse, evils than those it sought to abolish. An example of legislative powerlessness has been furnished by recent efforts at joint-stock company law amendment. The Act of 1900, which was going to do so much to purify the atmosphere and limit the ravages of the unscrupulous promoter and his “front page” guinea-pigs, has really increased the mischief, as I have already pointed out. Gambling might be diminished were the State to increase the taxes upon speculative transactions, although I am doubtful; but any such increase would rather tend to emphasise the absurdity of the Gaming Acts. Through these Acts it is possible now for any speculator to repudiate his obligations, and cases frequently arise in the Law Courts where losses are in this way repudiated.

Possibly the law might be able to put down outside speculative agencies, which do an incalculable amount of mischief, and yet even there difficulties stand in the way. Are newspapers to be forbidden to insert the advertisements of these “bucket-shops”? Will the Post Office refuse to transmit their circulars? How far is it legitimate or safe, let alone wise, for the State to interfere in order to protect the fool from the consequences of his own folly? I cannot solve the problem; it perplexes me much and often, but the longer I think things over the less am I inclined to invoke the aid of the State in order to put an end to this social canker.

The remedy must come, I repeat, from the people themselves: from better instruction, from healthier views of what constitutes true success and respectability. There is an emulation in extravagance which has spread widely through all classes of society during the past two generations, and has now culminated in a vicious recklessness that does more to whet the appetite for gambling of all kinds than anything else. This spirit is not perhaps so visible in the country village, at the rural parsonage, or among the petty tradesmen in a small country town as elsewhere; not so patent to the eyes of the onlooker. We do not need to go so far: society in the West End of London is quite sufficient for illustration. The habits there have grown in extravagance within my time to a degree almost impossible to realise; and most people embraced in this word “society,” as well as thousands who are pressing to get within the magic circle, live beyond their means, struggle to eke out their inadequate incomes—inadequate through the standard set up by gambling on the Stock Exchange, often by ruining themselves.

Why cannot people exercise some moral restraint, or at least a trifle of common-sense? No system of gambling in existence treats the public with absolute fair play. The sharper is everywhere, but far less frequently in evidence on the Stock Exchange than anywhere else. It is none the less true that the mere charges of the market constitute a considerable handicap against the outside player. Supposing a man is induced to buy a security, the price of which at the date of his purchase is £1000. According to the character of that security, he will pay from 25s. to £5 to the broker he employs to carry through the transaction. This charge is really a very small payment for the work done—would be quite inadequate payment at its highest, did the market transact investment business alone. That money, however, is so much out of pocket at the start to be set against expected profit. Then there is what is called the jobber’s “turn.” The wholesale dealer in the market has always two prices. He buys at one price and sells at another, the difference being his immediate limit of profit. Assume such difference to be merely half-a-crown per cent, and the stock bought will cost the outside buyer 50s. more than he could have sold it at when the transaction was entered into. Say £5 altogether is thus against the outside buyer on the deal at the start. The security purchased will therefore have to rise 5s. per cent before he can get home, as the phrase is, without loss. If the profit, however, does not come along within a fortnight or thereby,

arrangements have to be made to carry the transaction forward to a new account, as it is called. This involves interest on the money, which cannot, on an average, be less than 5 per cent per annum, or roughly another 50s. per fortnightly account. In addition, there is probably a small charge, representing £1 or 25s., made by the broker for arranging the fictitious purchase and sale by means of which this continuation of the bargain is effected. Let a speculative purchase be carried on in this way for a few months, and it will become evident to everybody that a very considerable rise must occur before the purchaser is able to sell at a profit after meeting all charges. In three months he may be £20 to £25 to the bad, assuming the price to remain where it was when he bought. If people would reflect in this way, and make calculations before they plunged into a gambling transaction of the sort, they would surely often hold their hands.

With sales for the fall—sales of what a man does not possess—it is often very much worse, especially if a man has sold a share or stock on which dividends accrue from time to time. He may be saved the cost of interest on money lent to him, but has to pay the dividend upon the stock he sold each time that one is declared; and should selling for the fall have been large enough to exceed the supply of shares available for lending purposes, he may be called upon to pay a fine for failing to deliver what he sold, and each fortnight the carry-over charges have to be deducted from the price at which he sold, together with dividends when they come, and fines for non-delivery when the “bear” is more or less “cornered.” In this way it often arises that a man will not come out with a profit, even should he round off his speculative sale by repurchasing 10 per cent below the price he originally sold at. I give these brief illustrations to help the outside mind, to warn people off from this method of trying to make money, but my hopes are not profound that they will have much effect. We shall require a world-enveloping credit cataclysm to lift mankind out of its present vicious ruts on to a higher, a more altruistic moral platform.

GAMBLING AMONG WOMEN

By J. M. HOGGE, M.A.

Betting has so long been associated with men that it is probable there are still many people who have never considered the evil in its relation to women. The attention of those, however, who have given some thought to the problem of betting and gambling has been increasingly turned to this phase of the question, and it is now certain that among women the practice is spreading with alarming rapidity. As in the case of men, the habit is not confined to any one class of society but has affected all, so that at the one end of the social scale costly jewellery is sold to cover bridge debts and at the other blankets are pawned to put money on a horse.

If we turn to the evidence given before the Lords Commission we find numerous side references to the practice. Here, for instance, is some evidence given by Chief Constable Peacock of Manchester:—

Q. One of these slips (*i.e.* bookmakers' slips) you have given me is from a lady?

A. Yes.

Q. And it appears that she had 8s. on in one day?

A. Yes.

Q. In what position in life would she be?

A. She is only a working man's wife.

Q. She puts in this slip with 8s., meaning that she has invested that money on horses in one day?

A. Yes.

Again, Mr. Horace Smith, a well-known London magistrate, in his evidence refers to the practice of bookmakers taking bets from women and

children, and also to the effect betting has on the honesty of women, giving instances to prove his assertions. Asked if he thought that women as well as men bet more than they used to, he replied that he had no doubt they did, and that he had even had women bookmakers before him. Mr. Spruce, a Leeds commission agent, also admitted the fact of the woman bookmaker.

This last statement may come as a surprise to many readers, but we are able to give circumstantial proof of its truth in the following circular:—

Gentlemen in quest of reliable racing intelligence are invited to communicate with Miss ——. Only those who are prepared to pay well need apply, as Miss —— is not one of those who give away Tips.

During the latter part of 1903 Flat Racing Season Miss —— decided to commence business as a racing adviser, and she at once met with conspicuous success, her selections including—Grey Tick, Cesarewitch; Burses, 2nd Cambridgeshire; Switch Cap, Manchester November Handicap.

Miss —— invites all sportsmen in quest of genuine racing intelligence to join her list of regular wire subscribers. Satisfaction guaranteed to all regular subscribers.

Those sportsmen who send for her wires can rely on winning money. Her terms are, she believes, higher than those of the ordinary Turf correspondent, but clients will be fully satisfied that her wires are worth every penny charged. Those sportsmen who require wires every day are requested to apply elsewhere, as Miss —— cannot promise to send out more than two or three selections every week. The source of her intelligence cannot be divulged, but it may be mentioned that no other racing adviser is in the same position as Miss —— to obtain such genuine information.

This lady charges 10s. for a single wire and £5 for twenty.

Mr. Luke Sharp, the Official Receiver for Birmingham, Worcester, and West Bromwich, replying to the Bishop of Hereford, drew attention to perhaps the most deplorable phase of betting among women. This consists in the collection of bets by agents calling on women for other weekly payments. Here is what Mr. Sharp said:—

I had a conversation with one of my friends who is very much interested in these matters with regard to some cases in Worcestershire, and I wanted to get the particulars, as I did not like to make a statement unless I could prove it, and I will now read you his letter if your Lordship desire it. He says: “I do not mention this in any way to incriminate the man who I understand is carrying on a system of gambling, much as I condemn such and consider it should be stopped. I simply brought the matter before you to show how among the many ways gambling is brought to the houses of the working classes. It is done by agents who, while collecting the weekly payments on some article purchased, also collect for the master who makes a book, and so induce the women to place money on any race taking place in any part of the kingdom. I consider something should be done to put a stop to such.” That is about the worst kind of gambling that I ever heard of.

Along with this evidence we must also take that of Mr. Robert Knight, General Secretary of the Boilermakers’ Society, and a magistrate of Newcastle, who says:—

Betting generally is largely on the increase; especially is this noticeable amongst young men and women. Between the hours of 11.55 and 3.15 a bookmaker was recently seen to take 236 bets from men, women, and children in South Shields.... Unrestrained by Act of Parliament, the bookmakers go from door to door in the streets occupied by the working classes for the purpose of inducing women to bet.... When the workmen are at their work these

bookmakers go round and visit the parts where they live, get hold of the wives of the workmen when the husband is at work, and get them to bet. Very often it does not end in betting with spare money: a woman very often takes the things of the house and pawns them to get the money to bet with.

There is still another reference to this practice in Mr. Knight's evidence, which we give in full:—

Q. With regard to the house-to-house betting, would you include that in the prohibition (*i.e.* of street betting)?

A. I would. I think it has become a terrible evil—one of the worst I know of.

Q. Do these bookmakers solicit the women or whoever opens the door to them?

A. Yes; they go from house to house, and they get the women, in the absence of their husbands, to bet, and I have known in some cases where the money has been so short that the mother has gone and taken some things out of the house and pawned them in order to get money to bet with.

Q. Have you known of bad cases of women betting with their husbands' money, for example?

A. Yes.

Q. Do you know many cases of that kind?

A. Very many. In some cases the husband is not himself given to betting, but on account of the visit of the bookmaker to the house during the husband's absence at work the wife has given way to betting; and then by-and-bye the husband has got to know that this has taken place, and I need not tell you the result: it is extremely sad.

It will be agreed that this form of betting is particularly mean and despicable, even if it be true to some extent that women when they gamble are specially addicted to it. Indeed Mr. Tannett-Walker, who is connected with a large engineering works near Leeds, gave it as his opinion, in his evidence before the Commission, that they were “worse gamblers than men,” and he went on to say:—

I think it is more serious, because, generally speaking, the working man only bets with his pocket-money, as he calls it in the working districts, and I think the woman very often risks the money the husband gives her for household purposes; I think she is much more reckless and excitable under loss than a man, and therefore much more likely to go to the full extreme of all the money she has in her pocket.

The present writer has had the privilege of receiving a large mass of evidence from clergymen, the police, prison chaplains, officers of the S.P.C.C., police court missionaries, district nurses, and others, bearing on the prevalence of the habit, and it may be valuable to supplement with outside testimony what has already been quoted from the Select Commission on Betting and Gambling.

The Vicar of Jarrow-on-Tyne writes:—

My impression is that it is on the increase, but it is not easy to tell. For the most part, it takes the form of lotteries or sweepstakes, women putting in their sixpences, etc., and winning a possible £20 or so. Now and then a woman may be seen openly betting in the streets, but usually it is done quietly. I have been told that women act as agents for the bookmakers. Now and then a woman will come to her Communion whom I suspect of betting, but, as a rule, I think they feel it on their conscience more than people of the upper classes do.

The police court missionary at Newcastle-on-Tyne says:—

I have had considerable experience of evangelistic work in slum parishes in Newcastle, and it is my opinion, from careful observation, that there is a very great amount of betting and gambling among women. I have known women sell the shoes and stockings from off their children's feet to get coppers to put on their favourite horse.

From a pit village the vicar's wife writes:—

The women are so terribly tempted by the men who come round to their doors.

But possibly the following story, related by a navvy, may serve better than numerous examples to exhibit the real inwardness of the betting habit when it attacks the home through the housewife:—

I have my health and strength [he said], and I have always plenty of work; the job I'm on now will last another six months. It's true I have seven children, but I make no trouble of working for their support. We used to go to church when we was first married, my wife and I; we lived at Southampton then, and we both thought a deal of Canon Wilberforce. It was him that tied the knot. Since we came North I have not gone to any church: wife was taken up with the children. But I always washed myself, and put on my Sunday suit when Sunday came round; sometimes I'd take the kids for a bit of a walk into the country, and sometimes I'd take a stroll round with a few of my mates. Anyways I held up my head straight and thought I was as good as any—my meaning is that I thought I had the right to look any one in the face, for I believed till a week ago that I did not owe any one a penny piece. It was Saturday even, and up comes to me a bailiff chap, but I did not know then that he was a bailiff; he shoves a paper into my hand, and I reads on it "Judgment Summons. Personally served on the Defendant," and there below I sees my name written in. I said, "Take it

away, I never have aught to do with such things.” I had to take it in, and I found it was an order for £1: 2: 3, that should have been paid long before to a firm called a “Clothing Company,” trading from a town twenty miles away. Not half a dozen words did I say to any one that day, just sits dumb and dazed over the fire; not a wink did I sleep, but by Sunday morn breakfast was over I’d my plans made.

I gets a bit of lead pencil from one of the lads, turns the children out of the room, spreads out a piece of paper, and sits myself down. Then I says to the wife, “My lass, I never have chastised thee, never; but now thou hast just got to bring me every bill and every pawn-ticket, and thou hast just got to think on, and to tell me of every penny I owe, and if I find thou hast kept aught back, I shall feel fit to take off my belt and to thrash thee with it to within an inch of thy life, and if I have to go to gaol for it, I’ll go.”

By tea-time that Sunday I’d got that paper about covered with figures, and reckoned up it come to £70. There were two doctors’ bills, four coal-cart men, there were three lots of goods from the “Clothing Company,” and four from the “Furnishing Company,” and both these I were told firms of peddling fellows whom I had never seen, because they are such curs they never show their face at a door when the master’s in, and when they have sold their goods (all on the weekly payment system) to silly women, they go off home by train, so as the husbands can’t follow them home and give them the horsewhipping they deserve.

I found a deal of things that Lord’s Day. I went up to look at the children’s beds and saw the blankets was gone off them, I looks in the drawers and found them empty where they should have been full of children’s clothing and bedding. I understood that day why the two eldest girls were so long getting themselves places; they had naught but what they stood up in. Folks might say I should have looked into things a bit sooner, but I were one that always said, “If the

man earned the money and turned it over to the wife, it were the wife's place to lay it out to advantage."

We had not been living in that house above a twelvemonth, but it all come about since we'd moved in. I could see nothing wrong with the street when we took the house; it looked quiet enough. It had not been built so long; the house was clean and airy, and there was an extra room for the lads, that were the chiefest thing we moved for.

How was I to know, when nobody telled me, that the women in this was all a-cheating their husbands, and was just one a bigger gambler than another.

As near as I can make out their practices was like this. They'd all back horses with the money they should have kept in a safe place against rent day, and them that lost would wait while Monday when the packman come round, and they'd take a suit of clothes or a pair of blankets on the weekly payment system. Straight away they would carry them to the pawn-shop, so their husbands having never set eyes on the stuff would never miss it out of the house. I suppose they'd think they'd done a clever thing when they had raised the money for the rent and a bit over besides to back another horse.

Sometimes the Day of Judgment would seem to have come to one or another when county court summonses would come to their house, but so long as their husbands did not see the papers, they'd put off the day of reckoning a bit longer.

My wife says they'd run round to one another's houses and say, "I'm in a deal of trouble, will you oblige me to-day by taking a pair of blankets off the Clothing Company and pledge them for me, and I'll pay you back when I can? And if you get into trouble some day, I'll help you out if you'll just oblige me this once." My wife knew nothing about such ways afore we came to live in this street, but she were a

quick learner, and got into it like a lad gets into his new sums when he gets put up a standard at school.

It's none so very hard when it's put plain—horses, packman, pawn-shop, and a county court; and then over again, more horses, more packmen, more pawn-shops, and more county court.

Sorry to trouble you with such a long yarn, but I put it to you as a practical question, How am I to get out of this fix? If I go to gaol I lose my work, and rent's running on, and grocery bills and coal bills are running on, for seven bairns can't be fed on air, and I am told going to gaol does not clear off the whole of the bill to these pedlar fellows, but only a little bit of the back payments, and you may be taken again as soon as you come out for another bit. I put it to you plain, What is a man in my circumstances to do?

Faced with a similar question, what would the reader do? Circumstances like these indicate only too clearly why it is that there is a social problem. The heart of all happiness and integrity in life resides in the home, and when anything comes between the mutual understanding and confidence that alone makes home life possible, we may be sure that evils undreamt of before will find an entrance into the home.

The insidious nature of the evil is best illustrated from the fact that almost every week the newspapers record the downfall of some individual whom the public had thought above suspicion. Similar instances occur in the humbler walks of life. The present writer knows of instances in which cottages sometimes lent for religious services were also on occasion used as betting centres. Here is an extract from the letter of a reliable correspondent:—

A bookmaker made one woman in a street his friend. She would receive the money for him, and gradually entice many to join. In my own district there the most respectable looking home was used in this way. The owner, a widow woman, was perfectly clean and tidy, no gossip, and never talking at

the door. She allowed her son first, and then she herself took it up, and just because in all other ways she was respectable, the other women were snared into thinking less of the sin.

Another feature which calls for comment is the fact that girls are either encouraged by their employers, or by their fellow-servants, to indulge in betting. Deaconess Clarkson of Durham mentions the case of a girl, sent to service from a "Friendless Girls' Home," failing to repay her monthly instalment for her outfit. On being asked the reason, the girl maintained that her mistress had persuaded her to put it on a horse.

This other instance would be ludicrous if it were not pathetic. The first night a young girl spent in service she was asked by the butler to give half-a-crown for the sweep. She asked why she should pay the sweep! but in order to avoid giving offence gave him the money. The parlour-maid "lifted" the sweep, amounting to 37s. 6d., when the girl understood what the butler had meant.

We saw from the evidence of Mr. Luke Sharp that this evil was not confined to the North, and it might be well to draw attention to a reference to similar practices elsewhere. Writing in the *Nineteenth Century* recently, a writer said:—

A typical Lancashire woman of the lower class told me that trade was very bad in her district, mostly because the women bet a shilling on nearly every race, and they take th' bread out of th' children's mouths to obtain the shillings. That was a thing unknown in Lancashire fifteen years ago, as it was also for women to be seen drinking in the public-houses; and half-a-dozen fellow-travellers in the same carriage all confirmed her statement.

It might be interesting to give the actual figures for one instance in which a cottage in a working-class district in York was carefully watched for some fourteen hours, spread over five days. Those entering to make bets were as follows:—

	Men.	Women.	Boys.	Girls.
First day	84	4	12	3
Second day	97	6	26	10
Third day	109	7	33	6
Fourth day	72	4	13	5
Fifth day	29	1	12	2
	391	22	96	26

It will readily be seen that a very significant proportion of those entering the cottage were women, boys, or girls.

So far we have dealt almost entirely with the prevalence of the practice among working women, and that for obvious reasons. In other classes of society there is, of course, as much betting on horses as among working women, and for larger amounts. In other ways, too, there is very much to be deplored. Dean Lefroy, speaking in Norwich Cathedral in June of 1904, created quite a sensation by a strong denunciation of bridge gambling. The condemnation elicited some facts, all proving the prevalence of the evil.

No more mean or despicable an outrage of the ordinary canons of hospitality can be conceived, than that so well illustrated in an extract from a recent address by Ian Maclaren:—

I want [he said] from this place to offer my protest against bridge parties, which are gathered together simply and solely not for playing a game but for winning money by gambling. Conceive of one case, and I only mention one. A young married lady is asked to go and stay in a country house by a lady older than herself, and an old friend of the family. Her husband cannot go with her, but she goes down to spend the week-end. Bridge is played, and, although she knows a little about it, she excuses herself as not being a sufficiently good player. It is pointed out that every one must play, and that no doubt she will do well enough. She has a suspicion that not only money is risked on the game, but that it is risked to a considerable amount. She is assured that it is nothing. At the close of the evening she discovers that she has lost £35. Of course far greater sums than that are lost, but that is a great deal for a young married lady, the wife of a professional man, to lose. She has not the money to pay. She goes home, and very properly tells her husband the whole story. He sends a cheque to the hostess, and he states distinctly in the letter that a woman who would ask a woman younger than herself, and specially under her charge, to play at bridge under such circumstances was doing nothing more or less than keeping a gambling-house.... I ask you whether you would like your wife to be involved in this vortex of gambling, and if you are prepared to face not the financial but the moral consequences?... I hope this appeal will lead you to consider the position, and take a firm stand against an insidious because a very fascinating and fashionable evil.

The incident referred to is no uncommon experience, and reveals feelings alien to the fine spirit of hospitality so common to British life, and incidentally exhibits the blighting effect of the greed of money upon the life of society.

The gaming-house proper is a more sordid consideration, which is only mentioned to show that its existence has not been forgotten. More often

than not it is managed by a woman, and the police raids reveal over and over again that such houses are the very sink of crime and vice.

From what has been written it will be seen that the evil has spread very insidiously into all ranks of society. The working woman gambles with the wage of her husband, the society woman with her dress allowance or her husband's income, the spinster with stocks and shares through her lawyer, and the honestly intentioned though ill-advised charitable lady with raffle tickets at church bazaars. By refusing to participate in those lotteries women have one very obvious way of discountenancing an immoral method of raising money.

Remedial measures for the evil are suggested in another article in this book, but we would draw attention to one other remedy which would scotch the evil among women, viz. a resuscitation of the ideals of home life. "The home," said the late Mr. Moody, "was founded before the Church, and you in Britain stand more in need of homes than you do of churches." The failure of home is the failure of the parents to realise its duties and its responsibilities. And the failure to recognise these is traceable to the failure to recognise the value of a home religion. There is no home problem where there is true religion, and there is no power which keeps more alive the best qualities of human kind. Without it there can be neither that affection nor respect which makes it possible for the children of the home to remain attached to it, and every child induced by the example at home to take up the practice of betting is a disintegrating factor in that happiness which alone can bring stability and respect to character. This article will not have been written in vain if it helps in any way to reinvigorate and refresh the home ideal.

CRIME AND GAMBLING

By CANON HORSLEY

When I jot down in 1905 my impressions and observations as regards betting (chiefly on horse races) as one of the causes of various forms of crime, and of the type of character that thinks little of crime, and readily commits it on the lightest temptation or provocation, I am at first surprised to see how little mention there is of it in a book entitled *Jottings from Jail* that I published in 1887, after ten years' experience in Clerkenwell Prison. The moral I draw is not that I ignored it amongst the many causes of criminality and of crime, nor that I considered it unimportant in comparison with the far more common cause—that is intemperance; but rather that the evil has been increasing by leaps and bounds since that decade, beginning in 1876, which I spent in prison as a young student of criminology. Nor indeed is there so much as might be expected in my later book *Prisons and Provinces*, although therein, when enumerating “ten desirable reforms” that stood out clearly in my retrospect, I find the following passage:—

5. The censorship of the press in the matter of publication of the unnecessary and corrupting details of divorce proceedings and suicides and of betting lists. Editors cannot be the moral prophets of the age while they keep a sporting prophet and while in bondage to advertisers and the lowest classes of their readers. Some crime is State-caused, much is paper-caused.

“Crime is condensed beer,” occurred to me as a dictum for which there was far too much justification; but “Crime is the fruit of betting,” neither seemed to me then, nor seems to me now, a tenable adage.

And yet how painfully the directness of the path from betting to bondage, from Epsom to the Old Bailey, was brought before me each month for those ten years. Before each session of the Central Criminal Court a procession of

young postmen for trial, and destined in those days almost inevitably to penal servitude for their first crime, showed how good character, fair education, constant and honourable employment, and sobriety, had all been inoperative against the temptation to steal letters containing money. And why the theft? In almost every case it was that they had been led into betting on horse-races, had lost, and had been pressed for the money by the bookmakers under threats of exposure. This was an ever-recurring object-lesson on crime as a product of betting, but the most striking instance I recall was when three Chief Inspectors of Scotland Yard—Bishops in their profession—were charged and sentenced in consequence of their having allowed themselves to be drawn under the influence of some Turf criminals of the most dangerous type. Then indeed one thought, If those things are done in the green tree, what shall be done in the dry? If these experienced men of the world, with professional knowledge of the tricks of the hangers-on of the Turf, can be drawn into the vortex, what can we expect of the average silly and ill-paid clerk, who has some excuse for his feverish desire to add to his inadequate income, though at the expense of others? And telegraph clerks again became prisoners through their special temptations. The straight tip for which a shilling had been paid passed through their hands and added them gratuitously to the ranks of the cognoscenti. Then later in the day came from the same Turf agent the straighter tip to the smaller circle of artisans and shopmen who had paid half-a-crown, and later still the straightest tip to the innermost circle of his customers who had paid ten shillings. Not all clerks would have sense and integrity enough not to think that here was a road to fortune made for them by the expert knowledge of some and the credulity of others. So too, after Derby Day, amongst the various crimes—pocket-picking, burglary, assaults, embezzlements—that kept dropping in after and in consequence of that day, attempts at suicide found their place. The first case that meets my eye in some old prison notes is: “Barman, 22, lost place for giving drink away; lost his savings (£80) at betting on horse-races; therefore ‘had the miseries’ and attempted suicide.” So a London coroner, interviewed on the subject of an epidemic of suicide, said: “I always look for suicides after the Derby. After that event you always find that a certain number of shop-assistants have absconded, and a number of other people have committed suicide. They belong to a class of people—much too numerous nowadays—who want to get money without working for it. They fail, and then they go and

jump into the river, or something of that sort. You will always find some suicides after Derby Week.” And it should be remembered that not only in London, but all over the world, does Derby Day represent the acme of interest and of temptation, and produce the maximum of evil sequelæ. And, again, it struck me forcibly that betting produced one of the most hopeless types of prisoner with which a prison chaplain could have to deal. The men habitually on the Turf seemed to be the very incarnation of cunning and suspicion and selfishness. They had one prayer and one creed: “Give me this day my brother’s daily bread,” and “Do everybody, and take care they don’t do you.”

What I have said will show that I was not, nor could be, ignorant of the existence of the vice as one of the chief causes of crime during the ten years, 1876-1886, when I was daily conversing with prisoners. But from all I have seen, read, and heard since, and not least from conferences with present-day prison officials, I am convinced that betting has so largely increased of late years that its effects are much more obvious in prison. I had many sad cases of the ruin of those who were dependent entirely on character for employment, but had lost that character through the embezzlement that betting losses had prompted. But when in 1902 I, as one of the Committee appointed by the Rochester Diocesan Conference to investigate the question, had before me one of our Metropolitan police magistrates, to whose court come almost exclusively the labouring and the shop-tending classes, he made deliberately the very strong statement that, of recent years, he had hardly ever had a case of embezzlement before him which was not connected, either directly or *au fond*, with betting. Nor would he admit that this plea of betting was merely an excuse put forward without real cause. On the contrary, careful inquiry into the cases proved conclusively that the plea was a true one. And to the same Committee Mr. Hawke stated that the House of Lords’ Commission by evidence proved conclusively that a large proportion of the embezzlement of the country was due to betting with bookmakers and to professional betting. And here are a few typical cases that came close together in point of time. The first was the notorious one of the quiet bank clerk Goudie, who embezzled £170,000. He had got into the hands of bookmakers, and they had compelled him to go on by threats of exposure, after the common practice of their kind. The next is that of a labourer’s wife, charged with attempting suicide and stealing shoes. She had pledged them to endeavour to recover money lost on horse-

races. The police constable seized the poison intended for herself and her children. Her husband was not aware of her betting. The third is that of a caretaker of a chapel near me, who had stolen £60 in bank notes, and set up the plea that he had got them at the Alexandra Park and the Epsom Races. Next comes a clerk who obtained fifteen guineas by a forged telegram. When only seventeen he made the acquaintance of a bookmaker who would continue business with him in spite of his father's remonstrances. The judge commented on the fact that it was this same bookmaker whom he had now cheated, and by whom he was prosecuted and got twelve months' hard labour. The next is a dispenser who embezzled £11 from the doctor who employed him. His downfall was accounted for by betting, and his solicitor offered to give the names of the bookmakers with whom he had been betting, in consequence of whose threats of exposure he had stolen to pay them. Another clerk embezzled £1. In his absence from the office the manager's suspicions were aroused by a street loafer bringing a betting account for the clerk showing a large amount owing. He lost fifteen years' good character, and got three months' hard labour. And next comes a postman who, in the words of the Recorder, "had been engaged in a systematic robbery of the public service in order to engage in transactions on the Turf." He got six months, but in my time would almost certainly have had five years' penal servitude, as such offences on the part of postal officials were dealt with then with uniform severity. Had one to labour the point, a press-cutting agency would enable one to fill pages with typical cases arising in any week, especially during what is called the flat-racing season, when, as a friend of mine engaged on a London evening paper tells me, the circulation was found on inquiry to increase by 50,000 per diem from the time of the Lincoln Handicap. The Lords' Committee were told by Sir A. de Rutzen, after twenty-five years' experience of the crime of London, that "more mischief was brought about by betting than by almost any other cause, especially street betting, which could very well be put down.... From personal knowledge, he could say that the evil arising from betting was as deep-seated as it was possible to be. In cases where persons were prosecuted for embezzlement and betting was mentioned as the cause, he was in the habit of making inquiries, which invariably confirmed the statements." Another Metropolitan magistrate deplored that he entirely concurred with what Sir Albert had said, and added that where the crime had been one of fraud or embezzlement he had invariably found that betting

had been at the bottom of it. Bankruptcy may be a misfortune, but is very frequently a social crime, and on this I would only refer to the evidence given before the Lords by Mr. Luke Sharp, Official Receiver for Birmingham, as to betting as a cause of bankruptcy, and would remark that, carrying my mind back over a series of years, I cannot remember a case of the bankruptcy of a trader known personally to me in which either drink or betting, and commonly both conjoined, was not the cause, although either or both were often unsuspected until the crash came.

I may add, although facts and figures are here more difficult—and, indeed, largely impossible to produce—that my fourteen years' experience as a Metropolitan Guardian of the Poor, during ten of which I have been Chairman of a workhouse containing over 1300 inmates, is that betting now stands only next to intemperance amongst males as a cause of pauperism. The habit cannot be eradicated even in old age and the seclusion of an infirm ward, and bets are made in surreptitious pence when the larger sums and more frequent opportunities of yore are impossible. The fascination of drunkenness, which is decreasing, is great: that of betting, which is increasing by leaps and bounds, is greater. The evil effects of intemperance are to some extent confined to the individual; those of betting are rarely so confined.

THE DELUDED SPORTSMAN

By A BOOKMAKER

So very much public attention has recently been called to betting, more particularly as applied to and in connection with horse-racing and the backing of horses, that I thought I would sit down and write a little of my experiences in respect thereto and give my unprejudiced views upon the subject. Yes!—an old bookmaker's views—illustrated by facts and circumstances; bearing in mind that, as I believe, this is the first instance of a bookie's confession of the "game," and so is, I suppose, a novelty.

I am penning these few lines just as the matter comes across my mind and without any attempt at literary or even logical merit—a plain, unvarnished life-tale, as it were—and in so doing I hope to point out certain means that might improve the Turf business and free it from the fearful odium it is now in; and secondly—and let me say my main and principal reason for rushing into print is for the benefit of and a guide to small backers. By "small backers" I mean those who go in the cheap enclosures at race meetings, and more particularly I mean stay-at-home backers (or let me call them, as they would wish to be designated, "small sportsmen"), who make bets on horse-racing from say two or three shillings to a few pounds daily and habitually. The large backers can take care of themselves, but my advice equally applies to them, and they would do well to follow it.

I am getting an old man, and have been a betting man and bookmaker all my life, so to speak. My parents were poor people, but respectable. I had a National School education. When I was about twelve years of age I was turned out in the world as an errand-boy at 1s. 6d. a week in a general warehouse. I stayed there for a number of years, until at nineteen years of age I was a full-blown warehouseman earning £1 per week! I was a sharp, intelligent young fellow, kept my eyes and ears open, which, I can tell you, I have done all my life (you need to as a bookie, I can tell), and I soon made up my mind that the quid a week in a stuffy warehouse, long hours, hard work, and little prospect of "going ahead," would not suit me. A lot of my

chums used to “horse-race,” “put a bit on,” “get up sweepstakes,” and go to a race meeting now and again. In this way I was first introduced to a race-course, and was successful in winning a bit now and then, but as sure as faith losing it again, and more too. My first impression of a race meeting was a very bad one, for I could see that it was a vast assembly of “wrong uns” to the backbones—thieves, sharps, pickpockets, lowest of the low ruffians and scoundrels—my opinion is but little better of the present race meetings. My brother bookies would endorse my candid opinion, I am sure. The race meetings of the present time, of course, are far superior in comfort and convenience to the old meetings, but the same villainy and cheating is ever rampant; but let us call it now “refined rascality.”

Well, I was wide enough awake to soon see that “backing” was no good, but that bookmaker was the “game.” I soon found a way to start with a pal similarly inclined in views. I wasn’t going to stick at a quid a week when I could see ten times that sum easily to be made. At that time bookies were allowed to rig up in any costume they liked, so we had red waistcoats, white plush hats, blue and green parti-coloured coats, etc. etc.

I was soon “at home” at the “game.” I was sharp and cautious, with but little capital, so, for a time, our rule was “small bets only.” Lor! how the coin came in! seldom did we have a losing day. Well! to sum up my many years of experience, money has ever since rolled in. I have long since been in a position to take any bet you like, from half a sov. to thousands, “with pleasure,” and “thank you.” Money soon became no object to me, nor is it now. How comes it thus? One answer only. Because betting is a one-sided game, and is almost wholly against the backer. Thus the “bookmaker,” be he a ready-money bookie on the course or a S.P. bookie at home, is as certain in the long run to “cop” the backer’s coin as I am writing this. To be sure, the bookie attending the meetings can control his liabilities to a certain extent, which a starting-price bookmaker cannot do; but really it matters little—the bookmakers get the cash in the long run. Let me say that I am referring to substantial well-known bookmakers, and not to the crowd of penniless welshers who infest every race meeting held.

I am writing, as I have said, more particularly for the benefit of backers; they can adopt my advice or not, as they please. Now listen. I have attended every race meeting held in the land over and over again. I am as well known in sporting circles as any man could possibly be known, from the

highest in the land to the lowliest, so to speak; my betting transactions amount to thousands and thousands—I really cannot say how much. I am known, and properly so, as a very wealthy man—money is nothing to me—and let me candidly and truthfully tell you that I have never known a backer of horses to permanently succeed. The backer is successful so long as his money, pluck, and luck lasts, or until ruin has overtaken him. He wins and loses—wins and loses. He is up and then down—up and down. Hope! hope! hope! prompts him to go on; and he goes on. He diligently studies all kinds of plans and systems; he also fools his money away with “tipsters,” who have been described as a set of race-course harpies; every system, all of them of course, certain and sure. He tries “1st favourites,” “2nd favourites,” “1st and 2nd favourites,” “newspaper tips,” “newspaper naps,” “jockey’s mounts,” and numbers of other plans and systems—some his own particular fancy, and some other people’s. He gluts over sporting news, and talks of owners, trainers, and jockeys in a most familiar style, as though they were his own personal friends! He becomes acquainted with horses’ names and pedigrees, and eventually his mind is so full of Turf matters that business, his occupation, and employment become of second importance; he sacrifices home, comfort, occupation, and money—all! all! all! What for? In the hope of easily making money, but in the end for the benefit of the bookmakers. My experience is not an isolated one, but truthfully is that of every well-known bookmaker on the Turf.

Betting is a fascinating vice, and it is perfectly astounding to what an enormous extent it is rooted throughout the land. In every town, village, hamlet, warehouse, office, and workshop in the kingdom you will find the “backer” in thousands and thousands, all losing money—all in the net of the bookmaker. Can you blame the bookmaker for carrying on his money-making business? Why, every one’s answer is “Certainly not!”

Were the race meetings always to be held at the same place, the bookies’ business would practically be “all up.” For why? The local backers would soon all be “played out.” The very fact that the race meetings are changed daily and are miles and miles apart is a veritable god-send to the bookmaker, the trainer, the jockey, the owner, and the dozens of others depending for existence on Turf matters. We thus get daily hundreds, nay thousands, of new faces and fresh backers full of excitement and hope, having “splendid tips” and “certainties,” all ready and anxious to invest

their cash with us, but, alas! the majority of whom go home with long faces and empty pockets, whilst the bookmaker and the “betting brigade” leave the scene of action with renewed energy, high glee, and above all cash ammunition for a fresh attack at another rendezvous.

This glorious state of things goes on day by day and year by year, particularly during the flat-racing season. Now, I think it is a bad week if during flat racing I do not clear a hundred or so per day on the average. Some days, but really very few indeed, I make a loss, but on other days the coin rolls in all round, and the average is as I have stated. I have made as much as £5000 in one day! How is that, eh? I am wise enough, of course, to make my book to win, not to lose. Still, with heaps of money in hand, with property here and there—with everything in abundance that I and mine may require or could possibly wish for—with grand country and town houses, with horses, carriages, every possible luxury, every wish and desire gratified, living up to the greatest state of expensive excitement every day (the bookie’s very existence compels a constant round of amusement and excitement or we are nowhere), still, mind you, I am not happy—sometimes far from it. Conscience will make itself heard. True! true! age is telling on me as even it is telling on many another bookie, and we cannot stifle the thought that the grave is in sight, and our last race will soon be run. Often and often am I troubled with thoughts of the past—memory will assert itself—and the questions arise:—Have I led a fair and upright life? Have I got my money and living in an upright, honourable manner? Have I not helped to ruin hundreds of good silly fellows? Visions of them crop up from time to time; I think of them with any but pleasant feelings. How many poor foolish backers whose money I have taken—taken as a business, of course—have lost homes, business, and all; whose wives and children have been turned into the streets through the father’s passion for betting? How many of them have found their way to gaol through betting, and how many have sought self-destruction?

Such must be the occasional thoughts of all old bookmakers. And for why? Because there is not one of us, past and present, who has not over and over again obtained our money by questionable means, even if our inclination was not to do so. We have been, and are compelled—yes, compelled!—to participate in trickery and deceit to the detriment of the backer; and so crops up the thought that the backers’ money in many

instances is not obtained honourably. These facts make one feel uneasy. What does this mean? Why, I have in my time secretly paid away much money as contributions to effect certain ends favourable to the bookmaker and to the loss of the backers.

The “freemasonry” amongst certain people connected with racing matters is very strong indeed. Pray let me be very plain in making myself clear. I do not for a moment cast a slur upon or raise the slightest suspicion upon the host of honourable men of high position and standing whose names are identified with Turf matters. Certainly not; the reader’s own common-sense and knowledge must be exercised. But amongst certain actors at race meetings my accusation is levied. Indignantly denied! Of course it will be. We are all upright and honest until discovered to be otherwise. It is the being discovered that is so galling. I could relate to you most startling facts upon these points—incredible, you would say; scandalous, wholly unbelievable! Yet, my friends, true, true indeed! My mouth, however, is so far absolutely sealed. Think yourself how very easy such things could be arranged, and you will cease to marvel. Consider for a moment that all the principal actors at a race meeting are all personally known to each other—old chums, old acquaintances, travelling the country together and enjoying themselves, and you will fail to discredit the fact, viz. that it is so extremely easy to (as it is now termed) “engineer a great coup.”

What is the real meaning of this pretty modern expression? Why, in plain language, it is arranging “to win a race.” Listen! What think you? There are very many unfairly run horse-races. Take this statement as gospel from one who knows, but who *cannot* divulge the secrets of the Turf. Listen again. Betting is simply a speculative business, two parties to a bet. Each tries to win the other’s money, and each party adopts the best expedient to do so. We all know who *does* win in the long run, and I am penning this rigmarole to show, if possible, to the small sportsman that the odds against him are so tremendous that it is next to *impossible for him to win—I mean in the long run*—and I so write in the hope of inducing him to “turn the game up” once and for ever, which I am sure would save much frightful distress, save the wrecking of many a home, prevent much trouble, and would be to the happiness of thousands who now waste their hard-earned money in a wilful way and in impossible successful speculation.

I am not writing as a moralist or a sentimentalist, but in a purely business way; using common-sense to prove to misguided, foolish people that to invest their money in backing horses is a stupid, unwise, unbusiness-like mode of investing their cash, and is a way that means absolute loss, if not ruin, simply because the *chances to win are so great against them, and the odds against them so fearful, that success is next to impossible*. To convince a backer that such is the case, I know, is a most difficult task, and really for a bookmaker to do so seems a paradox and a right-down absurdity, but it is not so. If the small backer could be extinguished, the legitimate abused business of betting would be much relieved from the stigma now cast upon it through the misdoings of the small backer, who, in his hopeless task, runs himself into serious difficulties and causes trouble all round. The removal of the small sportsman would be of inestimable benefit, not only to himself (I want him to look at the matter in that light), but to the straight respectable bookmaker.

Now with regard to the monied or larger sportsman. He it is who is the friend of the bookie—the dear delightful investor whom the bookie so much loves—the regular attendant in Tattersall’s enclosures and in the members’ rings. Well, well, he can afford to lose, and is capable of taking care of himself. The bookie does *not* wish to lose him—oh dear no, certainly not; so he encourages him all he can; he makes him presents of nice morocco pocket-books, splendid purses, nicely bound S.P. diaries, Christmas and New Year remembrances in various ways, treats him whenever an opportunity occurs, and loves and plays with him whenever he can. Very many of these beloved sportsmen are men who have made money in trade or business—they are either in business still or are retired—who, having saved a competency to live upon, somehow or other find their way, one after the other, on to the race-course; they nearly always come into Tattersall’s at the different meetings; they go the round of them, and travel gaily from place to place; they get charmed with the free and open life and excitement. They decide, as a rule, firstly, to risk so many hundreds, but when it is gone they generally manage to find more money. Hope! hope! These gentlemen sportsmen talk about their wins but not their losses. Eventually, as usual, they “do it (their money) all in,” then they drop out one by one through want of money and, less often, through being wise in time to prevent absolute ruin. So we miss their dear delightful faces, but we keep their money.

We, the bookies, talk to each other about our said customers and friends. “What about So-and-So—oh, he’s a retired draper. Mr. So-and-So—oh, he’s a market gardener, got a fine business. Mr. So-and-So—the retired grocer. Mr. So-and-So—what, the solicitor? Dr. So-and-So—oh yes, the doctor. Mr. So-and-So—yes, the chemist,” and so forth; then we always laugh, and the oft-reiterated remark takes place, “Yes, he is doing it (his money) all in” (*losing it*).

We laugh ha! ha! We laugh ho! ho! We laugh at their folly and pain.

One by one we miss them, but sure as fate others turn up from time to time, and so the merry game goes on day by day, month by month, and year by year. Yes, the monied sportsman, the retired tradesman, the successful business man combining trade with Turf speculation. Yes, yes, let them be—they can take care of themselves. If they like to lose their coin, well, let them—in fact, they are the bookie’s chief support, his pals, his friends. True, they drop out as I have said, one by one, sooner or later; but what matters, brother bookies? others always crop up in their places, and so we have nothing to fear.

Again, let me say, that it is the impecunious and needy, and poor silly fool of a backer who brings discredit upon the business, together with the host of thieving, impecunious welshing fraternity who dare call themselves bookmakers and Turf commission agents, who, fairly or unfairly, cop or welsh the small backer of his money.

Now, to point out to the said backer more precisely the reasons *why* and *how he cannot* possibly win at backing horses, no matter what plan or system he follows. Let me go a little more into these points, which will or ought to convince him, or at any rate give him matter for serious thought upon the subject.

In the first place, there is what is termed the “law of averages,” by which the backer’s chances to win are for ever against him; that is to say, in nearly every race there are a large number of horses running, otherwise the races are termed non-betting races. Now you back one horse out of say seven or eight running, thus you have at once six or seven chances against your

winning. Look how very greatly this works out against the backer when larger numbers of horses are in the race—say 10, 15, 20, and even 30. You back one horse to win, so there are 9, 14, 19, and 29 absolute chances against you, and so on. Never mind about the favourites, the complete outsiders, and so on, there are (and there is no mistake about it) so many absolute chances against your winning, and of course on the other hand so many chances in favour of the bookmaker. But! but! but! listen! ye deluded, cocksure backers! The law of averages against you is nothing to be compared to other and far greater chances against you. I had already written, explained, and set out a number of them, but a newspaper correspondent has very thoughtfully and very carefully embodied them, or some of them, together with others, in a capital letter which appeared in the *Sun* newspaper one September, and I cannot do better than set them out. The *Sun* has recently permitted a public debate in its columns upon “Is Betting a Sin?” The debate by correspondence has been most interesting. The religious element, of course, dominated with silly arguments, and in so doing “forgot the subject altogether,” whilst on the other hand many letters were strictly to the point, were eye-openers, and logical. The result was announced by the editor, who decided that “he would give it up,” *i.e.* the correspondence compelled him to say that he could not say whether betting was a sin or not. My candid opinion is that certainly “betting is not a sin,” but I *tell you what* it is, it is a pernicious and fascinating vice of the worst kind, and is intimately connected with if not the direct cause of the worst kind of various sins. However, more of this anon. Now to give the letter referred to; it is as follows:—

ODDS AGAINST THE BACKER

Sir—I do not profess to enter into the pro or con of this vital question, which is increasing in force and imperativeness with each succeeding year. But to those of your readers—and I fear they are greatly in the majority—who, in spite of experience, fondly believe that it is possible to make money by backing horses, I append a list of 22 chances against the backer in every race that is run.

1. The regular percentage of odds, ranging from 2 to 1 up to 20 against one in every race. There can be only one winner.
2. The horse may be fit and capable of winning, but not “wanted.”
3. “Wanted” by the owner, not “wanted” by the trainer.
4. “Wanted” by owner and trainer, not “wanted” by the jockey, who has his money on another runner.
5. Owner, trainer, or jockey in debt to a bookmaker. In either of these three cases the horse runs to suit the layer’s book, irrespective of the backer.
6. Horse tried to be a certainty—money on. Something wrong with trial horse. All calculations upset. Again the backer loses.
7. Race lost by a bad start.
8. Long delay under a hot sun. Horse irritable, nervous, wears himself out at the post.
9. Some fractious brute who has no place out of a selling race kicks the “certainty” at the post.
10. Jockey disobeys orders, and throws the race away, or goes to sleep.
11. Tiny light weight, caught by steel-knit veteran, fails through weakness. More grist to the bookmaker.
12. A lends B his best trial horse—say Bluebottle—to try Broomstick. Result of trial makes the race a good thing for Broomstick, but a still better thing for A’s old sprinter, Juggler, who has got in with a light weight. A quietly

works a starting price job all over the country, and with Juggler just nips Broomstick on the post.

13. Brown lends his crack jockey to ride Jones's Malaprop, and price shortens. Brown's money is probably on Gay Deceiver. Jockey obeys orders, and rides Malaprop in Gay Deceiver's interest.

14. Horse certain to win. Stable forestalled at the last moment. Jockey honest. No help for it. Give the colt a nice refreshing drink of water before the start.

15. Everything lovely. Mount winning easily, when he stumbles and nearly comes down.

16. Jockey makes his effort too late.

17. Jockey secretly owner of horse, other than his mount, running in the same race.

18. Short sprint. Bad draw for position extinguishes chance.

19. Public back the favourite. Stable wins with outsider. See Dieudonne and Jeddah.

20. Crowding at a turn. Jockey hopelessly shut in.

21. Jockey skilfully shuts himself in. "Couldn't get through, sir."

22. Horse knocked out of his stride by a cannon during the race.

A famous trainer of the old school said, "I have been in this business through a long life; there is little that anybody can teach me in training. I can do all things in this world with a horse except—be inside him."

What a splendid letter this is! How true indeed are the 22 reasons! What thought each one gives to the backer if he is a sensible man and will but think over them. How we bookies know full well the absolute truth of them, as do also the jocks, trainers, and owners. We have referred in conversation to the *Sun* correspondence. What care we for it? It won't stop the fascinated backer. No fear; we persuade ourselves that nothing will stop him except "running the length of his tether."

It is almost amusing to read in the newspapers the excuses given by the "Racing Prophets" for the predicted horses "not pulling it off." Almost daily you will find some of the above reasons given. I have just picked up the *Daily Mail*. Racing at Nottingham is described as "an unsatisfactory affair." For whom? The bookmakers? Certainly not. For whom then? Why, the backers of course. Then comes the usual and oft-told excuses—amongst others—why such and such a horse did *not* win, as follows:—

Excuse No. 1.—"The well-backed Shot Gun ... threw no resolution into his work."

Excuse No. 2.—"Eileen Violet too ... ran a snatchy race throughout."

Excuse No. 3.—"Reminiscence having missed a race at Newmarket through the imprudence of her jockey in leaving off riding too soon, she yesterday, when heavily backed to square matters, had her chance entirely destroyed by the falling of Lady St. George."

Excuse No. 4.—"The Bestwood Nursery ... demonstrated how fluky was the victory of the Asteria Filly at Newmarket."

The above are cuttings from one paper only—we get such excuses to "soothe the backer" almost every day in one paper or another. In a case reported in the *Daily Telegraph*, the judge of the Clerkenwell County Court made this remark:—

I don't profess to be any authority on horse-racing, but I know it depends upon what the odds are and what the jockeys have been paid as to which horse wins. (Laughter.)

I guess that judge knows more about racing than he would wish us to believe.

What is the impecunious backer? Why, a fool of the first order. A fascinated idiot. A sharp, flat, and very often a thief, *i.e.* he steals other people's money in order to "put it on." If the above cogent reasons and facts won't decide him to stop backing, then nothing will, except ruin. Let him carefully think over all I have said. Let him think over his own experience—that's the thing. Has he made money at backing horses? I mean, in the long run. How much has he lost? That's the point; let him ask himself the question.

The backer of horses, as a rule, takes to it as a business by which to make money, as in every other business. Every business and profession (for a master man at any rate) is a speculation. Betting is a business, but a speculative and, I should say, the most speculative kind of business there is. There is nothing wrong or sinful in betting. But it is a business so very speculative, so very much against the backer, that, as I hope I have proved, it is a fool's game, and for business considerations only it is best left alone.

In addition, however, to the reasons before set out, why the backing of horses never will pay any one (let "the sportsman" be never so clever and cunning), there are in addition other and more potent reasons of force. Yes! forcible reasons why the *respectable* person should not meddle with it, at least, until the greatest reforms have taken place.

Look, for instance, at the class and character of those regularly participating and taking part in betting pursuits and attending race meetings. Think for a moment who and what the majority are. I advisedly say the majority, and I wish to emphasise it. Ask the police; ask the railway people; ask any one who has to come in contact with them. Betting and the race meetings collect together huge assemblies of the lowest and vilest scoundrels on earth—thieves, cheats, ruffians, highwaymen, vagabonds, returned convicts, castaways, ne'er-do-wells, welshers, card-sharpers, tricksters, foul-mouthed quadrupeds, villains, and the worst form of

humanity that it is possible to get together—many of them superbly clothed and well dressed—all, all, in some way or other preying upon the thousands upon thousands of the fools of backers in one way or another. This is truth; deny it who can! Can any one name an attraction that draws together one-tenth of this scum of the earth? No; we all know it. Don't let me be misunderstood, for goodness' sake! I am not inferring that all who attend race meetings are to be classed in the above frightful category. Certainly not. We have the very best people—the most respectable, the politest of persons, from the highest in the land to the lowliest—in their thousands also; but I should say that for every respectable person there are fifty otherwise.

Every decent sportsman will, I am sure, corroborate my remarks and join me in protesting against the apathy that exists in not clearing the race meetings of the human filth and vile scum and villainy that they now attract. Every respectable bookmaker desires it, for he is a great sufferer in consequence. He goes about in fear and trembling; he has always to be on the alert against assault and robbery; he has to pay heavy expenses to protect himself, and, above all, his occupation is universally condemned by “society in general” (I mean by those who do not enter into sporting matters) as a low, detestable one, and he is looked upon as a doubtful character, as a pest to society, principally through the doings of the army of scamps I have referred to. A respectable bookmaker sees a welshing job going on—a downright robbery taking place. He sees welshing in its various forms; he would like to expose it and the parties taking part in it, but he positively cannot do so. He must silently acquiesce; he must not on any account open his mouth, or—or what? Why, his life would not be worth two penn'orth of cold gin, as the saying goes.

“Yes,” you say, “how can all this be altered? What is the remedy? Tell the Royal Commission now sitting and inquiring into this subject. They will thank you!” Well, I will answer these questions simply and at once.

1. You must make every race meeting “a place,” and abolish betting there as it is now openly carried on.

NOTE.—The law as it at present stands is an absurdity. If it is illegal to bet in a house or street, it should be just as illegal

to bet at a race meeting or elsewhere. Such a simple alteration of the law would at once sweep away much of the human filth, and be of inestimable benefit to the honourable bookmaker proper. There is no mistake about it; it must be done if the present awful state of affairs is to be done away with.

2. Betting you will never stop; but it can be controlled for the benefit of the community at large, and so you must license the bookmaker. In so doing you must not give a license to any one who thinks fit to apply for one—such as an auctioneer gets his license, or a person keeping a horse or dog gets his. No! no! no! The licensed bookmaker must be a highly respectable man—never been in trouble; and he should be required to deposit in Somerset House or some other Government place a sum of money—say £500 or £1000—to prove his responsibility, which should be attachable for any proved unpaid claim against him. The licensed bookmaker should then be permitted to make bets on the race-course only. His license should be subject to revocation for misconduct.

3. All bets should be in writing, or rather tickets should be given similar to a pawnbroker's way of doing business, and amounts due to either party should be recoverable at law.

NOTE.—The suggestions 2 and 3 would, I believe, positively abolish welshing: would be welcomed by all honourable sportsmen, and, above all, would positively purify the various race-courses, and put a permanent stop to the hundred and one forms of abused and nefarious betting which now are rampant throughout the land.

4. A law should be made abolishing clubs, or offices, or houses kept by starting-price bookmakers; and it should be illegal to carry on a betting business either personally, by letter, or by telegram, except on a race-course by a duly licensed bookmaker.

NOTE.—My brother bookies will open their eyes in abject astonishment at this suggestion, and all kinds of awful anathemas will be heaped upon my poor old anonymous noddle, quite unnecessarily and too soon, for they would soon see that such a step would be to their benefit. Again, be it observed, that unless betting is to be absolutely abolished altogether, the small sportsman, with the harpy, the welshers, and the villains, must be got rid of to make betting a respectable business, and to rid it for ever of the fearful and deserved disrepute that now surrounds it. Well, do away with the stay-at-home S.P. bookmaker, and there is the remedy! All good S.P. men can as well carry on their business at a race meeting as at home; and if they cannot—well, turn it up! Starting-price bookies are the great sinners with the small backer; it is with them that the workman, the clerk, the shopman, the small tradesman—to sum up, the impecunious backer, all go or do business with, and it is principally and mainly with them that the betting is done; it is they who foster small betting, and thus indirectly are the cause of nearly all the disrepute which hangs around betting revealed from time to time in the police courts and in other ways. Abolish the stay-at-home S.P. bookmaker, with clubs, his offices and houses, and the very greatest blessing will at once be conferred upon the bookmakers generally, and upon the community at large. It is positively astounding to think of the thousands of S.P. bookmakers—large and small—mostly small, miserable, moneyless beings, scattered all over the country everywhere; these are the men who do the business with the men and persons who have not the means to and certainly have no right to bet. Do away with this business, and the atmosphere will be enormously cleared.

5. Now something must be said about the newspapers, for they are very great sinners in encouraging small betting. I am, however, more particularly concerned about the small backer, the ruin he brings upon himself and those connected with him, and the discredit he brings also upon the legitimate betting business. The man who can attend the various race meetings, and

there can see for himself what is going on, the number of the horses running in a race, the jockeys riding, and knows the odds for and against, is, of course, in a far better position than the stay-at-home backers, or in other words the “small sportsmen” who have neither the means nor the knowledge to bet on horse-racing, and simply do so almost in the dark, on mere chance, or mere newspaper tips, naps, and advice written the day before the race. The morning halfpenny papers, of course, get much of their information from the large daily papers. “Morning betting” has been proved to be (as we of course know) entirely fictitious, and so is much else referring to sporting matters and supposed ante betting. The small stay-at-home sportsman absolutely relies on newspaper recommendations, good or bad, to guide him, and so if the publication of betting prices is prohibited, and also it be made illegal to give “selections,” and to recommend any horse or horses to bet upon, the “good thing of the day,” “to back it win and place,” and the many other ways in which backing horses is publicly and openly and in many cases suspiciously advised and recommended, is made illegal and prohibited, such a step would be welcomed by the good bookmaker, would cut away much nefarious doings, and would confer a lasting benefit on the small backer in general, although possibly he might not at first see it. There need not be anything to prevent the usual reports of race meetings, including the betting thereat, with the starting prices and the usual reports of horses entered for the various races, with their chances of winning; that is all right enough, but it is the wanton and mischievous system of “selections,” “naps,” and recommendations to bet that does the harm to the small backer, and to racing in general.

Another matter is that “tipsters’” advertisements should be entirely suppressed. Of course many of the large daily papers refuse them altogether. Unfortunately, however, they are permitted in other papers. How any person with a grain of sense can send coin to any of these advertising tipsters is a marvel to me. Still they flourish on fools’ money. Read through the said advertisements and form your own opinion. Let any sensible person put it to himself. If these tipsters are so sure, why don’t they themselves back their predictions, and secure the easy fortunes they advise others to get?

Turf commission agents’ and Turf accountants’ advertisements should also seriously be revised. I am, of course, not condemning the well-known

firms doing business under the above designation, but for every safe, respectable man there are many “wrong uns,” so the only plan seems to be to seriously revise the advertisements, or reject them altogether. Besides, every one knows that the descriptions are incorrect. What is a Turf commission agent? What is a Turf accountant? Generally a “starting-price bookmaker.” But such descriptions are also used by suspicious persons having no genuine occupation of the kind, simply to hide their identity. Thus my suggestion will be, I am sure, welcome to the *bona fide* firms.

The Jockey Club do not now settle betting disputes, nor do they openly countenance “betting.” The races are *supposed* to be run on the same lines as athletic sports are conducted, viz. the prizes offered of themselves are expected to be of sufficient value to induce owners of horses to compete. Oh, what a big farce! Of course, many of the wealthy owners keep race-horses solely for the sport and honour of winning races, and do not care a fig for betting, whilst of course, on the other hand, a vast number of owners of horses look to betting as the means to recoup their heavy expenses, and to “win a bit” besides—in many instances vainly so—for it is admitted all round that owning race-horses is a very expensive sport, and can only be indulged in by persons having “lots of coin.” It is, however, quite impossible to disassociate horse-racing from betting. Stop the betting at race meetings—give prizes only—and what would be the inevitable result? Why, the race meetings would almost cease to take place.

Now, to all interested in a business way with racing, viz. the race-course company, the trainer, the jockey, the bookmaker proper, the newspaper proprietor, and many others, it must be apparent, that unless something soon takes place, legally, to “clear the course,” and to prevent betting by small impecunious backers, that an Act of Parliament will be passed to stop betting on horse-racing altogether. Make no mistake, it will assuredly come, unless the small sportsman who has no means to speculate in betting is got rid of. It is the small backer who really has caused and is causing all the mischief. It is he who supports the host of vagabonds and thieves I have referred to, and so, in conclusion, I sincerely hope and trust that all my respectable brother bookies will take all I have said in good meaning, and as being written for the best. Let them unite with me to bring about the reforms hinted at in this scribble. I have pointed out, I think, clearly to the small backer that in backing horses he can but lose his money. Let the

thousands of them all over the country seriously consider, with common sense, the remarks I have made, then I am certain that they will “turn up the game.” Leave betting to those with money to rashly speculate, and then the small, petty sportsman will do himself a good turn, and would very much oblige the legitimate bookmakers, who would then cease to designate him “The Deluded Sportsman.”

Finally, I am egotistical enough to say that if the alterations and reforms I have sketched out above are resorted to, that the Turf scandals which so frequently take place would not and could not arise.

GAMBLING AND CITIZENSHIP

By J. RAMSAY MACDONALD

The devotees of the Goddess of Fortune are found in all societies, from the Kaffir tribe to the sensuous coteries of our own civilisation. The moment of uncertainty which lapses between the casting of the dice and the discovery of the result, between the dealing of the cards and the examination of the hand, between the starting of the ball and its settlement in a pocket, is an alluring experience which rules conduct in proportion to the weakness of the moral character and the disorganisation of the intellectual life. The unknown must always have a fascination for men, and that fascination, centred on trivial things and joined with cupidity, marks the low state of intelligence and morals in which gambling flourishes.

I

Almost every observer to-day agrees that betting has reached colossal proportions and is still increasing. At the street corner, in the newsagent's and tobacconist's shop, in the barber's saloon, in the club, in the public-house, in the factory, the bookmaker or his agent is ready to receive the money of men, women, and children, and victims of the habit are at hand to lead astray the novices still uninitiated in the worship of the seductive goddess.

The chief characteristic of the present outburst of the gambling habit is that it is becoming a class disease. People of experience seem to be pretty much agreed that those living on the marginal line of poverty and those on the marginal line of respectability are specially liable to fall victims to the habit. Both of these classes have in common a feeling that their lives are profoundly unsatisfactory. The dreary drudgery of the life of a wage-earner who oscillates between 15s. and 25s. a week, with an occasional turn of nothing at all; the unsatisfied craving in the life of a man too proud to take

his place amongst the working classes but too poor and despised to be received in professional ranks—can only lead astray those doomed to them.

To both of these marginal groups the mental excitement and pecuniary allurements of “trying their luck” are almost irresistible, and, though they join in nothing else and in every other respect are poles asunder, they go together to throw their coppers before Fortuna lest haply she may return them favours an hundredfold.

That, I take it, is the most significant feature of the present spread of gambling. It is the evidence of social failure showing itself in the conduct of social groups or classes. It therefore flourishes with other disquieting symptoms, such as the inordinate love of spectacular effect, the demand for mere amusement, the distaste for serious and strenuous effort, the spread of drunkenness—all pointing to a poverty of personality, a bareness of the inner chambers of the mind, occurring in such a way as to indicate that we are faced not merely with the moral breakdown of isolated individuals but with the results of a serious failure on the part of society. We have to deal not merely with individual lapses but with a social disease. From that point of view this paper is written.

Much has been written upon the gambling motive, and I am not sure that the final word has yet been said upon it. Certainly the simple explanations of it as a “sin” do not meet the facts of the case. Avarice does not explain it, because the avaricious do not risk fortunes on the turn of a wheel or the tip of a stableman. And yet avarice enters into the gambler’s character. The pleasure of possessing does not explain it, because if every gambler were to be made as rich as Cræsus he would gamble the more. I am inclined to believe that the workman gambles to charm *ennui* away from his doorstep, and having begun he goes on partly in the hope that he will recoup himself for his losses, partly to continue keeping *ennui* away. Roughly, the same motives influence the other gambling class—the clerks and the other wage receivers who would fain believe that they are paid “salaries.”^[2]

But the particular character of the disease which is bred by the social circumstances of these classes is determined by the law of imitation. As we used to imitate Milan in our millinery and Paris in our dresses, so for our habits there is a class to which we look. If those habits are of the nature of luxuries, we borrow and adapt them from the luxurious classes, and having

thus become indebted to these classes we associate our wellbeing with theirs. A parasitic feeling is engendered, and this feeling in turn strengthens the original motive which started us upon our imitative course. Thus we move downwards in a vicious spiral. We must therefore trace the vigour of the present gambling disease not merely to the failure of society to satisfy the appetite for *life* gnawing unsatisfied at the hearts of whole classes, but to the active existence elsewhere in the same community of sections of idle rich.

Gambling is a disease which spreads downwards to the industrious poor from the idle rich. In its most common form, betting on horse-racing, it is the only way in which the outcast plebeians can be joined with their betters in a bond of freemasonry. An elevating knowledge of distinguished jockeys and an exhilarating acquaintance with the pedigree of horses raise the poor parasite to the level of the rich one and make them both men and brothers. One has to go to some famous horse-racing event to appreciate fully the meaning and the force of this.

Consequently, we should expect theoretically to find the gambling habit amongst the poor break out into chronic virulence at a time when the idle rich had received some sudden accession in strength, and when they were blazing forth into a new brilliance of vicious habit. Is not that the case to-day? Did not the serious spread of gambling downwards coincide with a renewal of the splendours of our non-productive, luxurious rich?

Within recent years this class has undoubtedly increased in power, and with that, as has always happened in history, its morals have been degraded. Those who ought to know tell us that not since the days when Brooke's was in its glory and Frederick was waiting with impatient anxiety for the death of his demented parent, George III., was gambling so prevalent and personal vice so common in society as it is to-day. I have heard on most excellent authority of several thousands of pounds changing hands during an after-dinner game of bridge, at a house which was not the haunt of prodigals, and amongst people who would be insulted if they were called gamblers; certain circles of men and women not very far removed from the centre of political life, who a few years ago spent their spare energies in investigating the mysteries of theosophy and dabbling in the weird, have now turned with absorbing interest to the ubiquitous card game, and guests

who do not join in the gamble—often the swindle—find themselves unprotected by the manners which held a guest as sacred.^[3]

The sudden flood of easily gotten wealth which came mainly as a result of the exploitation of South Africa, and also partly in consequence of the financier acquiring control of trade by the development of the large over-capitalised syndicate, has not only created a new Park Lane, a *nouveau riche* and therefore a vulgar one, but has brought in its train a low personal and social morality, and has created in our society purple patches of decadence which can be placed alongside the rotting luxuriance of the Roman Empire. It was so in France when Law's financial schemes set everybody dreaming of an age of gold and paper money; it was so with ourselves when the South Sea Bubble was being blown up; it will always be so under like circumstances. The influence spreads from one end of society to the other. It colours our newspapers. The tinsel spectacle excites the imagination of the common man or woman. Our charities and philanthropies hang upon the trains of luxurious vulgarity.^[4] In a subtle way the grossness at the top percolates through to the bottom, and the plebeian in his own special heavy-footed style dances to the same sensuous tune to which the feet of his betters are more daintily tripping. From the vicious social conditions at the top the gambling impulse finds its way to the bottom. Imitation of the upper classes, even in the most democratic of societies,—and ours is far from that,—continues to have an important influence in the life of the people. Such is the origin of the disease. We must now consider some of its effects.

II

If gambling comes from a poisoned source, it poisons the life with which it is in touch. Other writers in this volume are dealing with the personal and family disasters for which it is responsible. I confine my attention to its influence upon citizenship, upon the persons upon whose intelligence and character rests the fabric of the State and the community.

The gambling disease is marked by a moral and intellectual unsettlement, by an impatience with the slow processes of legitimate accumulation, by a revolt against the discipline of steady growth and sustained action. The gambler lives in a state of unnatural strain. Like an insane person, he stands

on the threshold of a grandiose world the high lights of which throw the sober realities of the real into shadow. Moreover, his vice develops the self-regarding instincts into hideous and criminal proportions. What is all this but saying that it cuts away the roots of good citizenship. For good citizenship depends upon a moral discipline which enables a man to pursue, undisturbed by outward event, calm amidst storms of fortune, some desirable social end; it is dependent upon the development of the social conscience in the individual; it flourishes only when men seek after the more solid gains which come from honest work and faithful endeavour. The people to whom the gains of life are but the prize-winnings of a game of hazard, who flock to spectacles, whose sports consist of looking on whilst professionals display their prowess, are but decaying props of State.

Individualists would make us believe that citizenship is not part of personality, for otherwise their antithesis of man *versus* the State would be inconceivable. But the antithesis is purely verbal, and does not in reality exist. Man's personality is complex, but it is a unit; his public and private actions may be many sided, and for a time may spring from opposing moral sources, but in the end their exercise blends the opposing sources and changes the individuality. For instance, no people can rule itself democratically at home and govern other peoples autocratically abroad. The home democracy in time becomes tainted. The moral sources of one system become blended with the polluted sources of the other. And so it is with the character of the man and the citizen. The citizen cannot act contrary to the man.

One need hardly trouble to appeal to history to prove these statements. A parallel between our present state of society, rotting with luxury and intoxicated with excitement, and the Roman Empire in the days of its decline is on every moralist's lips and is becoming hackneyed. Philip of Macedon, it is said, encouraged gambling amongst the Greeks, on the ground that it corrupted their minds and made them docile under his rule. From time to time in our own country the gambling mania has become chronic, the last of these outbursts being about a century ago, when Brooke's and White's stripped their foolish victims, and when the flick of cards was heard throughout the abodes of fashion. Of that time Sir George Trevelyan writes:—

The political world, then as always, was no better than the individuals who composed it. Private vices were reflected in the conduct of public affairs; and the English people suffered, and suffers still, because, at a great crisis in our history, a large proportion among our rulers and councillors had been too dissolute and prodigal to be able to afford a conscience.^[5]

The gamblers were in power. There was plenty of party but little politics, and what politics there was was largely an art of recouping gaming losses from the public purse. Public life was saved only by the political overthrow of the gambling aristocracy. Fox, possessing though he did a genius which could throw off the taint of his circumstances, failed mainly owing to his lack of steadiness, dignity, prudence, and industry,^[6] and these were precisely the deficiencies which his gambling habits would accentuate. They are the moral and intellectual results of gambling, and follow it as inevitably as gout follows wine-bibbing.

Those of us who fail to see any road leading to a desirable state of society save the political one, those who still believe that democracy is the only form of government under which men can enjoy the blessings of full citizenship, those who consider that in spite of the likes or dislikes of ruling classes government tends to depend more and more upon the sanction of the common people and thus becomes an ever more accurate reflection of their character, can view only with alarm the rapid spread of gambling habits amongst the masses. Where these habits prevail the newspaper, which should be the guide of the citizen, is read not for its politics but for its tips, for the racing news printed in the “fudge,” not for the subjects it discusses in its leader columns, and so is degraded to being the organ of the bookmaker. This does not merely mean an extension of its sporting columns, but a revolution in its tone and its staff, in response to what really becomes a revolution in its functions. Men who are too weary to think, too overworked to attend political meetings or take positions of responsibility in their trade unions, can nevertheless speak authoritatively about the pedigree of an obscure horse and the record of a second-rate footballer.

This, like all other backward steps to a lower stage of moral effort, is easy. For social conduct is the inheritance of complicated experiences,

retained only by sleepless vigilance, and exercised by the subordination of the individual will to the social conscience. It is therefore comparable to those high forms of chemical compounds built up of many atoms but exceedingly unstable. The simple presence of a disturbing element shatters the compound and reduces it to its primitive atoms. Man's self-regarding and primitive instincts are constantly threatening to disjoint his social character and defeat all movements depending upon that character for their success. To hope, for instance, that a labour party can be built up in a population quivering from an indulgence in games of hazard is folly. Such a population cannot be organised for sustained political effort, cannot be depended upon for legal support to its political champions, cannot respond to appeals to its rational imagination. Its hazards absorb so much of its leisure; they lead it away from thoughts of social righteousness; they destroy in it the sense of social service; they create in it a state of mind which believes in fate, luck, the irrational, the erratic; they dazzle its eyes with flashing hopes; they make it, in other words, absolutely incapable of taking an interest in the methods and the aims of reforming politicians. They lay it open to the seductions of the demagogue, to the blandishments of the hail-fellow-well-met type of candidate, to the inducements of the common briber, to the flashy clap-trap of the vulgar and the ignorant charlatan. And the discovery that such classes exist in the community will very soon be made, and the whole tone of public life lowered to suit their tastes. It is not without serious significance that in recent elections one of the most common forms of argument (sometimes used by both sides) has been an offer by the candidates to back up statements they had made by sums of money. "It is not so much," says Loria, the eminent Italian sociologist, "the personality of the elected as the character of the class which elects that really counts." I do not say that this is to lead to rapid and irretrievable ruin. Rome bore the burden of a luxurious and gambling class of citizens for centuries. But I do say that the spread of the gambling habit is one of the most disquieting events of the time for those particularly who believe in self-government and in an intelligent democracy using its political power to secure moral and social ends. Every labour leader I know recognises the gambling spirit as a menace to any form of labour party.

III

I have, finally, to consider what good citizenship has to say to gambling, and how it proposes to deal with the matter.

We must remember that this, like so many other vices, is only a degraded and degrading form of expressing a natural human need. Indulgence in gambling is universal in primitive society, where it is closely associated with religion, and at no time is it absent from the larger and more absorbing transactions of civilised life. It is intimately connected with the dominating type of will and the unflinching determination of men to control. The gigantic strides which the United States have made in industry have been possible only because the Americans have not flinched in facing enormous hazards. This spirit finds apt expression in the verse of that romantic embodiment of the love of hazard, the Marquis of Montrose—

He either fears his fate too much,
Or his deserts are small,
Who does not put it to the touch,
Or gain or lose it all.

In the evolution of the race an important part has no doubt been played by the men and the communities whose self-confidence was sufficiently strong to enable them to make large drafts upon the unknown. Abnormally and respectably—as in the form of genius—this spirit gives us “the man of destiny”; abnormally but not respectably—as in the form of burglary—this spirit gives us the high criminal. Normally, properly controlled and toned, it gives us the successful man of business, the leader and inspirer of men. This playing with the unknown in the faith that the fates are favourably disposed has undoubtedly been, and is still to be, a very important spur to energy, and one of the determining factors in national survivals in the future. Indeed, it is inseparable from human nature. Men will not tolerate a uniform drudgery, they will not live in a world which is nothing but a featureless expanse. And this intellectual appetite for risk, for projecting one’s self on to the silent stream of fate upon which the barque of life mysteriously floats, must be satisfied either legitimately or illegitimately, either in accordance with sound morals or in the teeth of sound morals. The latter will be the case if we condemn, as we do now, large sections of our population to conditions of life from which their intellectual nature can get no satisfaction. The appetites of that nature will not die away. Its functions will not atrophy and

degenerate. It will simply accommodate itself to its circumstances. If it cannot command the food of the gods, it will fill its belly with the husks which the swine do eat, and find a troubled satisfaction in its degradation. “To be confined in the dark, or without occupation, is to be made the victim of subjective tedium,” says Bain.^[7] We have confined our people in the dark, and they are gambling to break the tedium.

Consequently, when we consider the responsibilities of citizenship for the spread of the gambling disease with a view to devising some cure, we shall have to begin by assuming that prohibitive Acts will not carry us very far. We can stop bookmakers or their agents receiving bets in the public streets or any public place; we can turn them off race-courses and refuse to recognise any enclosure as sanctuary. We can even go further, and prosecute any one who receives from another betting payments on any event whatever. This last would be going very far—too far, perhaps, to be practical. But at any rate we could prohibit the receipt of money from children. We could also stop the publication of betting news, and our Post Office could refuse to transmit circulars encouraging the gambling appetite.^[8] We might even combat successfully the much more difficult problem of how to prohibit gambling at church and chapel bazaars. But, when we have done all that, we have not gone very far. We have simply restored life to its old, dull, monotonous drab, and we have turned the natural instincts which the gambling habit satisfies from feeding at one trough to find husks in another. To the great mass of the people we shall but appear to be smug Pharisees, and a reaction will set in which in its aggressive strength will play much greater havoc than even the steady growth of the disease before it was challenged. Time after time the failure of the reform campaigns of outraged respectability in America has taught this simple lesson in moral politics. One cannot devastate and then say, “Behold the good!” The gambling habit must be elbowed out, not stamped out.

I would be exceeding the purposes and limits of this paper did I attempt to sketch a programme of reforms which in my opinion would do the elbowing. I can only indicate the skeleton of such a programme, and I do so, not so much to urge my readers to accept it, as to emphasise that the attack upon the gambling habit can be successful only if it is positive and constructive, and not merely negative and prohibitory.

When we try to get to the root of our social vices of to-day we ultimately find ourselves contemplating the sad effects of the steady stream of population away from the green meadows on to the grey pavements. Overcrowding in the towns and dilapidation in the villages are the result. At best, under existing conditions there must always be a fringe of our city population living from hand to mouth, contracting the character of the casual and the loafer. But this fringe is made much broader by the present urban immigration; the tarnished threads in it are of finer quality than they would be otherwise, and the original excellence of some of its stuff makes it all the more prone to vices of certain kinds. The problem which good citizenship has to solve then, it seems to me, is twofold. It has to discover how people can be induced to stay on the land, and how, in towns, they can be provided with proper surroundings. The only hope of a rural population in England is the spread of intensive cultivation and of co-operative agriculture,^[9] and that again can hardly become general until our present system of landlordism is broken up and public authorities own the land and let it to suit the convenience of cultivators.

The town problems must be solved by a combination of public and private associated effort. We must give up all hope of private owners being able to supply decent houses at reasonable rents. The municipality should become the sole housing authority within its own area, and where it spreads out its arms of tramways beyond its own boundaries it should be able to develop building estates on its lines of communication. With a housing and tram policy should be combined a recreation policy, for it is the lack of recreation in modern city life which leads to so many vicious indulgences. Parks, music, museums, libraries, hardly touch the needs of the workman no longer on the sunny side of thirty-five, wearied after a day's work. The public-house or the workman's club is his resort.

Here we come to the centre of our difficulty. We cannot meet the needs of the average workman who is not a teetotaler unless we place the public-house under public control. This seems to me to be the first step, not only towards national temperance, but towards the provision of that rational amusement which is to protect our industrial population from vicious allurements.^[10]

But when all these facilities for an intellectual life have been provided, they will be in danger of being neglected unless the people who are

supposed to benefit by them are led to pursue worthy human ideals. The appreciation of the worthy is an inward quality. Here we come to the saving grace of political convictions, the purifying effect of citizen ideals. An immunity from anti-social indulgences depends upon the general diffusion through society of an active desire for social improvement by democratic means. This acts in two ways. It first of all quickens the social conscience and the moral pride of the common man, and it also safeguards him from imitating the vices of the worthless upper classes, which, without the opposition of a strong democratic spirit, become the models for the recreation and amusement of the masses.

Hence, turning once more for a moment to consider the causes which have led to the present slackening of moral fibre, I find one of the most important to be the loss of the democratic fervour which characterised the people during about three-quarters of the nineteenth century. The people have lost taste for politics. The generous enthusiasms of 1848 are criticised by the aged youth of our schools to-day as having been over-sentimental and mere dreams. At any rate, they gave us sound literature—Tait's *Edinburgh Magazine*, Chambers's *Papers for the People*, Cassell's *Popular Educator*; they laid the foundations of a most important part of democratic education in the Mechanics' Institutes; they gave birth to a self-reliant generation of working men. Until citizenship, radiantly setting out towards the splendour of a perfected humanity, attended by a train of the beatitudes which the heart and mind of man have been ever seeking, commands the allegiance and the services of our people, the crowd, obedient to the necessity to worship imposed upon it by its nature, will bow to false gods; and men, obedient to their intellectual promptings to dally occasionally in the temple of Fortuna, will do so in the gross, the only, way which is at present possible for them.

EXISTING LEGISLATION

By JOHN HAWKE

When the intelligent public has become convinced of the existence of a great social evil, it wants to know, in the first place, what laws are in existence which can be applied in remedy of it, and what amendments of the law are needed.

The text-books upon the present laws, through no fault of their authors, are somewhat obsolete, owing to recent not altogether consistent decisions of the Courts, although *Law Relating to Betting*, by G. H. Stutfield, and *Law of Gambling* (Coldridge and Hawksford), contain much valuable information. The following summary is intended to present a skeleton view of the legal position at this date, and for sake of convenience the subject is divided under the two heads of Miscellaneous Gambling and Betting. Whichever portion of the subject is treated, it will be observed that the laws are both inadequate and not fully applied.

Miscellaneous gambling must be subdivided into (M) all kinds of individual gaming unconnected with trade; (N) gambling in the stock, produce, and other markets.

MISCELLANEOUS GAMBLING

M. Individual Gaming unconnected with Trade

- (a) Illegal Games.
- (b) Card Playing.
- (c) Playing with Gaming-Machines.
- (d) Lotteries and Sweepstakes.
- (e) Press Competitions and Coupon Gambling.

(f) Gambling Clubs.

(g) Petty Gambling.

(a) Illegal Games; (b) Card Playing.—The old-time absurdity of making certain games illegal, because they were the ones chiefly used as vehicles for gambling and left little room for skill, seems to have resulted in throwing upon the Courts the difficult task of deciding what other games come near enough to this class to share their disabilities, and to have culminated in shaping the law in a direction very unfortunate for public morality, so as to present a modicum of skill as a sufficient leaven to create immunity for a very large element of chance. The gambler avoids, as a rule, the named illegal games and turns to others. Blackstone remarks upon his infinite shifts and the varieties of his expedients, so that to pass laws especially applying to some games only merely drives him into other courses.

The true principle is that no game in itself is illegal, but that the gambling upon it may be. While the present laws make special regulations and enforce specific penalties upon certain games, others which may easily be as noxious cannot be dealt with. Consequently we have spasmodic and partial attempts to enforce the law, and a series of enigmatic and conflicting decisions in the Courts, resulting in a chaotic state of affairs in which little check is put upon gamblers.

(c) Playing with Gaming-Machines.—Notwithstanding that roulette is an illegal lottery, it is an unhappy fact that of late years it has been much more played than formerly. An inspection of tradesmen's catalogues, and a glance round the departments at the stores, tends to confirm the impression that it and like games are becoming much more common. A member of the Bar who many years ago took the silk gown, and who was known to be averse to gambling, although going a good deal into society, has noticed how often the green cloth appears not long after dinner, sometimes after a postponement until he and those of like mind are about to leave. Its public use may have been put down, but in private houses and in clubs the roulette-table has multiplied its numbers. Here again, in connection with gaming-machines, corruption has spread and gone lower down. The automatic machines, at first used for the sale of sweetmeats, have been altered so as to be made the vehicles of gambling amongst the poorer

classes, and especially children. They have already done irretrievable harm. Investigating the subject in the East End of London, the writer of these lines was told by a responsible person that they had taken such a hold upon the young that, while in classes of poor boys comparatively little difficulty was found in obtaining pledges not to drink and smoke, much reluctance has been evinced with regard to promises to give up petty gambling. Upon one occasion a bright boy flatly declined to add such a pledge to others, saying that he could not give up the excitement of using his coppers in this way. Most of the police prosecutions have been successful, and fines have been imposed under sec. 44 of the Police Act; while the machines were without hesitation pronounced to be illegal upon licensed premises. It may be hoped that the latest decision in *Fielding v. Turner* in the Divisional Court will go far towards stopping their use for gambling, now that they can be confiscated. So serious a matter had they become that the Home Secretary has promised to strengthen the law if need be. But the eagerness with which the temptation they offer has been responded to by the poorest of children should be a warning to the authorities against the old looseness of interpretation in the matter of laws against gambling. For children, at least, the old nonsense about skill and chance should be entirely swept away, and severe penalties enforced against all those who tempt the young in this manner. If not, the growing generation will be worse in gambling than the present one, and instead of a nation with a large minority devoted to the vice, it will develop into a general habit in which the majority are involved in one form or another.

(d) *Lotteries and Sweepstakes*.—Lotteries are matters of pure chance, which have been gradually restricted by a long series of statutory enactments; and in 1823 the last form, that of the public lottery, was abolished, the sole remaining exception being the ones connected with Art Unions, which have since been discontinued. Lotteries were found to be debauching the public and affording opportunities for fraud, but have not been wholly got rid of, as they are still carried on in connection with charity bazaars and in the form of sweepstakes, chiefly held upon horse-races. These latter, when subscribed privately and in clubs, are winked at by the authorities, but fitful prosecutions against publicans and others are heard of from time to time. Bazaar raffles, “fish-ponds,” etc., are no less illegal lotteries than sweepstakes under the Lottery Acts; they come within the provisions of 12 Geo. II. c. 28. It has, unfortunately, become customary for

the authorities to take no action when raffles are held for charitable purposes, but all the churches of late years have been condemning the practice, and it is coming to be looked upon as a disreputable one, so that the law might now be enforced without any serious conflict with popular sentiment. It should be enough for clergy and ministers, however, to know that in the strict eye of the law those who have anything to do with bazaar raffles are rogues and vagabonds, if this is necessary to supplement the consideration that true religion must lose more than it gains by proceedings which have frequently involved the first step taken by the young in the paths of hazard, and led them into a career marred by misery if not crime. The existing statutes do not give the Post Office authorities sufficient powers for the detection and destruction of lottery matter; and the protection of newspapers advertising lotteries by 8 & 9 Vict. c. 74, making the fiat of the Attorney-General necessary for prosecutions, is considerably abused.

(e) *Press Competitions and Coupon Gambling.*—This is a most serious branch of the evil, for which the press is very largely responsible. Its grossest manifestation occurred some years ago in connection with horse-racing and football playing. Unfortunately, some years prior to this, in 1895, a judgment in *Stoddart v. Sagar*, the scope of which was mistaken by the public authorities, was held to rule the pernicious system outside of both the Lottery Acts and of the Betting House Act of 1853, and the question was neglected, with the consequence that the system grew to such an extent that in the year 1900 it was brought prominently before the council of the National Anti-Gambling League. Upon investigation they found, amongst other flagrant instances, the case of an obscure so-called sporting paper, the circulation of which had been raised by means of these coupons to 100,000 a week. At the trial of the proprietor, evidence was given on behalf of the General Post Office that the letters with remittances were so numerous as to necessitate a special delivery amounting to 20 sacks weekly. By evidence given by the London and Westminster Bank it was shown that £63,680 was paid in to the account of these valued customers in the first six months of 1900; and the prizes paid away to successful gambling competitors had risen from over £10,000 in 1897 to over £27,000 in 1898; over £47,000 in 1899; and to September only of 1900, to £46,000. It was not merely a penny or a shilling gamble, as any number of penny lines could be filled in in the coupon, and any number of coupons could be used by the same person,

special directions being published in the paper to save those competitors trouble who were dealing in a large number, so that hundreds of pounds could be arranged for in a few minutes, and cheques remitted. The receipts of this one establishment in postal orders, etc., were shown to amount to £2000 to £3000 a week. The prize for the Lincoln Handicap of 1900 was £3000. The Courts unanimously decided that these coupon schemes came within the scope of the Betting House Act of 1853. This was confirmed in later cases in the King's Bench Division and Appeal Court, and the judgments incidentally comprised the most valuable decision, *that deposits to betting-houses were none the less such if received indirectly, and not at the premises*. One loophole was left. The 1853 Act may not apply to betting-houses abroad. The proprietors moved their offices across the Channel, continuing their advertisements in the low sporting papers, and these were even admitted to otherwise respectable prints, tempted presumably by the higher rates shown in Court to be paid for this class of advertisement. An attempt was subsequently made in prosecuting *The Sportsman* to put a stop to this, but the King's Bench Division held that section 7 of the 1853 Act relating to advertising could not be considered to cover these advertisements, although the judges expressed their regret, and the Lord Chief Justice laid stress in his judgment upon the necessity for legislation.

As matters stand there are two difficulties, viz. (1) betting-houses abroad (they are generally kept by British bookmakers who have moved across the Channel) are probably outside the scope of the 1853 Act, although their business is done by attracting the custom of the British public by advertisements in our newspapers and receiving bet deposits through our Post Office; and (2) the advertisements in question are so worded as to evade the precise terms of section 7 of the 1853 Act, so that the conniving newspapers cannot be punished. The consequence is that the nefarious business is carried on from offices abroad, and will be until stopped by a new Act. Cheating by the proprietors was common enough at the offices in the United Kingdom, but has greatly increased now that they are more out of the reach of their dupes, and some of them are being prosecuted by the police for fraud, for which extradition can be obtained, at the present time. This, however, will not stop the gullible public from sending their postal orders in myriads to other establishments; and its not being a criminal

offence to publish in British newspapers, etc., advertisements of foreign betting-houses is one of the defects of existing legislation.

In addition to the above, however, organs of our low-class press, and other journals which might be expected to maintain some ethical standard, have been competing with each other in offering so-called prizes, frequently of high value, for all sorts of competitions, some depending much upon chance, and others cleverly disguised; the latter, unfortunately, penetrating to homes where the very thought of betting would be a scandal. Much demoralisation has been caused by the system, and the laws are inadequate to deal with many of its subterfuges.

The Government of France has set an example to ours of prompt action, although the evil there is an infant one as compared with ours, out of which indeed it has arisen, thus adding one more to the responsibilities of our nation for its gambling laxity. The occasion which aroused the ire of the authorities of our neighbours was the distribution by *Le Petit Parisien* of £24,000 in prizes for guessing the number of grains in a certain-sized bottle of wheat. The excitement was such that in ten days the circulation of the paper more than doubled, and special shops were opened in Paris and other large towns for the sale of bottles resembling the sealed one in question.

(f) *Gambling Clubs*.—Habitual gambling in the social clubs of wealthy Englishmen has led to a very anomalous state of the law and of its application. It is not worth while to go further back than the case of *Downes v. Johnson* (Albert Club) to illustrate this. There was no serious dispute as to this not being a betting club, or that the purpose of its existence was not betting. No reasonable person could for a moment doubt that if betting were stopped the club would collapse, and the police authorities in 1895 made an attempt to bring about this result. They had good reason for knowing the evil arising from it. That provisions could be obtained, and were consumed in considerable quantities, was shown; but any serious contention that such a club was a social club would be dispelled by a visit to the premises, in an obscure court turning out of Fleet Street. The judges, however, appeared to be hampered by a desire to shield private betting, and the judgment remains the charter for organised house betting under the protection of the name of club. There are several other such large institutions in London and elsewhere (besides innumerable smaller ones), the chief of those in the metropolis being notorious gambling centres, where settling day is carried

on in the same business-like way as on the Stock Exchange. They all owe their continued existence to the reluctance of the Courts and Parliament to deal with the card and Turf gambling which goes on at the well-to-do clubs, and thousands of gambling centres all over the country are shielded by this unhappy partiality.

The above decision may be said to have broken up any efficiency of existing legislation, and so pernicious has its effect been that a very modest attempt to reduce the number of the poorer class institutions was at last introduced as a makeshift in the Licensing Act for the registration of clubs, which came into force on January 1, 1903. It is true that it only applies to clubs selling liquor, but as betting men are almost invariably drinkers it is probably comprehensive in this sense. Its inefficiency was illustrated last May by a decision of Mr. Justice Bucknill, by no means a lover of betting men, who presumably considers himself bound by former decisions. The judge must have known the extreme difficulty of the police getting evidence at all, and that it probably could not be got except by the raid, which he approved, and that a second raid after such a warning would almost inevitably be abortive. Yet, although systematic betting was proved, he ruled that it was not illegal, although it might have been so if it had been shown to go on day after day. The false protection extended to the race-course rings by the Powell-Kempton Park case would be incomplete if it were not to cover the betting clubs, and no branch of the gaming laws is more defective than with regard to these latter.

Last year the Grand Jury at Liverpool made a presentment in which they called attention "to the large sums of money extracted from the public by the so-called social clubs, which have formed the subject of several of the prosecutions which have come before us, and we feel that much harm must be done to working men and clerks belonging to the city by the assistance of these clubs." Unfortunately, while the Act in question gives facilities for proceedings against such institutions, the police are often bribed. The writer knows of more than one instance of notice of a coming raid having been secretly given by police officers. In one case in London the proprietor openly boasts his defiance of any attempt to set the law in motion against him. Matters are no better in the provinces, and are not likely to be anywhere until the police have been thoroughly overhauled.

(g) *Petty Gambling*.—A few only of the multifarious forms of petty gambling can be mentioned here, principally with reference to the temptations spread before the rising generation. Amongst them are the automatic machines referred to above, which an ever-vigilant and not too scrupulous commercial instinct has been busy in turning to account for the purpose. Playing-cards figure also under this heading as a very widespread source of demoralisation among the young, especially in poor districts. Enormous quantities are sold in this country, as statistics show, and now that they are made small and cheap they are to be found everywhere. Amongst the young—where there is no bribery or but little—the police are more active and unrestrained. Gaming with cards and in other forms in a public place is prohibited, and prosecutions in connection with them are frequently reported in the newspapers. It is consequently often followed by juveniles in the poorer class refreshment-houses, and the proprietors are liable if in any way conniving at it, as in the case of a man at Hammersmith, where fifteen boys were found playing nap, and it was shown that he charged each boy a penny by the half-hour for the table. This sort of thing is going on all over the kingdom, and between the example set by their elders and the difficulty of passing more drastic laws while leaving gambling almost unfettered for rich people, the coming race in Great Britain promises to be worse rather than better, notwithstanding all the efforts of reformers. Sir W. H. Stephenson said at Newcastle some time ago, in sentencing a group of lads for gambling, that he did not know what would become of the rising generation. Very numerous instances could be quoted of remarks showing the astonishment and despondency felt by magistrates generally. At many of the Courts hardly a week passes but what a batch of these young offenders has to be dealt with. Organised Sunday gambling is very common in numbers of districts, regular scouts and a system of signalling being maintained to outwit the police.

N. Gambling in the Stock, Produce, and other Markets

It may be said that there is positively no effective legislation in existence, if an exception be made of the Bank Act 1867, 30 Vict. c. 29, which provides for contracts identifying the shares of banks bought and sold. However thoroughly we may be convinced that much of the business in the above marts is to a great extent a matter of gaming, it is impossible to

ignore the fact that there is a large amount of legitimate business transacted in them, and that the commercial world could hardly exist without them. There is, moreover, the great difficulty of drawing a line between the commerce and the gambling. Of course the havoc and ruin arising are known to all. The Stock Exchange is probably responsible for as much loss and misery as even the Turf, and the suffering caused in Lancashire by the recent cotton gambling is but one instance, and that as it were a by-product, of the extravagant transactions of the produce exchanges. Pages might be filled with instances, such as the sale on a single occasion of two millions of a well-known railway's stock, only £500 of it being a genuine investment. Where a commercial element is inherent, and of shifting and unascertainable proportions, difficulty has hitherto been found in framing laws against gambling which would not hamper legitimate enterprise; and consequently, in our country, by leaving things alone, the gambler has been actually encouraged by allowing him to go scot free of the moderate *pro rata* dues exacted from the investor. In this particular the present laws are most unhappily defective, and when we come to deal with remedies on a later page suggestions will be made upon the subject.

BETTING

In the forefront of existing legislation with regard to betting is the great statute known as the Betting Act 1853, 16 & 17 Vict. c. 119. "This most salutary Act," as Lord Chief Justice Russell called it, was passed when betting by the deposit of ready money was carried on to an enormous extent in houses and offices in towns, and only to a very limited extent in race-course enclosures; and the Attorney-General of the day, in telling the House of Commons that the Bill was not intended to interfere with Tattersall's, was either unaware how rapidly the ready-money system at the races was growing, or designedly suppressed allusion to it, as an awkward question not absolutely necessary to be faced at the time. The Act crushed the town houses, and the business was transferred to the rings, and the question of the application of the Act to these open-air betting-shops was not decided by the (Criminal) High Court until 1897, in *Hawke v. Dunn* (1897, 1 Q.B.), when Mr. Justice Hawkins, whose knowledge of the Turf was well known, delivered an unanimous judgment on behalf of the five judges of the Queen's Bench Division who heard the case, holding the rings to be nothing

but betting-houses or places. This meant police raids upon the rings, and the writer was assured at Scotland Yard that the police force would do its duty. But the stoppage of half the race meetings in the country was involved, and the Jockey Club and the bookmakers immediately trumped up a collusive civil case—*Powell v. Kempton Park Co., Ltd.* (1897, 2 Q.B.)—which could be carried above the (Criminal) High Court. The supposed plaintiff was a clerk in the office of the business men of the Jockey Club. It could not be found that he was either a householder or a ratepayer at the suburban address endorsed on the writ. His only status was obtained by getting a single share in the Kempton Park Co. from one of its directors, a bookmaker, and within a month of the above decision a writ was issued by him under the pretext that he wished to prevent the company permitting the illegalities condemned in *Hawke v. Dunn*, but for the real purpose of re-trying the question in a form which might give a chance of overthrowing that decision in the Court of Appeal and the House of Lords. In each case the Courts were divided, but the majority of both went against the unanimous judgment of the Criminal Judges, although the collusion and misstatements were of so scandalous a nature that they were denounced by more than one member of the latter tribunal. These cases were long, but for the general public the question of whether the existing legislation of the Act of 1853 ought or ought not to have been held to apply to the rings can be put in a nutshell. All the Courts agreed that the rings must be treated as if they were capable of being “places.” How then could they be ruled out of the Act? Everything turned upon the construction of the language of sections 1 and 3; here it is, abbreviated but not altered: “Any person who, being the owner or occupier of any place, or a person using the same, shall open, keep, or use the same for the purpose of any money being received, etc.; and any person who, being the owner or occupier, shall knowingly and wilfully permit the same to be opened, kept, or used by *any other person* for the purpose of any money being received, etc.” Everything turns upon the italicised words. Lord Chancellor Halsbury and the majority of the judges took the only view under which it was possible to protect the rings, by holding those italicised words to mean a person having authority over the whole ring, a person analogous to and of the same genus as the owner or occupier, and therefore as not applying to any one of the various bookmakers carrying on business on his own account within it. Three

questions which were not asked should have disposed of this view entirely:

(1) If the *any other person* is a person analogous to and of the same genus as the owner or occupier, why is he in this second part of section 3 clearly considered to be in the subordinate position of a user by permission? And if this second part of the section does not hit such a person as the bookmaker, what possible person can it be aimed at, not already struck by the first part of the section (other than those having the care or management separately named later on)?

(2) Why did the Act immediately stop the business of the town houses? For, under the construction now given to it, the proprietor had merely to alter his arrangements, announcing that he himself would take no part in the betting, but would get his profit by an entrance fee charged to all comers alike, as the proprietors of the rings do.

(3) Under this construction, what is to prevent houses or rooms being opened in towns by hairdressers, tobacconists, or others, charging an entrance fee to all comers, but the proprietor taking no part in the betting?

Briefly summed up, the House of Lords' judgment comes to this. The Kempton Park ring owners or occupiers are not responsible, because they do not themselves carry on the business of betting in the ring; and the bookmakers are not responsible, because, although they do this, they are not owners or occupiers, or persons using the same in control of, or authority in the place.

We have pointed out that the Act could have been shown to apply to the bookmakers but for the disgraceful collusion of this case, in which plaintiff and defendants desired the same result; but it is proper to qualify this by saying that the professional men, upon one side at all events, should be looked on as dupes rather than accomplices. Unhappily, it must be added that such a black page of disgrace would not have defaced our Law Reports but for private and influential pressure brought to bear upon certain members of the Courts of such a nature as to have outweighed with them the fearful responsibility of throwing open every public-house in the kingdom—indeed, potentially, every private house—as an authorised betting establishment; for the decisions finding public-houses to be “places” because bookmakers carry on business in them is absolutely contrary to the

Powell-Kempton Park judgment, although this is done occasionally by the Courts, most anxious as all of them are to prevent the evils arising from public-house betting; but the shifts to which they are driven to reconcile their decisions with the Kempton judgment are almost as amusing as they are humiliating. Thus the strong arm of the Act of 1853 has been temporarily paralysed, and these peripatetic Monte Carlos all over the kingdom, the rings, have had their lives prolonged for the present.

There are, however, two subordinate sections, 5 and 7, which are of great importance, or rather have become so through the exertions of the National Anti-Gambling League. By judgments obtained in the King's Bench Division, and confirmed by the Court of Appeal (*Lennox v. Stoddart* and *Davis v. Stoddart*, C.A. 1902—2 K.B.), under sections 1 and 3 of the 1853 Act, the deposit of money for betting is illegal, even though not made direct to the house or place of business of the bookmaker. By these judgments it will be seen that all bookmakers advertising from offices in the United Kingdom and receiving deposits (before the issue of the events betted upon) there *or elsewhere*, directly or indirectly, are keepers of betting-houses, and their advertisements illegal under section 7; and that the newspaper proprietors admitting these advertisements are also offenders under the same section. This has only recently become clear in law, and still awaits application on a large scale. The same remark applies to the operation of section 5, under which, by the Court of Appeal decisions referred to, all such deposits can be reclaimed for the senders by the special statutory right of the Act; in the words of Lord Justice Matthew, as “a penalty, or mulct in the nature of a penalty, for a violation of the terms of the Act of Parliament.” In many cases considerable sums have already been refunded by the bookmakers, but, while any loophole is left open by doubts as to the application of the Act of 1853 to bookmakers ostensibly giving no address in the United Kingdom, but carrying on business across the Channel, there is something to be said for the policy of not pressing the application of sections 5 and 7 before other lines of the campaign against the professional betting system.

Although the destructive judgment in *Powell v. Kempton Park* reduces the public fear of betting in houses or places other than race-course rings to little more than a popular superstition, provided such places are arranged as indicated above, that fear still prevails, and has consequently brought about

a regular system of betting almost anywhere and everywhere out of doors, commonly known as street betting. For many years the association formed to combat the general evil has busied itself, *inter alia*, in getting County and Municipal authorities to pass bye-laws against this street system of betting, and these are now in force in about 150 areas, including many of the principal cities and counties, but the Acts sanctioning these bye-laws (Counties, sec. 16 Local Government Act 1888; Cities, Towns, etc., sec. 23 Municipal Corporations Act 1882) only permitting a maximum fine of £5, without powers of arrest and search, have been found unequal to the evil, so that the fines are merely looked upon by the bookmakers as a tax on profits; and to the despair of the authorities the effect is merely to enhance the police fines by a small share of the profits of the trade. Wealthy bookmakers employ several underlings, and drive round in a trap at stated intervals to receive their takings, never appearing themselves before the magistrates, but merely supplying the fines to their servants. Others surround the exits of places of business of all kinds at the dinner hour, or even collect deposits at the small houses of the workers, during their absence, from their wives; and numbers of them adopt the subtle plan of bribing foremen and forewomen on the business premises to act as their agents by giving them a commission on the profits. Circulars have been published in the *Times*, received from bookmakers by foremen in the employ of mercantile firms of first class standing, offering 10 per cent commission to influential employees. Convincing evidence was given before the Select Committee of the House of Lords as to the deteriorating effects of the professional betting system upon the character and work of British artisans, and the information subsequently published by the Moseley Commission strongly confirms this in making comparisons with foreign workmen.

SUGGESTED ALTERATIONS IN THE LAW

BETTING

Having laid before the reader an account of existing legislation at the commencement of the twentieth century with regard, firstly, to Miscellaneous Gambling, and, secondly, Betting, suggestions shall now be made as to how the law can be amended and made more operative; but as

the last of the two items, Betting, is freshest in the mind, the order shall be reversed, and it shall first occupy our consideration.

It would be useless to confuse the reader's mind by going through the statutes relating to betting, other than the Act of 1853, which is the reformer's armoury; but it requires to be refurbished and enlarged, and will then be capable, supplemented by the proposed Street Betting Bill, of bringing about a great and beneficial change.

What is desirable must be subdivided into what may be considered now practicable, in accordance with the position approached by public opinion; and further reforms, to prepare the way for which social reformers have still much to do.

It may be wise, and save time in the end, to confine attempts at legislation to three short and simple improvements, viz.: (1) passing the Street Betting Bill for largely increasing the fines and inflicting imprisonment for that offence, as unanimously recommended by the Select Committee of the House of Lords; (2) an amendment of section 7 of the Betting Act of 1853, subjecting advertisements of foreign betting-houses to the same penalties as those in the United Kingdom; and altering the wording of the same, which now only condemns advertisements "whereby it shall be made to appear," which words were regretfully held by the King's Bench Division in *Ashley and Smith, Ltd., v. Hawke*, K.B.D. 1903 (*Sportsman*), not to cover the advertisements of notorious betting-houses, as the advertisements on their face merely referred to races, etc., and gave the necessary address for communications and remittances. Such advertisements have always been considered as dubiously lawful, and double charges are paid for their insertion. More than one of the sporting, or rather betting, papers make profits of £5000 to £7000 a year out of them; and the Lord Chief Justice, in his judgment, spoke of the necessity of legislation, as has been already stated; (3) making payments of bets in public-houses illegal. A Bill of twenty lines might cover the whole of the above.

With these three amendments of the law, and Scotland Yard enforcing the present laws as expounded in the Court of Appeal cases above against the betting-houses, great progress will be made. The bankruptcy authorities should take advantage of these decisions to insist upon the return of all

monies sent to bookmakers by debtors within the statute of limitations, under section 5 of the 1853 Act.

But these improvements, so long as the *Powell v. Kempton Park* case remains unchallenged, or the law as to “persons using” unaltered, will still leave all British sport grounds open to the baneful influence of the bookmaker—indeed, as previously explained, every house, room, or enclosed place in the kingdom. The time will surely come when the nation will insist upon this scandal being removed. Reasons have been given for thinking that the House of Lords’ judgment in *Powell v. Kempton Park* cannot possibly be the right interpretation of the Act of 1853; and that it was differently interpreted by the racing world, and by the Jockey Club itself, even twenty years after it was passed, may be shown by here quoting from the notice in the *Racing Calendar* published in 1874: “It having come to the knowledge of the Stewards of the Jockey Club that betting for ready money in the ring ... has taken place at Newmarket, they hereby give notice that no such illegal betting is permitted either in the enclosures or any part of their property at Newmarket.” Thus in 1874 deposit-taking by bookmakers was held to be illegal, for it is quite impossible that the notice refers to persons in authority and control, as Lord Halsbury now says the persons using are, for the controllers were the stewards themselves or their managers, and these managers are separately provided for in the Act. When it is determined to suppress professional betting the alteration in the wording of the Act need be only a simple one to free athletic sports of all kinds from the farce of the immunity of the proprietor as not betting but taking entrance fees, and of the bookmakers as betting but not being proprietors. But if the awful consequences following from the professional betting system were fully known, an Act making the calling itself entirely illegal would appeal strongly to the public conscience. To license them would be as bad as to return to the days of state lotteries, or to adopt the Continental plan of taking special taxes in commutation of the offences of those who trade upon other vices.

MISCELLANEOUS GAMBLING

N. Gambling in the Stock, Produce, and other Markets

When in any system of business the element of commerce and gambling are inextricably mixed, it is wise to adopt a line of expediency. The gambler should at least pay the same dues as the genuine investor. To ensure this no contract should be made enforceable or legal unless made upon Government stamped paper. The real buyer of £500 would not complain of having to pay 2s. or say 1s. per £100 to the National Exchequer; but the dealers in a £2,000,000 gambling contract would think twice before incurring a first definite outlay of £2000 or even £1000 cash down. A similar regulation would be desirable for the Produce, etc., Exchanges. In this way, by a perfectly equitable legal enactment, the wings of outrageous speculation would be clipped. An additional improvement would be an extension to all stocks and shares upon the lines of the principles of the Bank Act 1867, 30 Vict., c. 29. Prior to its passing, gambling in the shares of Banks had become a scandal, and a danger to credit. It provided for contracts setting forth the distinctive numbers of Bank shares, so as to prevent sales of shares of which the sellers were not possessed. In the produce markets similar requirements could be insisted on to bring about a corresponding result.

N. Industrial Gaming unconnected with Trade

Illegal Games.—The legislative remedy here should be to abolish the old interdict of certain special games, and to make all games of combined skill and chance illegal when played for money. But this would be a counsel of perfection which, in the present state of public opinion, would have no chance of being carried out. If, however, the words were added, “*by players of unequal experience and skill*,” it would give the Courts power to penalise the rooks in all such glaring cases as their victims should place in the hands of the authorities. Nor does there seem to be any reason why the old idea of restrictions as to amount should not be made good use of. There would be an enormous balance of advantage if it were declared illegal for a person to obtain during any one day a sum exceeding £10 by gaming, or for minors to gamble at all. The flocks of pigeons would to some extent be protected, however little the rook minority liked it, and society should benefit in every way. Such a regulation would sweep away the scandalous immunity enjoyed by rich men’s clubs; and, considering the widespread ruin for which they are responsible, and the present disgraceful unfairness of the

law as between the poor and the wealthy, its application should work an incalculable improvement.

Playing with Gaming-Machines.—The Courts now seem disposed to construe the question of a modicum of skill more severely in this connection as children are so largely affected, and from what has been said above it may be hoped that the automatic machines are doomed. The above remarks, however, with regard to combined skill and chance and restriction of amount, apply here also to a certain extent, especially with regard to their use in clubs. The difficulties will be great of applying such regulations to gambling in private houses until the moral sense of the community becomes more keenly alive to the penalties of sorrow, ruin, and degradation which are the sad sequel of its neglect.

Lotteries and Sweepstakes.—The Lottery Acts now existing might have been fairly efficient if it were not for the difficulty, delay, and expense in having to obtain in certain cases the leave of the Attorney-General before proceedings can be taken. This especially applies in the matter of newspapers which benefit by advertising the lotteries. They are protected by 8 & 9 Vict. c. 74, the provision in which needs modification. There is still much, however, to be desired in the efficiency of administration, which cannot be fully attained until the farcical practice of allowing the law to be broken for charitable purposes is given up. Some years ago the Scotch authorities openly stated in reply to a remonstrance that in such cases no interference would be made. This lache has been to a large extent followed in England, and when the National Anti-Gambling League pointed out to the late Mr. Adrian Hope, the Secretary for the Hospital for Sick Children in Great Ormond Street, that the great raffles intended to be held at the Coronation Bazaar at the London Botanical Gardens were in contravention of the law, he merely declined to drop them, and said that one of the Judges had bought the first ticket for the chief lottery. Questions had to be asked in the House of Commons before they could be stopped, after the illegality had been acknowledged by Ministers.

To sum up under this head, the Post Office should have increased powers and inducements to destroy lottery matter, and to confiscate and appropriate for the benefit of the Rowland Hill Memorial Fund, in which the Post Office is so much interested, all lottery remittances, whether British or foreign; the question of the Attorney-General's fiat for prosecutions should

be reconsidered; and the police authorities should be stimulated to institute a regular and impartial campaign. How grossly the weapons of the law in regard to lotteries have been neglected may be illustrated by a statement made in a Treasury prosecution at Clerkenwell Police Court in June 1904, to the effect that one of the most important statutes, 4 Geo. IV. c. 60, was extremely difficult to find, not being printed in the ordinary book of statutes, and was not found in any magisterial text-book.

Press Competitions and Coupon Gambling.—So numerous are the devices of the baser organs of the press, and even of some which find it difficult to hold out against their competition, that no reform of the law is likely to be effective without some enactment making the offering of prizes illegal beyond a certain small amount; which compromise can hardly be avoided, because the best of these newspaper competitions offer undoubtedly some educational inducements. Those which are merely gambling vehicles should be suppressed. The bad position here again rests upon the foolish old dictum as to a modicum of skill covering a quantity of gambling. For instance, an unfortunate decision of the High Court in *Hall v. Cox* (1 Q.B. 1899), held that guesses at the numbers of the next Registrar-General's return (although any competitor could purchase any quantity of the newspaper, filling in a different number for each one, thus making it an extensive gamble at will) did not constitute a lottery, because a certain amount of skill could be exercised by the study of previous returns. This led to numerous imitations, one of which was guessing at the future circulation of a paper, which had the additional journalistic merit of acting as a good advertisement. Amongst many, one poor and foolish artisan acknowledged that he had purchased considerable numbers of the newspaper, and its great increase in circulation by the device shows how many credulous persons were willing to gamble under the shelter of the law.

Two brief sections should meet the difficulties under this heading:—

1. Make all such competitions in which there is a material element of chance illegal.
2. Make it illegal for any publication to offer in any one edition a prize or prizes of the aggregate value of more than £5 for any purpose whatever.

Gambling in Clubs.—With regard to the law as to betting in clubs, allusion has already been made to *Downes v. Johnson* (2 Q.B. 1895) and a

recent decision of Mr. Justice Bucknill which appears to follow upon the lines of that most unfortunate and harmful judgment. The alteration of the law needed here (none should be needed but for the interpretation put upon the words “person using” and “any other person” in section 30 of the Betting Act of 1853, as meaning persons in authority in the place, in the *Powell v. Kempton Park* case) is to so alter the section that the proprietors or committee of a club shall not escape responsibility for individuals, like the bookmakers in a race-course ring, carrying on betting businesses. Merely a clear definition of “persons using” as including such individuals is needed. This would bring all these betting establishments, some of which merely pretend to be social clubs, into the category of betting-houses, which are common gaming-houses; and if this were supplemented by a section as previously suggested, following the idea of the statutes of Anne and 18 George II., making the gain by any one member of a club of a greater sum than £10, on any game or chance whatever, upon any particular day, an offence entailing the same consequences, a heavy blow would be struck at gambling clubs of all kinds.

As to other gaming in clubs, chiefly card-playing, the reader who plods through the long technical judgment of Mr. Justice Hawkins in *Jenks v. Turpin* (13 Q.B.D.) will be chiefly impressed by the feeling that the police authorities systematically fail to make use of the existing laws, which is indeed the fact; but this is owing in great measure to difficulties in obtaining evidence, and the natural reluctance to order raids while the gamesters have the power to retaliate in case of failure. When elaborate preparations have been made at the cost of much labour, time, and expense, heavy bribery will often obtain the needful warning even from within the police force. The great clubs are seldom or never touched, and until a special department is formed at Scotland Yard under an able and determined chief, with absolute power of instant dismissal and punishment and liberal reward in dealing with his subordinates, our social life will continue to be poisoned with the evils of club gambling. If this were done and the old £10 limit named above once more revived, and greater power conferred to punish the players as well as the club committees and proprietors, club gambling would dwindle and the career of the professional gamester become less profitable and more precarious, while fortunes and incomes now thrown away would be applied to fruitful and honest purposes.

Petty Gambling.—In the matter of petty gambling what is needed is not so much amendments of the law (the enormous demand for playing-cards seems, indeed, to make the reimposition of a tax advisable) as its assiduous application by the authorities. It is now so diffused, unhappily owing in great part to the habit the nation has fallen into of looking upon gambling as a venial vice, if vice at all, that their task may well seem endless; and in this connection the most effective legislative enactment, for petty gambling is very widespread amongst juveniles, might well be some considered scheme compulsorily providing for teaching the young in primary and secondary schools how wrong it is and what evils it leads to. The materials exist for enabling this to be done in a very incisive manner, and by the time such systematic lessons have permeated the rising generation their elders may become as ashamed of indulging in betting and gambling as they may now be said to be of drunkenness.

THE PRESS AND GAMBLING

It remains to say a few words about the press, which is largely responsible for the great evils of gambling, particularly of the professional betting system, under the plea of devotion to sport, which even the Duke of Devonshire seems to consider is being overdone, according to a recent speech made by him in public. The prohibition of the betting odds was strongly urged upon the Select Committee of the House of Lords. It would be a fatal blow to bookmaking, for nine bets out of ten are now made without agreement with the bookmakers as to the figures, but depending upon their subsequent publication as reported from the starting-post. The betting men put forward advocates before the Committee who pretended to think that such legislation would not reduce betting, but the best test is the frantic opposition which the bookmakers offer to the proposition. It is earnestly advocated by men like Mr. Le Blanc Smith of Oxford University and others interested in the purity of sport. The Committee say in their Report on Betting (Report and Evidence, No. 389, 1902; Evidence, No. 370, 1901; Index, 173 and 114, 1902): “There can be little doubt that the almost universal practice of publishing in newspapers what are known as ‘Starting-Price Odds’ greatly facilitates betting upon horse-races”; but, as they considered it to be in the nature of news, and a protection against fraud, they were not prepared to recommend the suggestion. It may be

pointed out, however, that although no doubt the odds published are often correct, there is a regular system arranged between the bookmakers and the baser press organs for quoting unreal odds to lure on the public, which was exposed three years ago in an amusing controversy between two London newspapers. Moreover, the prevention of the swindling of some of the foolish public by bookmakers seems a poor reason for permitting the continuation of a practice which so materially assists in the demoralisation of hundreds of thousands of the populace. Considerable pains have been taken to ascertain privately the feeling of the better class of newspapers upon this subject, and it is found that they would welcome such a prohibition, provided it be made universal, as it will actually benefit all respectable journals. Their circulation is reduced by the public being led to spend their “press money” upon the so-called sporting or betting papers, the number of which is legion, many of them making great incomes of thousands per annum; besides which a considerable number of the less respectable newspapers issue during the racing seasons editions printed literally for nothing beyond the result of horse-races, and in the winter of football matches, the ordinary matter which has remained in type enabling them to escape from the meshes of the new bye-laws as to publications consisting wholly or chiefly of sporting—betting—information. Parliament will have to make up its mind some day to deal with this aspect of the betting question, and to say that the liberty of the press is not liberty to debauch the public and to share in the proceeds of doing so; that if Lord Beaconsfield was right, in his time, in stigmatising the Turf as a vast engine of national demoralisation, and if its powers for evil are now far greater than in his days, the press shall not continue to bolster up the system by publishing the odds, and sharing in its ill-gained profits through the medium of advertisements.

CONCLUSION

In conclusion, it may be said that when such time arrives the conviction will also be held by the people of the United Kingdom that the professional gambler in the stock and produce markets, whose operations it is not always possible to challenge as being entirely unconnected with commerce, should at least have his huge dealings hampered by a *pro rata* tax, the incidence of which would not interfere with *bona fide* purchases and sales; that our

police forces must be saved from becoming as corrupt as Tammany Hall through bookmakers' bribes, to which several of them are well on the way; that the great Department of the Post Office must not continue to swell its revenues by using its organisation to assist the corrupt business of betting, even granting it special facilities, whatever may be alleged to the contrary—in particular, with regard to the telegraphic service, in which overt temptations to the servants in its employ are continually resulting in its having to prosecute them in batches, notably the younger ones among them, in the name of public morality, but practically for the protection of this bookmaking system which the Post Office, as its intermediary for deposits, assists and fosters in its work of breeding criminals and cheating fools; and finally that those individuals who, without the vestige of any mercantile basis, prey upon the credulity and vices of their fellow-countrymen should be looked upon as *hostes humani generis*, so that the bookmakers shall be treated as criminals and punished, not by fines but by imprisonment.

Then, perhaps, also, the habitual private gambler of means and position will find every public career and honour withheld from him, and this great Christian nation will approach the plane of morality now occupied in this respect by our allied heathen empire of Japan.

THE REPRESSION OF GAMBLING

By B. SEEBOHM ROWNTREE

In seeking remedies for the acknowledged national evils of betting and gambling, it will be well to consider what are the causes that have probably chiefly contributed to the present deplorable state of things.

Amongst the wealthy or well-to-do there can be little doubt that (*a*) the thoughtless following of fashion, (*b*) the desire for excitement and a sense of “life,” and (*c*) the craving for gain without labour, are the main incentives to gambling practices. The same causes, though in differing degrees, and finding expression in somewhat differing forms, appear also to lie at the root of the matter amongst the artisan classes and the labouring poor.

So far as concerns the following of fashion, the unwillingness to hold out against the customs of one’s comrades, and to go against the stream, human nature is the same in rich and poor, and there is no remedy for this failing but improvement of the moral stamina of the individual.

With regard, however, to the desire for excitement and a certain fulness of life, there are causes operating which differ widely in the cases of the rich and the poor. The monotony of the rich is a monotony of surfeit. They have means to satisfy all their material needs, and the very fact that they need not strive after anything brings satiety into everything, and with it the craving for excitement. And excitement in abundance may be found in gambling. This has been well put by Dr. Robertson:—

What we want is life, “more life and fuller.” To escape from monotony, to get away from the life of mere routine and habits, to feel that we are alive—with more of surprise and wakefulness in our existence. To have less of the gelid, torpid, tortoise-like existence. “To feel the years before us.” To be consciously existing.

Now, this desire lies at the bottom of many forms of life which are apparently as diverse as possible. It constitutes the fascination of the gambler’s life; money is not what he wants—were he possessed of thousands to-day he would risk them all to-morrow—but it is that, being perpetually on the brink of enormous wealth and utter ruin, he is compelled to realise at every moment the possibility of extremes of life. Every moment is one of feeling.

In the case of the poor, on the other hand, monotony of life arises from the very absence of the external advantages of the wealthier. The young man, after a day of monotonous toil in some uninteresting occupation, has too often to come home to his small and overcrowded house in a dingy back street, where his only living room is one which must serve the purposes of kitchen, nursery, parlour, and dining-room, and where he can find no relief from the noisy children. His mental horizon is extremely limited, and he has hardly any intellectual interests. He cannot afford the forms of recreation that would be indulged in by his unintellectual brother among the richer classes of Society, and yet he has the same desire for “life.” He thinks to get it cheaply by betting.

Again, the desire of gain without work is common to all classes. With the well-to-do and the professional, it may take the reputable form of speculating in stocks and shares—a large proportion of a sharebroker’s business is notoriously for speculative clients; but the poor also may succumb to the temptation, though on a humbler scale. The writer heard recently of a woman who had her family to maintain, and who, with but one shilling in the world, staked it on a horse in the hope of mending matters.

If then the causes of gambling are so widespread, and are due to conditions all but universal in this country, can anything be done in the way of remedy?

Undoubtedly much may be done in the way of legislative and administrative steps, the right direction of which is indicated in the Report published by the House of Lords' Commission.^[11] It is important that we should urge upon Parliament the need for laws upon these lines.

But apart altogether from legislation—though at the same time tending to ripen public opinion for more stringent laws—a good deal may be achieved, and it is the object of this paper to make suggestions in this direction.

Unquestionably the first thing which those should do who are desirous of suppressing the gambling evil is absolutely to dissociate themselves from any form of it whatever, commercial or otherwise. Even those who play cards for insignificant stakes, or who place very small amounts upon horses—amounts so small that it is practically immaterial whether they win or lose—are nevertheless severely handicapping themselves in any effort they may make to check the gambling curse. They undo the influence which they might exert upon children, workmen, or employees, who notice that they indulge in gambling transactions, but do not notice, or at any rate soon forget, that these transactions are extremely small in amount. The influence of would-be reformers must be unreservedly opposed to the evil, even in those forms which are apparently harmless, for it is just these which are the first links in a chain which may eventually bind some weaker brother hand and foot.

The writer is aware that in urging the avoidance of gambling in commercial transactions he exposes himself to the objection that gambling and commerce are apparently inextricably associated. He does not, however, seek to maintain that any hard and fast line can be drawn, transactions on one side of which are to be described as of a speculative or gambling nature, and on the other as legitimate business. He is aware that in every business there must be some amount of speculation, just as there is every time that we decide whether we shall or shall not take an umbrella when we go for a walk. He is aware, too, that in business much depends upon the special circumstances of the case and the spirit in which the transaction is undertaken, but he would nevertheless urge the importance of

reducing the speculative element in business to the lowest possible point, rather than the adoption of a policy which introduces needless uncertainty as to the future.

Having first taken care that our personal influence is cast unhesitatingly upon the right side, we should next seek to create *a sound Public Opinion*. There is great need for the spread of information regarding the extent of the evil, as the facts in connection with it are at present but little known. Generally speaking, the public have not yet realised that betting and gambling are wrong, or that the evil has spread until it has become a grave national danger. Even the Churches have not yet at all generally spoken out with regard to the question, and much may be done in stirring them up in the matter. Although almost every Church has some organised temperance society actively at work, how many Churches have undertaken any organised effort for the suppression of gambling? In how many cities of the British Islands does an anti-gambling society exist? Here at any rate direct work may at once be started towards the formation of enlightened public opinion. It is important that a branch of the National Anti-Gambling Society should be formed in every town, whether it be directly connected with the local Churches or otherwise. In one town with which the writer is familiar, a society of this kind was formed seven years ago. Its annual income, raised by subscriptions, only averages about £30, but, nevertheless, it has been able to do a large amount of steady work, which has undoubtedly resulted in the creation in the town of a much sounder public opinion with regard to this great question than existed previously. This society has prepared fly-leaves and pamphlets, and distributed them from house to house once or twice a year. It communicates with the clergy each year just before the spring and summer race meetings, and bespeaks reference in their sermons to the gambling then prevalent. It arranges to send speakers to address various meetings held in connection with churches and chapels; such, for instance, as P.S.A., Men's Bible Classes, and special theatre services. It has also organised many public meetings on its own account, as, for example, during the week in which this article was written, when an open-air meeting was held on a Sunday afternoon, at which about 1000 persons were present. As might be anticipated, the experience of this society is that it is difficult to get to these meetings those who themselves indulge in betting and gambling on any extensive scale, but the committee feel that the meetings rouse interest in the question among the more thoughtful members of the

community, who, in their turn, will personally influence other people, and probably at the present time this is a more fruitful line of service than attempting to make a direct appeal to gamblers.

We may derive encouragement in the slow work of leavening public opinion as to gambling from the memory of the revolution that has taken place in public opinion with regard to drunkenness. In the time of the later Georges, it was no disgrace for a statesman to be seen drunk in public. Now, even a workman would lose caste with his respectable companions if he were seen drunk. We must at any cost enlist this compelling power of Public Opinion. We want all classes to pass on confirmed gamblers the same judgment as they pass on confirmed drinkers. We want, too, a public opinion which will condemn commercial gambling just as much as betting upon horses or anything else, or playing cards for high stakes. There is, indeed, a healthy growth of religious opinion at the present time with regard to raffles at bazaars, but there is much need for further education even on this question. Some time ago the writer received a request to take part in an enormous raffle which was being organised on behalf of a religious institution in Ireland, the prizes in which included a cameo of Leo XIII. (specially presented by the Pope himself), and a motor-car valued at £300. Knowing that such transactions were entirely illegal, he communicated with the police at Dublin Castle, and asked whether they were intending to take action in connection with the matter. He was, however, informed that, since the object was religious, they did not intend doing so. He then requested a Member of Parliament to put a question in the House with regard to the matter, but he was informed that a question dealing with a similar case had been put two or three weeks before, and that the responsible Minister had replied that, although it was known that lotteries of this character were illegal, it was not the custom to interfere when they were for a religious purpose! Such an example indicates how inadequate is the appreciation on the part even of those in high positions of the seriousness of the gambling evil in this country, and of the necessity of taking all legitimate steps for its discouragement and suppression. Indeed, the same apathy and lack of intelligent interest is not infrequently to be found even amongst dignitaries of the Anglican Church. On one occasion the writer wrote to a clergyman of high station asking him to take the chair at an anti-gambling meeting to be held after church hours on a Sunday night. He received a reply to the effect that the clergyman in question could not come, believing as he did that the

“Sabbath was made for edification and dedication, and not for demonstration and declamation”; and, further, that probably his views with regard to the question were not those of the Committee of the Anti-Gambling Society, as he considered that there was no harm in gambling unless a sum were staked greater than the gambler was prepared to pay if called upon to do so! Such an opinion is not isolated, even among comparatively thoughtful people.

It is quite likely that with most gamblers any attempt to convince them that gambling is wrong in itself will fail. Probably more impression is made, especially on beginners, by exposing the folly of the practice. In the case of boys leaving school and entering early manhood, who think it smart and manly to bet, we can show them that, so far from this being the case, betting with bookmakers is the hall-mark of an ignorant greenhorn. We can show them how the bookmaker is a parasite upon society, preying upon the ignorance of the foolish people who bet with him, and often living uncommonly well at their expense, as was the bookmaker arrested in Manchester, whose books showed that he had made £5846 in five months. The extent to which gross ignorance of all that it is important to know in estimating the chances of a horse passes for profound knowledge amongst betting men is astounding. The writer remembers travelling one day from Newcastle with a number of working men who were going to attend the races at Thirsk. They were evidently men who habitually betted and closely followed the betting news in the papers. To any one with the slightest knowledge of horses, their discussion, although accompanied by airs of profound wisdom, was in the highest degree amusing, the climax coming when one man, whose opinion was evidently greatly valued by the rest, gave as his reason for not backing a certain horse, “He wags his tail over much for me.”

For telling ridicule of the gambling folly there is nothing better than Charles Kingsley’s *Letter to Young Men on Betting and Gambling*.^[12] It is probably well known, but the writer cannot refrain from quoting one or two passages:—

“I hold, then, that betting is itself more or less wrong and immoral. But I hold, too, that betting, in three cases out of four, is altogether foolish; so foolish that I cannot understand

why the very young men who are fondest of it should be the very men who are proudest of being considered shrewd, knowing men of the world, and what not.

“They stake their money on this horse and on that. Now, judging of a horse’s capabilities is an art, and a very delicate and difficult art, depending first on natural talent, and next on experience, such as not one man in a thousand has. But how many betting young men know anything about a horse, save that he has four legs? How many of them know at sight whether a horse is sound or not? whether he can stay or not? whether he is going in good form or not? whether he is doing his best or not? Probably five out of six of them could not sit on a race-horse without falling off; and then such a youth pretends to himself that he is a judge of the capabilities of a noble brute, who is a much better judge of the young gentleman’s capabilities, and would prove himself so within five minutes after he had got into the saddle.

“‘But they know what the horse has done already.’ Yes; but not what the horse might have done. They do not know—no one can, who is not in the secrets of the Turf—what the horse’s engagements really are; whether he has not been kept back in view of those engagements; whether he will not be kept back again; whether he has not been used to make play for another horse; and—in one word—whether he is *meant* to win.

“‘Ah, but the young gentleman has sent his money on commission to a prophet in the newspaper, in whom he has the highest confidence; he has prophesied the winner two or three times at least; and a friend of his sent him money to lay on, and got back ever so much; and he has a wonderful Greek name, Lynceus, or Polyphemus, or Typhlops, or something, and so he must know.’

“Ah! fool, fool! You know how often the great Polyphemus prophesied the winner, but you do not know how often he did not. Hits count of course; but misses are

hushed up. And as for your friend getting money back, if Polyphemus let no one win, his trade would stop. The question is, not whether one foolish lad had *won* by him, but whether five-and-twenty foolish lads did not *lose* by him. He has his book to make, as well as you, and he wants your money to pay his own debts with if he loses. He has his bread to earn, and he wants your money to earn it with; and as for sending him money, you may as well throw a sovereign down a coal-pit and expect it to come up again with a ton of coals on its back.”

A simple and effective way of exposing the folly of betting on horses is to take some leading sporting papers for a week and to put an imaginary pound upon each of the selected winners, and then count the losses and gains at the end of a week. The result of such an operation was sent to the *Daily News* some time ago, and is given below.

The predicted winners were by “Augur” of the *Sporting Life* and “Vigilant” of the *Sportsman*, who are recognised authorities in racing circles. An imaginary pound was put on each race. In the case where two selections were made, 10s. was put on each.

SUMMARY OF WEEK

	<i>Sporting Life.</i>			<i>Sportsman.</i>		
Loss	£12	10	11	£16	1	10
Gain	1	13	9	6	14	6
Loss	£10	17	2	£9	7	4

It is indeed astonishing how far men will go on the chance of a run of luck when the probabilities are that they will lose. At Monte Carlo there are eight gambling-tables, each of which averages a profit of £500 daily from the public, yet players are always to be found.

Whilst the direct combating of gambling practices is important, it must never be forgotten that betting and gambling are symptoms of a social disease, and to get rid of the symptoms the disease itself must be attacked. In this connection anything done on right lines to make life less

monotonous for the working classes, to improve the conditions of employment, and to secure adequate wages will tend to diminish the evil in question.

Take the *monotony of life*, whether amongst rich or poor. In so far as betting and gambling are indulged in because of this, the efforts of the reformer must be directed towards its removal. Perhaps the most desirable way of accomplishing it is to get men interested in some great religious, political, or social movement. Life ceases to be aimless even for the wealthy man as soon as he begins to work in a great cause. We have, fortunately, many instances of those whose every material want is ready to their hands without any personal effort, and yet whose lives are in the highest degree useful to the community owing to their efforts in various social or political movements. People such as these have probably no temptation to bet, their time and attention being occupied with that which is vastly more interesting and satisfies more completely the craving for fulness of life. The same thing applies to the workman who seeks to break the monotony of his life by betting. Once get that man really interested in political, social, or religious work, and it will usually be found that the desire to bet will go, because, as in the case of his wealthier brother, his mind is filled with things which interest him more. Social workers have no time to bet. And as almost all social movements are suffering for want of workers, we shall be doing a double good if, while meeting this want, we can at the same time be helping some one to overcome a great temptation. It is not possible, of course, to interest every one in movements such as those indicated, but this is only the stronger reason for endeavouring to get the life of the community so organised that every one has the opportunity placed within his reach of introducing into his life interests suited to his tastes. If this, however, is to be done, much more attention must be given to the matter than has been the case hitherto. Consider, for example, the lamentable absence of counter-attractions to those offered by the publicans. Temperance reformers are now realising that no scheme of reform is likely to be permanently successful which will not provide such counter-attractions upon a scale far beyond anything existing at present. Much the same conditions attach to the repression of gambling. What is bad needs replacing by what is innocent. Fortunately, the solutions of the two questions are complementary, and counter-attractions provided against either temptation will be equally helpful against the other. The lectures and

religious meetings constantly held in our towns appeal, unfortunately, to but a small section of the community. We want more social clubs; we want free concerts, elevating although popular in character; we want places where young men and women can meet socially, apart from the public-houses, and yet where they have full liberty to enjoy themselves without licence. We want, indeed, in every town people's palaces, where people can be thoroughly at home, and where they can spend a social evening pleasantly and rationally.^[13]

On similar lines the provision of an adequate number of allotments in the neighbourhood of towns would undoubtedly do much towards reducing the betting evil. Experience shows that the proportion of working men who would find in gardening an absorbing interest is very considerable, yet in most towns the supply of allotments is entirely inadequate. Considered either as counter-attractions to the public-house and the bookmaker, or as a benefit to the cultivators in point both of profit and of health, there is no doubt that it would amply repay municipalities to provide allotments far more liberally than is done at present.

It is clear, then, that the provision of better housing for the working classes would tend to decrease the betting evil. Men who have a house of which they are proud and a garden to cultivate, in which they may keep poultry, rabbits, or pigeons, are much less likely to indulge in betting than the inhabitants of an overcrowded town district, with small means of spending their leisure. Nor will villages produced by the decentralising of the towns suffer from the monotony of life that at present afflicts many agricultural districts. Rapid transit will enable them to share in the interests of the life of the adjacent towns.

The connection between the housing problem and the betting evil well illustrates our position that betting is, to a large extent, a symptom of a social disease, and that if we would be successful in eradicating the symptom, we must seek to remedy the disease. The provision of a more adequate education for the children of the poor would tend in this direction. By teaching the children to read we make it easy for them to follow the betting news in the newspapers and to keep their betting-books, yet we take them from school before the thirst for knowledge has really been awakened. Better education is especially needed in the case of girls, who will be the mothers of the future. If their mental horizon is limited, they cannot awaken

in their children interest in those various branches of knowledge which provide, in the case of those who are better educated, the mental landscape which enriches their lives. All such movements, therefore, as the Home Reading Union, or anything which tends to the better education of the people, will tend at the same time to decrease the monotony of life, and lessen the temptation to resort to demoralising excitements.

There can be little doubt also that much of the monotony of life on which we have been dwelling is due to the low wages paid to unskilled labourers. The writer is convinced that upon the average the wages paid in towns to such are insufficient for the maintenance of a man and a moderate family in a state of merely physical efficiency, to say nothing of any margin for developing the higher sides of their natures. It would be out of place here to enter into detail on the subject of wages, but the question has so vital a bearing upon the betting evil that it cannot be altogether omitted. The nation should not be satisfied until the wages of unskilled labour are such as will provide the necessities of physical efficiency for a family of moderate size, and, in addition, sufficient margin to enable the members of a labourer's family to provide what is required for the development of the higher sides of their natures. At the present time, as stated above, the average wages paid to unskilled labourers in towns are insufficient for this purpose. So long as this continues we cannot be surprised if large numbers of working men live with the better sides of their natures undeveloped, and thus fall an easy prey to the publican and bookmaker.

Increased wages, however, as we well know, will not by themselves achieve the desired results. They must be accompanied by influences which will help men to spend them wisely. In this connection it would be difficult to lay too much stress on the responsibility which rests upon all employers of labour to see that the tone in their shops, factories, or offices is a good one. We scarcely realise how great is the power for good possessed in this respect by an employer. We know that, when the selection has to be made of a school for a child, the consideration of the tone in the school is, in the case of all careful parents, regarded as paramount, and no careful parent will knowingly send a child to a school in which the tone is known to be bad. The tone in factories and shops is an equally important factor in moulding the characters of those employed in them. Probably much more beneficial influence upon the character of the working classes may be

exercised through the medium of their places of employment than is at present exercised through the churches. How few working people attend church or chapel for even one hour in a week, yet perhaps for fifty hours every week they are under such influences as are exerted in their factories or workshops. If those influences are thoroughly good: if in the appointment of overlookers not only proficiency in work or power of control is considered, but also the moral influence which they will exert upon those working under them; if only such foremen are appointed as will encourage all that tends to elevate the employees, and discourage drinking, gambling, and all that tends to degrade, the good that may be done is incalculable. To the present writer it appears that there is no way of producing among the working classes a sound public opinion on such a question as the one we are considering, more immediately effective than through the appointment of men of high character to positions of responsibility in factories, offices, and shops. If any of us who are seeking to combat the gambling evil could impress this single fact upon one large employer of labour, we should probably be sowing seeds from which we might expect to reap a very abundant harvest.

Whilst the influence of the employer and of his foremen is of widest importance, we should not underestimate that of even one ordinary workman, inasmuch as those who work alongside him are likely to be even more influenced by his actions and opinions than by those of men in higher position.

In conclusion, the writer may state his belief that the solution of the gambling evil, as of many other social evils, will never be permanently effected without a great deepening of the moral and spiritual life of the nation. Our churches do well to bear in mind that they are not ends, but merely means to an end. Nay, that religion itself exists for the production of men and women of high moral character, strong to resist temptation, strong in their desire after the Kingdom of God and His righteousness. We want, in our churches, to develop persons with a vigorous faith, who fully realise the social as well as the spiritual character of this Kingdom. To this end let us keep the spiritual flame burning. For a vital, religious faith—the faith that worketh by love—is at the root of all true and permanent social reform.

APPENDICES

I

LORDS' RECOMMENDATIONS

The Select Committee appointed to inquire into the increase of public betting amongst all classes, and whether any legislative measures were possible and expedient for checking the abuses occasioned thereby, reported as follows in June 1902:—

1. After hearing much evidence, the Committee are of opinion that betting is generally prevalent in the United Kingdom, and that the practice of betting has increased considerably of late years especially amongst the working classes, whilst, on the other hand, the habit of making large bets, which used at one time to be the fashion amongst owners and breeders of horses, has greatly diminished. Betting is not confined to horse-racing, but is also prevalent at athletic meetings and football matches.

2. Various suggestions have been made to the Committee in explanation of the alleged spread of betting. It has been urged that the increase in the practice is only proportional to the growth and increased prosperity of the industrial population of the country, and that the operation of the Betting Houses Act, by driving bookmakers into the streets, has brought their business more to the notice of Magistrates.

3. The Committee are, however, of the opinion that even when due allowance has been made, both for the increase in the population of towns, and the rise in wages, betting is undoubtedly more widespread and general than it used to be.

4. Although the Committee do not look upon betting as a crime in itself, they yet deplore the spread of a practice which, when carried to excess, they consider opposed to the true interests of sport, injurious to the general

community, and apt to degenerate into one of the worst and most mischievous forms of gambling.

5. The Committee consider that the increased prevalence of betting throughout the country is largely due to the great facilities afforded by the press, and to the inducements to bet offered by means of bookmakers' circulars and tipsters' advertisements.

6. In support of this opinion, the Committee point to the great increase of newspapers devoted entirely to sporting matters, and to the publication of articles upon racing news, and of sporting tips or prophecies.

7. There can be little doubt that the almost universal practice of publishing in newspapers what are known as "starting-price odds" greatly facilitates betting upon horse-races, and several witnesses have urged that the practice should be forbidden by law. Others, however, have expressed their conviction that the chief results of such prohibition would be to facilitate and encourage dishonesty among bookmakers.

8. The Committee, having given careful attention to both of these divergent views, are not prepared to recommend the prohibition.

9. The Committee cannot condemn too strongly the advertisements of sporting tipsters and others which appear in the columns of many newspapers. The Committee believe that such advertisements are a direct inducement to bet, and that much of the news which they profess to give could only have been obtained by inciting persons employed in racing stables to divulge secrets. The Committee are therefore of the opinion that all such advertisements are highly objectionable.

10. The Committee would point out that in France advertisements of this character are forbidden by law, and several witnesses have urged that repressive legislation on the same lines should be introduced into this country. The Committee are of opinion that all such advertisements, as also betting circulars and notices, should be made illegal.

11. The Committee are convinced that it is impossible altogether to suppress betting, but they believe that the best method of reducing the practice is to localise it as far as possible on race-courses and other places where sport is carried on.

12. Four different means have been suggested of effecting this object:—

- (1) The licensing of bookmakers.
- (2) The establishment of the system of betting known as the “Pari Mutuel” or “Totalisator.”
- (3) More effectual methods for stopping betting in the streets.
- (4) To make it illegal for a bookmaker to bet in any place of public resort except at the place on which the sport is being carried on, and there only in an enclosed space under the control of managers who should be held strictly responsible for the maintenance of order.

13. The plan of giving licences to bookmakers has been adopted in some of the Australian Colonies, and, if it were introduced into this country, it might possibly diminish street betting, and also do much to check fraud and dishonesty both on the part of the bookmaker and of the backer.

14. But the establishment of such a system in this country is open to serious objections. In Australia, as the number of bookmakers is comparatively few, it is possible for the racing clubs, which grant the licences, to exercise a strict supervision and control. In this country, where the number of bookmakers is so much greater, it would be practically impossible for the Jockey Club to undertake the duty of licensing, and, if the work were undertaken by the State, it would mean the legal recognition of the bookmaker and necessitate the making of betting debts recoverable by law.

15. The Committee after mature consideration do not think it would be desirable to legalise betting in this manner, and are also of the opinion that the establishment of such a system would rather increase than lessen the amount of betting prevalent at the present day.

16. The latter objection can also, of course, be brought with equal truth against the “Pari Mutuel,” as the absolute fairness of the “Totalisator” system of betting is a protection to the small bettor, who might otherwise not care to risk his money with a bookmaker.

17. In some of the Australian Colonies, in India, and in France this system has been adopted, and is said to work satisfactorily. In France the

money invested annually in this way amounts to between six and seven millions sterling. Two per cent of this sum is given to public charities, and one per cent goes to the Minister of Agriculture and is devoted to the encouragement of horse-breeding and to other similar purposes. The Committee, however, fear that the evil of adopting this system would by its encouragement of the gambling instinct far outweigh any gain that might accrue, and therefore cannot recommend it.

18. It has been proved conclusively to the Committee that the practice of betting in the streets has increased very much of late years, and is the cause of most of the evils arising from betting among the working classes.

The fact that bookmakers can ply their trade in the open street, and lie in wait to catch working men in their dinner hour outside factories and workshops in order to induce them to bet, is undoubtedly a great source of evil.

19. Evidence has also been brought before the Committee to show that street bookmakers bet not only with men, but also with women and children.

20. At the present time such offences can only be dealt with as “obstruction” under various local Acts, or under particular bye-laws in each town, the penalty in either case and the powers of the police being inadequate to check the practice.

21. When a street bookmaker is convicted 25 times in four years and is able to pay £137:8s. in fines and costs (to take a typical example of many cases which have been brought to the notice of the Committee), it is obvious that the profits of his calling must be very great, and that the penalties provided by the law to restrain his trade are not sufficiently strong.

22. The Committee, therefore, recommend that, in view of the acknowledged evils of this form of betting, there should be further legislation, enabling Magistrates to send bookmakers to prison without the option of a fine for the first offence, who have been convicted of betting in the streets with boys or girls, or otherwise inducing them to bet.

The Committee further recommend that bookmakers convicted of betting in the streets should be liable to a fine of £10 for the first offence, £20 for the second offence, and that for any subsequent offence it should be within

the discretion of the Magistrate either to impose a fine of not more than £50 or to send the bookmaker to prison without the option of a fine. The Committee also recommend that the police should be given the same power of summary arrest which they possess in cases of obstruction of the highway.

23. The Committee recommend that the following amendments should be made in the Betting Houses Act of 1853:—

- (i.) That in view of the uncertainty which has arisen since the decision of the Kempton Park case as to what constitutes a “place” within the meaning of the Act, further legislation should make it quite clear that bookmakers are prohibited from carrying on their business in public-houses or in any public place.
- (ii.) That the meaning of “resorting thereto,” that is, to a betting-house, in Section 1 should be extended so as to include persons making bets by correspondence or through an agent.
- (iii.) That, if thought necessary, having regard to recent decisions, it should be made clear that it is an offence under Section 1 for persons to use an office in the United Kingdom for obtaining the receipt of money elsewhere, whether within or without the United Kingdom, or for the proprietor of the office to permit such user.
- (iv.) That Section 7 should be extended so as to include the advertisement in this country of any betting-house within the meaning of the Act which is kept abroad.

24. The Committee further recommend that the Betting Act of 1874 should be extended to the advertising of information or advice to be obtained from any person or at any place, though it may not come within the description of a betting-house within Section 1 of the Act of 1853, and whether within or without the United Kingdom.

25. The Committee recommend that the Betting and Loans (Infants) Act 1892 (Lord Herschell's Act) should be extended to ready-money betting with infants, that is to say, the receipt of money from an infant as consideration for a bet to be made with such infant.

26. The Committee recommend that on any race-course bookmakers should only be allowed to carry on their business within definite rings and enclosures.

27. Various witnesses have given evidence as to the prevalence of betting at athletic meetings, and to the difficulty which owners of athletic grounds have in preventing a practice which they with justice consider opposed to the best interests of amateur sport.

28. Since the decision in the Kempton Park case, it has been impossible for the police to stop bookmakers carrying on their trade at athletic meetings, except at the direct request of the proprietors of the ground.

29. The Committee, therefore, recommend that on any race-course or other ground on which a sport is being carried on, where a printed notice is publicly exposed by the responsible authorities to the effect that "No betting is allowed," a bookmaker who continues to bet shall be liable to summary arrest and a fine.

30. It has been suggested in evidence before the Committee that powers should be given to the Postmaster-General and his principal assistants in Scotland and Ireland, to open all letters supposed to contain coupons or betting circulars sent from abroad.

In this connection the Committee have received valuable evidence from Mr. Lamb, C.B., C.M.G., and Sir Robert Hunter, on behalf of the Postmaster-General, which makes it impossible for them to recommend the proposed suggestion.

31. The Committee are, however, of the opinion that the same power as the Postmaster-General already possesses to stop letters sent in the open post relating to lotteries should be given to him to stop circulars relating to coupon competitions, or advertisements of betting commission agents and sporting tipsters.

32. The Committee do not consider that it would be possible for the Postmaster-General to make any distinction between the facilities afforded

to betting telegrams and other telegrams.

II

LORD DAVEY'S STREET BETTING BILL 1903

A Bill intituled “An Act to amend the Betting Acts 1853 and 1874, and for other purposes.”

Be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The word “resorting” in section one of the Betting Act 1853, and this Act, shall include applying by the agency of another person or by letter, telegraph, telephone, or other means of correspondence, and the word “resort” in section seven of the said Act, and in this Act, shall have the same meaning.

2. The provisions of section three of the Betting Act 1853 shall extend and apply to any person opening, keeping, or using, within the United Kingdom, any house, office, room, or place for the purpose of any money or valuable thing being received by or on behalf of the keeper of any betting-house or office situate either within or without the United Kingdom.

3. The provisions of section seven of the Betting Act 1853 shall extend and apply to any person exhibiting or publishing, or causing to be exhibited or published, any placard, handbill, card, writing, or other advertisement whereby it shall appear that any house, office, room, or place is opened, kept, or used either within or without the United Kingdom for the purposes in the said section mentioned or referred to, or any of them, and to any person who shall invite other persons to resort to any house, office, room, or place either within or without the United Kingdom for the purposes aforesaid or any of them: Provided that, if it appear that any such advertisement or invitation has been published in any registered newspaper inadvertently and without knowledge on the part of the proprietor or

manager of the newspaper of the nature of the business advertised or the meaning of the contents of the advertisement, the penalty may be remitted by the court.

4. (1) Any person exercising the business of a bookmaker or betting agent by betting or offering to bet with other persons or inciting other persons to bet with him, or receiving money or other valuable thing as consideration for any bet, or paying or settling any bets in any street or other public place, or any place to which the public have unrestricted access, or any house licensed for the sale of intoxicating liquors, shall be guilty of a misdemeanour, and shall be liable, if convicted for the first offence, to a fine not exceeding ten pounds, and for the second offence to a fine not exceeding twenty pounds, and for any subsequent offence, if convicted on indictment, to a fine not exceeding fifty pounds or to imprisonment, with or without hard labour, for a term not exceeding six months, without the option of a fine, and, if convicted on a summary conviction, to a fine not exceeding thirty pounds or to imprisonment, with or without hard labour, for a term not exceeding three months, without the option of a fine: Provided always, that if a person be convicted under this section of betting with any person under the age of sixteen years or receiving money from or paying money to any such person or inciting any such person to bet with him he shall be liable for the first and every subsequent offence to the maximum penalty or imprisonment hereinbefore imposed for the third and subsequent offences.

(2) All books, cards, papers, and other articles connected with such betting as aforesaid shall be deemed to be instruments of gaming, and any person so offending as aforesaid shall be deemed to be a rogue and vagabond within the meaning of fifth George the Fourth, chapter eighty-three, and shall be subject to be arrested and searched in accordance with the provisions in that behalf therein contained.

(3) Any person who appears to the court to be under the age of sixteen years shall for the purpose of this section be deemed to be under that age unless the contrary be proved.

(4) For the purpose of this section, the word "street" shall have the same meaning as in the Public Health Act 1875.

5. The proprietors or persons having the control of any area within which sports are carried on may exhibit at the entrance or in some conspicuous place within the same, notices that betting is prohibited within the said area or some part thereof, and, in that case, any person who shall hold himself out as ready to bet with other persons, or incite other persons to bet with him, within the area where betting is so prohibited, shall be guilty of an offence under this Act, and shall be liable to the same penalties as he would have been under this Act if he had been convicted of betting in the street.

6. Any person who knowingly receives money from an infant as consideration for a bet to be made with him shall be guilty of an offence within section one of the Betting and Loans (Infants) Act 1892, and shall be liable to the penalties imposed by that section, and the other provisions of the said Act shall be applicable to him.

7. (1) The penalties imposed by this Act may be recovered by proceedings under the Summary Jurisdiction Acts, and, in Scotland, in the manner provided by section four of the Betting Act 1874, save where otherwise provided; and, in Scotland, “indictment” has the same meaning as in the Criminal Procedure (Scotland) Act 1887.

(2) The provisions as to arrest and search contained in Statute of fifth George the Fourth, chapter eighty-three, shall, by this Act, be applied to offences under sections four and five of this Act committed in Scotland.

8. In this Act—

The word “bookmaker” means a person exercising the business of betting with persons resorting to him for the purpose:

The word “betting agent” means a person acting as agent for a bookmaker or for making bets between any two persons.

9. This Act may be cited as the Betting Act 1903, and shall be read with the Betting Acts 1853 and 1874.

NOTE.—Lord Davey has just introduced another Bill entitled “An Act for the Suppression of Betting in Streets and other Public Places” (Eyre and Spottiswoode, London, ½d.). It is a very valuable measure, but has been confined for good reasons to offences coming under the title of Street Betting. In any further legislation it will be necessary to bring the advertisements of Betting Houses, the proprietors of which call themselves Commission Agents, whether British or Foreign, under such provisions as those of the Betting Act 1853 (section 7), as pointed out by the Lord Chief Justice.

III

SUMMARY OF LORDS’ COMMISSION

HOUSE OF LORDS SELECT COMMITTEE ON BETTING

EXCERPTS FROM EVIDENCE

WITNESSES: Mr. JOHN HAWKE, Honorary Secretary, National Anti-Gambling League, and Mr. G. H. STUTFIELD, Counsel for the Jockey Club, and for the Bookmakers and Street Bookmakers.

Mr. HAWKE gave evidence as to the great increase during late years, especially in street betting at starting prices, and newspaper coupon betting; also as to betting at athletic sports and in public-houses; as to the bye-laws being passed by local authorities on street betting, and the enormous scale upon which coupons are carried on, one proprietor of an insignificant newspaper receiving between £2000 and £3000 a week in postal orders, etc., as acknowledged by himself in evidence. After his conviction his newspaper was advertising the business as continued from Holland.

Mr. STUTFIELD (Q. 299) said he believed that artisans of all ages and all classes, including women, put their small coins on horses through the street bookmakers.

He did not think (Q. 300, etc.) that such backers—he could not say about the children—required protection against being over-matched by the bookmakers.

He did not see any reason in legal principle (Q. 435-36) why foreign coupon houses should be allowed to advertise in English papers, but he did not think it would do any good to prohibit it.

He agreed that all, or nearly all, such betting as street betting was now done at starting prices (Q. 308-9), guaranteed by the bookmaker to the customers by the publication in newspapers of the starting-price odds (Q. 315-16), but he did not think (Q. 266) its prohibition would stop starting-price betting, as he expected that bookmakers would form some plan to reassure their clients (Q. 269) as to their being fairly dealt with.

He considered that a result of the Kempton Park case was that it was no infringement (Q. 475-76) of the Betting Act of 1853 for bookmakers to carry on their business in athletic sports grounds, and that under that decision (Q. 573) public-houses may practically become betting exchanges, and sometimes do. The Kempton Park case did not decide that the race-course ring could not be a place under the Act, but that it was not used by a person in the position of an occupier or owner (Q. 447-53).

He did not think that new forms and new kinds of betting should be dealt with in the same way as the 1853 Act dealt with what existed at that time; and he did not advocate any extension of it (Q. 443-44), as he did not consider that it was really intended to suppress betting (Q. 443) but that it may have done a certain amount of good in preventing crowds of people resorting to a particular house and creating scandal (Q. 438).

He did not, however, consider that the betting in public houses was very desirable (Q. 517), and would amend the Licensing Act. He did not think that bye-laws could deal with licensed houses, but that they might put down betting in streets and public places (Q. 602-3).

He said that if the bookmaker were suppressed there would be no betting (Q. 535-36), as he thought occasional private bets between individuals without a bookmaker could not be satisfactory (Q. 532).

With regard to the *friendly* actions in which Mr. Stutfield had been engaged as counsel on behalf of the betting men, viz. the *Kempton Park* case, *Stoddart of Sporting Luck* against his printers, the *Argus Printing Co.*, and *Thomas v. Sutters* (the street bookmaker's appeal against the bye-law), he maintained that there was nothing improper about them (Q. 411, 552, 561).

Mr. HAWKE also gave evidence as to the corruption of the public services and British sports by the professional betting system, and of its disastrous

effects, especially among the wage-earning classes. Amongst the records of his Society taken from the courts of law in five and a half years were 80 suicides, 321 embezzlements, and 191 bankruptcies, the witness pointing out reasons for believing that these numbers were very much below the true totals.

Mr. HAWKE said that his Society held the same opinion as that published by Sir Fitzjames Stephen (author of the *Digest of the Criminal Law*) in the *Nineteenth Century Magazine*, July 1891, who said that the business of a betting agent was carried on in defiance of the general body of the law, and added, "The existence of such a person appears to me to be an insult to the law." The National Anti-Gambling League made the following recommendations, based upon a study of the question lasting over eight years:—

<i>Street and Public Place Betting.</i>	Increased fines and imprisonment.
<i>Newspaper Coupon Betting.</i>	Making it illegal to publish Advertisements of English and foreign betting-houses.
<i>Tipsters' Circulars.</i>	Making illegal to issue.
<i>Paying Bets in Public-houses.</i>	Making illegal.
<i>Areas controlled by Private Proprietors.</i>	Amending the Act of 1853 if the <i>Powell v. Kempton Park</i> case should be accepted as the correct construction of the Act.
<i>Publication of the Betting Odds (S.P. or Ante-post).</i>	Making illegal.
<i>Trade of Professional Betting.</i>	Making illegal.

Colonel FLUDYER (commanding Scots' Guards), Chairman of Tattersall's Committee, said that they spent a great deal of time in adjusting betting disputes. He advocated licensing bookmakers who plied their trade away from the race-course, but leaving things at races as they are.

CHIEF CONSTABLE OF MANCHESTER said that the increase in betting was chiefly among artisans and the working classes generally, resulting in neglect of wives and children, disregard for parents, becoming careless and indifferent in their occupations, and frequent embezzlements from their employers. Betting was general at athletic meetings in the Manchester district, many of them depending on it for financial success. The Kempton Park decision had prevented police action. In many instances competitors perform only to suit the books of the betting men. Street betting was the most pernicious form of the evil. Some publicans pay street bookmakers to carry on in proximity to their houses. He advocated a large fine and imprisonment for street offenders. Incitements to betting in newspapers should be restrained, and the transmission by post of betting matter should be made illegal.

SIR ALBERT DE RUTZEN, chief Metropolitan Police Magistrate, spoke with twenty-five years' experience of the Bench in saying that more mischief was brought about by betting than by almost any other cause, especially street betting, which could very well be put down if proper steps were taken. He would increase the fine for a second offence, and for the third treat a bookmaker as a rogue and vagabond under the Vagrants Act. From personal knowledge he could say that the evil arising from betting was as deep-seated as it was possible to be. In cases where persons prosecuted for embezzlement and betting was mentioned as the cause, his Court was in the habit of making inquiries, which invariably confirmed the statements. With regard to the Kempton Park case, he could not understand how they were not committing an offence on the race-course while they were condemned for doing the same thing in public-houses.

Mr. HORACE SMITH, Metropolitan Police Magistrate, said he entirely concurred with what Sir A. de Rutzen had said with regard to the need for more repressing laws. Where the crime had been one of fraud or embezzlement he had invariably found that betting had been at the bottom of it.

Mr. LUKE SHARP, Official Receiver for Birmingham, gave evidence upon betting as a cause of bankruptcy.

MASTER OF HARROW: Betting in the school was largely due to the parents, who encouraged it. It was chiefly in the form of sweepstakes on big races.

They also suffered by circulars from foreign betting-houses, which the Post Office transmitted.

F. W. SPRUCE, a betting man, thought that the number of bookmakers had greatly increased, that the trade would be improved and street betting reduced by licensing, but that otherwise there should be free trade in professional betting.

JAMES SUTTERS, another betting man, also advocated licensing. He thought that street betting might with advantage be restrained, but considered it a very respectable trade, although he agreed that it was not becoming for women.

Mr. CHARLES GOULD, J.P., Epsom, had complained to the Home Office of the inadequacy of the police force sent to Epsom Races. The last communication he had received was to the effect that the Home Secretary had been informed that as there were several thousands of these dishonest betting men, it would be impossible to provide sufficient police protection.

Mr. RUSSELL ALLEN, managing proprietor of the *Manchester Evening News*, gave evidence as to the harm done by the betting press, particularly the halfpenny papers, with their racing editions, which conduced largely to the class of betting done in the street by working men, concerning which he read letters from employers of labour attributing fraud and embezzlement to their work-people betting. Great numbers of bets were also made inside the works. His own newspaper had given up tips and tipsters' advertisements, and had suffered accordingly. It was not prudent for a newspaper to go beyond that single-handed. If starting prices were made illegal of publication for all alike, it would have a great effect.

Superintendent SHANNON, of the L Division, Metropolitan Police, had had great experience of the evils of street betting. Last year^[14] in Lambeth 441 persons had been proceeded against. They were fined over £2000 in all. One man was fined sixteen times in the year. Every large firm's employees in South London were waited on by one or more bookmakers. All the bookmakers employed scouts to give them warning.

Superintendent WELLS, of the Limehouse Division, said there had been a great increase in street betting in East London in the last few years. One man was fined twenty-eight times and one twenty-seven. The bookmakers

took up their stands outside the railway stations and factories, and in the busy streets. They were thus enabled to catch the workmen going to or from their work.

Lord Provost CHISHOLM, of Glasgow, gave evidence with the knowledge and sanction of the Corporation. Betting had increased all round, especially street betting with the industrial classes. He spoke both from personal knowledge and the complaints made to him by citizens. Betting was carried on to a large extent in factories and workshops, the bookmakers sometimes having their own agents employed in them. He would make the penalties more severe, and would seize all money found on bookmakers and imprison them. He believed public opinion would support such measures. He was opposed to licensing bookmakers. Women were in the habit of betting with bookmakers like men.

CHIEF CONSTABLE OF GLASGOW: He agreed with the evidence of the previous witness. Licensing would only encourage the bookmakers. They ought to be imprisoned. There was very great risk of the police being tampered with by bookmakers. Some had already been bribed. Many Glasgow bookmakers did business by telegram and letter. The Post Office had been complained to, but could do nothing.

Mr. BRYAN THOMAS, Hon. Sec. of a Labour Organisation, said he had forty years' experience among the working men of East London. He would do away with street betting entirely. He would treat the bookmakers as rogues, and give them three months' hard labour.

Rt. Hon. JAS. LOWTHER, M.P., a member of the Jockey Club for twenty-five years, did not think that large bets had increased of late years, but betting was more widely diffused, and not confined to sporting circles. He considered that there had been a great increase of betting all round. He could not suggest any way of reducing the misery caused by it. He saw difficulties in the way of licensing bookmakers.

Mr. W. B. WOODGATE, the well-known aquatic authority, would license bookmakers, and would fine any of them practising without a licence £500 or six months' hard labour. The witness related a case of police bribing which he had brought before the authorities at Scotland Yard, but it ended in nothing owing to their careless handling of it.

Mr. EDWARD HULTON,^[15] jun., of the Manchester *Sporting Chronicle*, was against the prohibiting the publication of the odds, and in favour of licensing bookmakers.

Mr. J. BAIN, formerly a member of Tattersall's Club, also of the Victoria, Beaufort, and Albert Clubs, gave evidence as to the poisoning of race-horses for the purposes of the betting market, and how leading bookmakers were laying heavily at the club against the poisoned horses before the general public knew of what had been done. He also showed that many of the prices quoted in the newspapers were mere bogus quotations to induce the outside public to bet.

Colonel TANNETT WALKER, a large employer of labour at engineering works near Leeds, said that betting was the very worst thing any one could take to, and did a great deal of harm. The workman very often knew nothing whatever of horses. His usefulness was destroyed by betting, however skilful he might be, as so much of his time and thought were taken up with it. He would favour anything that would put a stop to street betting. The boys were encouraged to bet in the workshops.

Mr. LAMB, second secretary to the Post Office, said there were 82 special telegraphists engaged at Doncaster Races; 30,000 private telegrams were sent off. Gambling in any form was regarded as a most serious offence in that Department, and any of its servants are thereby rendered liable to dismissal. Employees were often tempted in the course of their duty while attending to betting telegrams.

Sir ROBERT HUNTER, solicitor to the Post Office, explained that there was not the same power over betting as over lottery communications, owing to an interpretation of the Advertising Act of 1874 confining it to such betting as was localised in a particular house or place.

The DUKE OF DEVONSHIRE, Minister for Education, had been engaged on racing for a considerable time. Thought that there was nothing wrong or immoral in betting. He would very much regret its being stopped: it would seriously injure the national amusement of horse-racing. He thought betting the support of racing. Saw nothing wrong in the bookmaker's profession, and, in reply to a question as to their taking small sums from children in poor neighbourhoods, he said he had no knowledge of that sort of betting.

He could not give any opinion about licensing. He did not know at what point betting was too general.

Mr. ROBERT KNIGHT, J.P., Newcastle, for twenty-nine years secretary of a Trades Union numbering 50,000 members, had thirty-two years' experience of the working classes. Betting was largely on the increase among them, especially young men and women. In three and a half hours a bookmaker in South Shields was seen to take 236 bets. Bookmakers went from door to door inducing women to bet. Some took as little as sixpence. Employers found that intelligent, concentrated effort cannot be got from minds absorbed in betting. He would neither employ nor trust men who indulged in it. The facilities offered by the press are largely responsible. Betting among the young had become rampant. Lads of bright intellect were found to develop cunning instead of character. If the betting craze was not checked the sober youths of Germany would take the reins of the commercial world. The odds, tips, and bettings news should be abolished from the newspapers. The Trades Unions endeavoured to stop betting, and would not appoint a man known to indulge in it to any place of authority or trust.

Rev. J. W. HORSLEY, M.A., J.P., Rector of St. Peter's, Walworth, for ten years prison chaplain, during which time 100,000 people passed through his hands, said betting was a frequent source of trouble. In one gaol there was a whole wing set apart for these prisoners. It was now increasing more than ever. He considered the example of the aristocracy greatly to blame; and said that if the King would stay away from race-courses where professional betting went on it would do more than anything else to assist in putting an end to it.

IV

OPINIONS OF EMINENT MEN ON BETTING AND GAMBLING

THE LATE CHIEF-JUSTICE RUSSELL.—“Street betting is a most undesirable practice. A state of things exists which, if it can be stopped, ought to be stopped.”

Mr. Justice WILLS.—“When I first came upon the Bench I used to think drink was the most fruitful cause of crime, but it is now a question whether the unlimited facilities for illegitimate speculation on the part of people who have no means of embarking on it are not a more prevalent source of mischief and crime even than drink.”

Mr. Justice HAWKINS.—“I know nothing more likely to ruin a young and inexperienced man than the system of betting which goes on around us.”

Mr. Justice GRANTHAM.—“Gambling with bookmakers is the cause of more crime and misery than anything else in the land.”

Mr. Justice DARLING.—“No one could attend the Civil and Criminal Courts without knowing that many persons spent a much larger amount of time in betting than they devoted to their own business.”

Mr. HORACE SMITH (London Stipendiary Magistrate).—“Nearly every case of embezzlement I try has resulted from betting, and then to pay their losses they rob their employers.”

Alderman SUTTON (Newcastle Magistrate).—“The working men of the north of England put money on horses, and when they lose take their employers’ property.”

CHAIRMAN OF MAGISTRATES (Seacome Bank embezzlement case).—“The whole secret of the wrongdoing seems to be in the systematic agency employed all over the country to tempt men from the path of rectitude and virtue.”

Mr. BROS (London Stipendiary Magistrate).—“Betting is generally the downfall of clerks and servants who are charged with embezzlement.”

CORONER FOR MID-SURREY.—“The poor lad, like many thousands of others, was led away by the fallacious idea that he was going to make money by backing horses. Men earning fifteen or twenty shillings a week cannot afford to lose sixpence in betting.”

CHIEF-CONSTABLE OF SOUTHAMPTON.—“Street betting is a disgrace to the town. One man is making £1000 a year by it.”

BIRMINGHAM OFFICIAL RECEIVER.—“Half of the bankruptcies which come before me are due to gambling.”

General WAVELL.—“I have been speaking to an officer, who says it is perfectly piteous to see the way our young soldiers, drummer boys, trumpeters, and others rush off to get the halfpenny newspapers, not to ascertain how their comrades are faring, but simply to get the betting odds and nothing else.”

BRADFORD SCHOOL BOARD RESOLUTION.—“The attention of the Board having been called to the general prevalence of betting and gambling, and the appalling evils arising therefrom, it is hereby resolved that the teachers be requested to take every opportunity to point out to the scholars the injurious effect of the vice.”

Mr. CURTIS BENNETT (Marylebone Police Court).—“I am convinced from my experience as a Magistrate that nothing is so productive of crime among young people as street betting. It is an evil far worse than drunkenness, and I agree with Mr. Justice Wills that it is the greatest curse of this country.”

CHAIRMAN OF CROYDON BENCH.—“It seems a very good paying game. I think the Government, as soon as they have time, will have to take into consideration whether the law should not be altered.” These remarks were called forth by a bookmaker who had been summoned, producing a handful of sovereigns, and suggesting that it would save time for him to pay the fine at once without the evidence being heard.

LUTON TOWN COUNCILLORS:—

Alderman OAKLEY, J.P.—“The Watch Committee reports show that betting is much on the increase. It is even affecting school children.”

Alderman DILLINGHAM.—“It breaks up many homes and leads people to rob their employers. It is the forerunner of drunkenness.”

THE DEPUTY MAYOR.—“It is a grave temptation.”

Mr. WARREN.—“It is bringing a great calamity on the land. It is one of the biggest evils England has to contend with. The young people in Luton are led away to an alarming extent.”

Alderman Sir J. RENALS.—“Street betting has become an intolerable nuisance in the city.”

LORD CHIEF-JUSTICE (Lord ALVERSTONE).—“Sport never ought to be of necessity associated with gambling or betting. Those who had to do with the administration of the law knew that there was nothing in their great towns—and he was afraid in the smaller ones too—that brought more people in the humbler walks of life misery and ruin than the betting agents.”

BISHOP OF LIVERPOOL (Dr. CHAVASSE).—“He called upon them, in the name of their Master Christ, to rise up and fight this awful foe of gambling and betting, lest they ate the heart out of the Church and nation, and a just God punished them with a righteous retribution.”

RECORDER OF BATH (Mr. H. C. FOLKARD).—“He was afraid that the pernicious practice of betting and gambling was becoming very prevalent throughout the country. Many gave way to the evil who were in good situations and positions of trust. The bookmakers were a great evil.”

Lord CHARLES BERESFORD.—“The worst of all vices. On board a ship it is particularly pestilent. Its practice has destroyed many fine characters, and has been the means of causing unbounded misery to innocent and deserving persons.”

Sir GEORGE WHITE (of Ladysmith).—“I know the evil effects of gambling. Society in which gambling is promoted fails in all the higher aims. Instead of its members being drawn into real friendship, they generally dislike and distrust each other.”

Admiral Sir H. H. RAWSON.—“I have no hesitation in saying that next to drunkenness I think gambling is one of the worst and most dangerous of the vices. I have always set my face against it, as I have seen three or four cases where it has led to most terrible consequences. It becomes a regular mania and an absorbing business.”

Admiral SWINTON HOLLAND.—“It is ruining some of our finest English sports, specially football.”

PRINCE LOUIS OF BATTENBERG.—“As regards a man-of-war, there is one aspect which is not always borne in view. Two men of different service rank gambling together; the senior loses money to the junior, perhaps more than he can pay at once. Think of the effect on discipline.”

Mr. J. G. BUTCHER, M.P.—“I am disposed to think (though I have no accurate information upon the subject) that the practice of betting and gambling prevails amongst larger sections of the community than in former times. If that be so, I regard it as a national calamity. Once the practice is begun it is exceedingly difficult for those who engage in it to limit their losses to such sums as they can easily afford to lose. The best forms of sport—such as cricket, football, and even horse-racing—can, in my judgment, be most fully enjoyed without staking money on the result.”

Mr. RICHARD BELL, M.P. (Secretary Amalgamated Society Railway Servants).—“There is nothing, to my mind, which is so damning to the progress of the working classes as the gambling which is now practised in every town in England. This is not, unfortunately, confined to horse-racing, but it has now spread to football, cricket, and almost everything else. During the period of prosperity, when a large number of workers are earning good wages, it is regrettable to think that they do not take care of the few extra shillings they then receive, but indulge so freely in drinking and gambling, so that when they are meeting with a little depression they are entirely at the mercy of the employers, and have to put up with circumstances which they otherwise would not.”

ARCHBISHOP OF YORK.—“I heartily wish you success in your effort to stay the progress of this terrible plague, which is bringing misery and ruin upon thousands of our fellow-countrymen.”

Mr. Justice RIDLEY.—“The Gaming Act, though designed to prevent betting, has not brought about that result.”

COMMON SERJEANT OF LONDON.—“Gambling in hopes of realising large profits by chance, then when they lost instead of winning they were impelled to reimburse themselves by dishonesty.”

Mr. Justice BUCKNILL.—“This betting curse, which is being carried on in a shocking manner, has got to be put down with a severe hand, and, so far as I am concerned, I will do so to the utmost of my power.”

JOHN HAWKE (Hon. Sec. National Anti-Gambling League).—“Gambling is becoming a worse evil and a more serious cause of poverty than drink.”

Rt. Hon. Sir HENRY CAMPBELL-BANNERMAN.—“I long ago formed the opinion that betting and gambling come next to drink (and doubt even if

they come below it) in the measure of the curse they bring upon society.”

The late G. F. WATTS.—“I look across our English world and see clearly and distinctly the two vices which, more than anything else, are obstructing the wheels of progress: drinking and gambling. They are apparent to the least observant of men. You cannot take up a paper or walk through the streets of a city, without realising the awful ruin which these two evils are working in the world. But if this is the general agreement of mankind, why is there no concentration of national energy on the subject? Think how great a revolution would be wrought in English character and in English health if legislation set itself sternly to the task of preventing drunkenness and gambling. Just those two things! Is it not possible for political parties to sink their party differences, and to combine to fight against these two root causes of national degeneration and national unrest? Surely, surely!”

V

A NOTE ON PEDESTRIANISM

The following notes may prove interesting, as showing how attempts are made to corrupt one of the best and healthiest of all sports.

MR. CHARLES SOUCH says:—“I am now groundsman for the Cheetham Cricket Ground, Cheetham, Manchester, and I reside near the ground. I was for several years groundsman for the Manchester Athletic Club, Fallowfield.

“I have taken a prominent part in sports and athletic meetings all over the country for the past twenty-three years, and am still running. I have fifty-five medals, watches, clocks, cups, etc., etc., which I have won to any number.

“In 1892 I won the Northern Cross-country 10-mile Championship. I ran second to Parry in 1888 in the National Challengeship. I could fill pages of races I have taken part in and athletic meetings I have attended, but you want my experience of the honesty or otherwise of persons competing and taking part in these sports. Well, my opinion is, and I may say it is perfectly

plain to be seen by any one who likes to look, that wherever there are betting men and bookmakers at athletic meetings then the running is dishonest. It is true that I have attended amateur athletic sports in a small way where absolutely no betting was done; then every person competing tried his very best, but this is the exception.

“On one occasion, at a small meeting near Coventry, I was on the scratch at a half-mile hurdle race. I was giving 100 yards limit. Just prior to the race starting, a man—one of the competitors—came to me and asked me to stand down,—meaning for me not to win,—and said he would make it all right for me. I refused, and meant to try and win, as I may say I always did. This was done in order to allow a certain man to win, and the man who asked was in league with a bookmaker. During the race, and when at the second hurdle, the man I have just referred to was in front of me. Whilst jumping the hurdle he purposely tumbled in front of me and fetched me to the ground. He detained me a little, and the result was his man got first and I was second. This was a flagrant case, and I complained to the officials, but nothing came of it.

“In 1889, on Whit-Monday, I went to Wrexham and took part in several events at a meeting there, and in the three miles scratch race, when I had run about the half distance, a bookmaker came on to the course and caught hold of me; I wrestled with him and got away; I ultimately won the race in spite of this obstruction. Nothing was done to this man, although he was known.

“I have known in my time any number of men who called themselves amateurs and who regularly attended athletic meetings, and after having won their ‘heats’ absolutely made no attempt to win the finals. Some of these men I have known to be kept by bookmakers and never did any work, but attended these meetings and worked in collusion with the bookmakers.

“I have often been stopped in the middle of a race by other runners stepping in front of me, causing me to go round them.

“I could go on recounting similar experiences, but there is a sameness about them all. There is not one quarter of the so-called amateur athletes who try to win, and what I say is quite plain to be seen by any one.

“Another common practice is when the runners are leaving the dressing-tent to hear whispers that so-and-so is going to try and so-and-so is not trying, and in many instances, to my own knowledge, the thing is arranged before they leave the tent.

“During the time of a meeting certain men who have entered as runners can be seen leaving the tent just as the runners are turning out and go to the bookmakers, giving the tip as to who is to try and who is not. Finally, my opinion—and, as I have already said, I have had twenty-three years’ experience—is that the whole system is rotten. The same system obtains in connection with cycle racing, only more so. I would add, however, that if you clear the ground of betting men and bookmakers then you will have more honest sport; as it is at present it is absolutely dishonest. I have been afraid after a race to meet some of these people, and usually got out of the way as soon as possible. As a matter of fact, on one occasion when going for my prizes some fellow—no doubt a bookie—struck me from the crowd a violent blow on the eye, making it black, simply because I had refused to be bought. I have been offered sums of money times and times beyond number to sell myself to them, but I always declined. Perhaps if I had lent myself to that practice I would have had more money now than I have.”

VI

TIPSTERS AND TIPSTERS’ ADVERTISEMENTS

LORD DURHAM, speaking at the Gimcrack Club Dinner in York on Friday December 9, 1904, drew attention to the evil of the tipster in terms which caused quite a commotion in the sporting press of the country. He said that “representations were made to clerks of courses that they should saddle themselves with impracticable duties, and race-course managers were instructed how to conduct their meetings by people who had not the slightest knowledge of race-courses, and paid no consideration to the material factors that in many cases hampered their action. He knew that some people paid very little attention to what sporting writers said, but there were thousands of people who were unable to judge independently, and if they believed what they read would gain a false impression of the Turf, and

of the habits and characters of its supporters. His object in mentioning this matter was twofold. One was to warn the racing public not to pay too much attention to those writers, and the other was to suggest to such sporting newspapers that professed to uphold the morality of the Turf—and he mentioned the *Sportsman*, the *Sporting Life*, and the *Sporting Chronicle*, which he challenged to prove their good intentions—a very desirable reform, and that was simply to refuse to publish what was known as tipsters' advertisements, those scoundrels who exercised a most pernicious influence upon the Turf. The representatives of the *Sportsman*, the *Sporting Life*, and the *Sporting Chronicle* were examined upon this very question before the House of Lords' Committee, and every member of that Committee knew very well that the members of the Jockey Club and the owners and trainers all expressed their utmost detestation of these tipsters. They knew that there was not a trainer in England who could not tell them what a curse these tipsters and touts were amongst their stable lads. They attempted to suborn them and to bribe them to betray stable secrets. What were stable secrets after all? He considered that they were merely the fulfilment of his duty on the part of a trainer, whose business and desire was to keep his employers informed as to the progress and the wellbeing of their property committed to his care. Outsiders had no more right to try to obtain by illicit means information on these matters than a burglar had to break into a house and steal property. If these sporting newspapers denied that these tipsters obtained information by improper means he thought they would be on the horns of a dilemma. If they did not obtain this information by corrupt means he should like these sporting papers to explain why they accepted money from tipsters for advertisements which professedly did claim to obtain this information.

“The alpha and omega of the tipster's trade was misrepresentation. It was to their interests to say that all trainers were disloyal to their owners, and that jockeys pulled their horses. A friend of his this year out of curiosity subscribed to one of the most notorious of these tipsters. He wrote to say that he was not satisfied with the result, that he had expected some more reliable and exclusive information for his money, that he could not go on subscribing for such bad tips. The man replied with a long rigmarole to the effect that the horses had been fancied and backed by their owners, but that they raced most peculiarly, and added, ‘but what could they do when the jockeys who rode them would not let them show their true form.’ This

tipster advertised largely; he had hundreds and probably thousands of clients, and if he had written in a similar strain to many of these foolish creatures, was it not easy to understand why small owners and trainers were made out to be rogues. I am sure,” said Lord Durham with emphasis, “there is not an honest man on the turf who will not agree that these tipsters and their circulars should be suppressed. I would commend the example of the *Truth* newspaper, which for some years has most zealously denounced some of the most notorious of these wretches. I am certain I have made a speech which will not be very highly eulogised by the sporting press, but if I have on my side some of those honourable and straightforward sporting writers to whom I have alluded as being too few in number to counteract the evil of the majority, I will bear with equanimity any adverse criticism” (*Yorkshire Herald*, December 10, 1904).

The following extracts from *Truth*, February 11, 1904, will serve to emphasise the accuracy of Lord Durham’s observations:—

Turf Tipsters, Betting Agents, and System-mongers

Whether one agrees or not with Lord Beaconsfield’s uncompromising condemnation of the Turf as a vast engine of national demoralisation, it is impossible to deny that the racing world provides an exceptionally fertile field for the practice of fraud and trickery that is akin to fraud. Nowhere else do knaves prey upon fools so easily, so safely, and so profitably. Take first the case of the tipsters. It is well within the mark to say that nine-tenths of these gentry live by lying. If they did not tell lies they could not sell their tips. Many of them circulate absolutely fictitious lists of winners that they have found, and practically all of them make pretences as to the sources of their information and the infallibility of their prophecies that they know to be false. If their judgment or prevision enabled them to foresee the results of races with the consistency that they claim, it stands to reason that they would not be offering to sell tips to all and sundry when, however small their capital at starting, they might be piling up a fortune by backing horses for themselves. But this obvious consideration never crosses the mind of the gullish herd of backers. No story of his successes that a tipster puts forward is too steep for them, and as fast as one lot of dupes is disillusioned he gets

another. The following is a list of some of the false prophets of the Turf whom I have pilloried during the past twelve months:—

E. W. BESTON, Birmingham.—During the flat-racing season, which is also the principal flat-catching season, this individual issues a weekly paper called the *Midland Referee*, nominally priced at sixpence, but sent out gratuitously, in which vituperative attacks upon rival tipsters are mingled with extravagant puffs of “Dan Bruce,” “Miss Flossie Beresford,” “Percy Macdonald,” “James Brown,” “Reginald Vernon,” “Walter Hooley,” “George Leslie,” “George Graham,” “E. Allsopp,” “Hugh Owen,” “George Westwood,” etc. All these are aliases under which Beston himself carries on business as a tipster from a number of accommodation addresses in Birmingham and the neighbourhood. He bamboozles people into buying his tips not only through the medium of the *Midland Referee*, but by means of advertisements in his various aliases in many English and Irish newspapers, and by extensive distribution of circulars through the post. Not long since I gave a case in which a greenhorn paid Beston as “Flossie Beresford” £3 for twenty sixpenny telegrams containing forty predictions, of which only four came off! It is unnecessary to cite examples of the unblushing mendacity of this Protean rascal, or to describe in detail the artful dodges that he practises, but one ramp that he carried out last October is worthy of notice. Besides the *Midland Referee*, Beston publishes the *Winning Guide* and other rags which he represents as sporting journals. In October, some days before the Cesarewitch was run, advertisements appeared announcing that a specimen copy of the *Secret Special*, containing a “certainty” for that handicap, would be sent free to any applicant. The copies so supplied were dated the Monday before the Cesarewitch, but were not posted in Birmingham till the following Wednesday evening, three or four hours after the race had been run. It is easy to prophesy after the event, and these copies of the *Secret Special* named the outsider which won

the Cesarewitch. But Beston knows his public, and no doubt many mugs, too obtuse to see that this wonderful “tip” had been printed when the race was over, were bagged as subscribers to the *Secret Special*—a mere tipster’s circular—at 5s. a week.

FRED COBB, 6 Ludgate Arcade, E.C.—Styles himself the “manager” of a diminutive tipster’s publication called the *Peerless Special*, for which subscriptions are invited at the rate of 5s. a copy, or £5: 5s. for the racing season. On at least one occasion last season he circulated specimen copies which, though dated before, were printed after an important race, thereby enabling him to give the name of the winner. When he really does “tip” prior to a race Cobb is less successful. In one number of the *Peerless Special* he gave fourteen horses, and among the whole lot there was not a solitary winner.

MACDONALD, 14 Whitcomb Street, Pall Mall.—Publishes a small four-page tipster’s sheet entitled the *Turf Pioneer*, besides supplying “guarantee wires” and “invincible daily telegrams.” One number of the *Turf Pioneer* named six horses for races that week. Five of them never started; the sixth was beaten.

FRED RICKABY, 45 Regent Square, Brighton.—Nine losers out of ten selections was this prophet’s record one week; nevertheless, he at once issued a circular in quest of fresh customers, claiming that he had given seven winners and only three losers.

“R. ORMONDE AND CO.,” 14 New Street, Birmingham.—Represent themselves as “part owners of several useful horses,” and specially circularise such persons as the “head boots” at hotels.

CHARLES ROBINSON, Smith Street, Epsom.—Refers in his circulars to that “estimable journal, *Truth*,” but, needless to say, does not mention my warnings against Charles Robinson.

ARTHUR MACCALL, Archdale House, Marlborough Road, St. John's Wood.—Offers to return the money paid by any one dissatisfied with his tips. Having paid 20s. for five wires, all “wrong ’uns,” a victim asked for the return of that sum. MacCall replied by sending a circular bragging of his “march of triumph,” and offering more wires at the same price!

“V. VEE,” Morion House, Newmarket.—Pretends to be an owner of race-horses. There is reason to believe that “V. Vee” is an alias of the above-mentioned Arthur MacCall.

“JOHN KINGFIELD,” otherwise “Frank Foreman,” the Post Office, —.—Through the supineness of the Postmaster-General, this travelling tipster is allowed to use the Post Office in different towns where races are being held as an accommodation address.

M. B. PIZZEY, Heath Villa, Ascot.—This tipster formerly owned a number of race-horses, but owing to exposures in *Truth* the Jockey Club forced him to give up his ownership under a threat of being “warned off” the Turf. Now an ordinary touting tipster.

“ARTHUR MORDAUNT,” Oak Villa, Ascot.—Pizzey under another name.

“CAPTAIN” W. GOUGH, Chavey Down, Bracknell, Berks.—Supposed to be connected with Pizzey.

— KEEBLE, H.M. Prison, Wormwood Scrubbs.—Now serving six months' hard labour for fraudulently offering tips in the name of Mr. W. H. Schwind, an owner. Another rascal last year perpetrated a similar swindle by assuming the name of Mr. Sievier.

HOBDAV, 3 Bridge Avenue Mansions, Hammersmith.—An ornament of the profession who, having backed his own tips and lost, pleaded the Gaming Act when the confiding bookmaker sued him.

J. ALEXANDER, 5 New Turnstile, W.C.—A trickster pretending that he works “for a gentleman who has made a fortune out of the Turf.”

H. SINCLAIR, *The Excelsior*.—Sends out under this title a tiny sheet containing “tips” of races run two or three hour’s before it was posted, the object being to secure subscribers for a “daily wire service.”

ARTHUR CRADDOCK, 16 Air Street, Piccadilly.—Distributes tips by circular unsolicited, and when he chances to name a winner forwards another circular demanding “remuneration.”

H. HIBBERT, Florinda Villa, Stevenage Road, Fulham.

L. RIVERS, 1 Conway Cottages, Lower Station Road, Newmarket.

J. J. KIRK, Southwick, and 115 Queen’s Road, Brighton.

MANSEY, 123 Holloway Road, London.

Old-fashioned race-course welshing is, I believe, not quite so prevalent as it used to be. The up-to-date welsher adopts a less hazardous plan of campaign. Instead of running the gauntlet of an angry mob on the race-course, he does his swindling more sedately in an office, where he is out of the reach of his victims. Calling himself a commission agent or a Turf accountant, he advertises in the Press or sends out circulars inviting backers to open accounts with him. When they lose he takes their money; when they win he refuses to pay up. I cannot say that I have any sympathy for the greenhorns who are plundered by these bandits of the Turf. There are plenty of bookmakers who carry on their business in a perfectly honest and straightforward manner. But a man is not necessarily one of this class because he sends out a speciously-worded circular from an office in the West End or elsewhere; and if people will be so stupid as to open betting accounts on the strength of such circulars, knowing nothing of the party with whom they are dealing beyond what he has himself told them, it seems to me that they need the lesson they are pretty certain to receive. The

following are circularising betting agents who have come under my notice during the past year:—

JOHN FENWICK AND CO., 167 Piccadilly.—A defaulter.

G. H. CHARDSON, 25 Wellington Street, Strand.—A defaulter.

CHARLES KITTELL, 21 Copthall Avenue, E.C.—A defaulter.

FLOYD McDERMOTT AND SCOTT, 58 Gillett Row, Thornton Heath.—Defaulters.

S. RUSSELL.—A welsher whose address is frequently changed. Describes himself in his circulars as “member of Tattersall’s Ring.”

GEORGE SILKE, 3 James Street, Haymarket.—A defaulter. Represents himself as a member of Tattersall’s, which is untrue.

“MALLARD AND CO.” and “GEORGE SHAW,” 10 Dawes Street, S.W.—Names used by a swindler whose only known address is a small shop where letters are taken in for him.

EDGAR AND CO., 24 Trevor Square, Knightsbridge.—Sharps whose impudent method of “doing” a customer out of a considerable sum of money I exposed last October.

HARRY WILLIAMS, Piccadilly Circus Mansions, 67a Shaftesbury Avenue, W.—Upon being asked to pay an account a week after the settling day, Williams refused to pay at all, on the ground that an application for the money was an “impertinence.”

ALEC A. HARRIS AND CO., Agra, Gresham Road, Staines.—This is seemingly an alias chosen to induce incautious backers to believe that they are dealing with Alex. Harris, a well-known and highly-respected bookmaker. Needless to say, Mr. Alex. Harris is not in any way connected with this shady starting-price office at Staines.

C. B. RAE, 12 Duke Street, S.W.—Before he blossomed forth as a touting bookmaker this individual, whose real name is Sydney Reed, practised as a solicitor and was implicated in a cruel fraud.

ROBERT ADAMSON, Disraeli Gardens, Putney.—A harpy who tries to bribe club servants into furnishing him with the names of likely gulls.

J. GORDON YOUNGLY, Bedford Hotel Chambers, Covent Garden.—States in his circulars that “your name as a sportsman” has been given to him by “Mr. T. Forrester, 21 London Street, E.C.” This is an accommodation address, and “Mr. T. Forrester” is apparently J. Gordon Youngly under another name.

C. BENNETT, King William Street, E.C.—Professes to have Army officers and City merchants for his clients, but specially circularises “the coachman” at country houses.

With an infantile ingenuousness which is little short of downright idiocy, people are found ready not only to credit the existence of infallible systems of betting, but to hand over their cash without the least security to any stranger undertaking to “invest” it in the working of such a system. Most of the gentry whose prospectuses promise fabulous profits upon “investments” of this kind are much too astute to attempt to work any system of betting. They simply put the money in their pockets, and in due course inform the investor that owing to an unexampled run of bad luck the system has failed:

A. JACKSON AND CO., The Hague, Holland.—Invites people to trust him with money for investment upon any one of a series of “systems” explained in his prospectus. If the system chosen happens to show a profit for a few days, Jackson declines to return the capital or pay over the winnings, sticking to the money till it has been (as he alleges) lost. One mug sent Jackson £100, and in the first week won (on paper) £56. Ignoring his orders to stop,

Jackson went on working (or pretending to work) the system for another fortnight, by which time the £156 had all disappeared. An action was then brought and Jackson pleaded the Gaming Act.

BEVAN, SON, AND THOMPSON, Delft, Holland.—Promoters of turf sweepstakes, and suspected of being identical with the above-mentioned Jackson.

BROWN, BELL, AND CO., 18 Featherstone Buildings, W.C.—Ordinary system-mongering sharps.

C. WOOD, 148 Old Street, E.C.—Advertises in the daily papers that “£5 invested pays £1 weekly,” and offers shares in a syndicate for backing first favourites. The syndicate’s capital is always lost, and Wood goes on his way rejoicing at the gullibility of the public.

J. L. AUCKLAND, 132 Kilmore Road, Crofton Park.—By way of variation upon the more familiar first favourite system, this scoundrel pretends to use his dupes’ money in backing “the last horse quoted” in the betting returns published in the press the day after a race. A transparent fraud, as in nine races out of ten it is impossible for anybody to know beforehand which of several outsiders starting at the same price will be “the last horse quoted” in the betting returns next day.

FOSTER, NASH, AND CO., 37 Graveney Road, London, S.W.—Another swindler practising precisely the same trick as J. L. Auckland.

The following are proprietors of illegal racing lotteries whose operations have been noticed in *Truth*:—

DORMICE AND CO., Middelburg, Holland.—The alias of D. Mackenzie, proprietor of *Sporting Luck*. Runs racing sweepstakes in connection with which grave doubts have

arisen as to the genuineness of the alleged distribution of the principal prizes.

J. H. ADAMS, Middelburg.—In the same line of business as Dormice and Co.

VII BETTING STATISTICS^[16]

Monday, October 3, 1904—Nottingham.

Race.	Predicted Winner.	Won or Lost.	Gain.	Loss.
Castle Selling Plate	Cricket	Won	£2 10 0	..
Bestwood Nursery Plate	Lador	Lost	..	£1 0 0
Lenton Firs Plate	Bicarbonate	Non-Starter	..	..
Trent Plate	Matchboard	Lost	..	1 0 0
Nottingham Handicap	Whistling Crow	Non-Starter	..	..
Rufford Abbey Plate	Queen of the Lassies	Lost	..	1 0 0
			£2 10 0	£3 0 0

Tuesday, October 4, 1904—Nottingham.

Barnby Manor Nursery H'cap	Bright Eyes	Lost	..	£1 0 0
Welbeck Plate	Best Light	Lost	..	1 0 0
Sherwood Forest Nursery Pl'te	Golden Measure	Lost	..	1 0 0
Colwick Park Plate	Ariosto	Lost	..	1 0 0
Elvaston Castle Plate	Corunna	Lost	..	1 0 0
Bentinck Plate	Haresfield	Non-Starter	..	..
				£5 0 0

Wednesday, October 5, 1904—Leicester.

Maiden T.Y.O. Plate	Jongleuse	Non-Starter	..	..
Gopsall Plate	Topiary	Non-Starter	..	..
Midland Nursery Handicap	Vita	Non-Starter	..	..
Randcliffe Plate	Ice Bird	Lost	..	£1 0 0
Camp Handicap	Cleeve	Lost	..	1 0 0
Melton Plate	Bilbao	Non-Starter	..	..
				£2 0 0

Thursday, October 6, 1904—Leicester.

Bradford Handicap	Van Voght	Non-Starter	..	..
Kegworth Handicap	Accroc	Non-Starter	..	..
Welbeck Plate	More Trouble	Lost	..	£1 0 0
October Handicap	Boycot	Non-Starter	..	..
Village Nursery Handicap	Pelf Colt	Lost	..	1 0 0
Apprentices Plate	Merry Andrew	Lost	..	1 0 0
				£3 0 0

Friday, October 7, 1904—Kempton Park.

Wick Plate	Thunderbolt	Won	£0 5 8½	..
Half-Moon Nursery Handicap	Nancelee	Lost	..	£1 0 0
Imperial Plate	Signorino	Lost	..	1 0 0
Park Selling Plate	Ogbourne Pet	Lost	..	1 0 0
Coventry Handicap	St. Emilion	Non-Starter	..	..
Richmond Handicap	Niphetos	Lost	..	1 0 0
			£0 5 8½	£4 0 0

Saturday, October 8, 1904—Kempton Park.

Stanley Plate	Percussion	Won	£2 0 0	..
Brentford Plate	Gascony	Lost	..	£1 0 0
Duke of York Stakes	General Cronje	Lost	..	1 0 0
Vauxhall Plate	Cricket	Won	4 0 0	..

Kempton Park Nursery H'cap	Reggio	Lost	..	1 0 0
Rivermead Handicap	Golden Saint	Non-Starter	..	..
			£6 0 0	£3 0 0

TOTALS—OCTOBER 3 TO OCTOBER 8, 1904.

	Gain.	Loss.
Monday	£2 10 0	£3 0 0
Tuesday		5 0 0
Wednesday		2 0 0
Thursday		3 0 0
Friday	0 5 8½	4 0 0
Saturday	6 0 0	3 0 0
	£8 15 8½	£20 0 0

Loss	£20 0 0
Gain	8 15 8½
Total Loss	<u>£11 4 3½</u>

Note.—In the above sporting tips twelve horses were *non-starters*. Had the bets been one shilling each instead of one pound, the loss would have been 11s., a sum obviously beyond the resources of a working man.

These results were given in the *Daily News*, and cover the flat-racing season from March 23 to November 28, 1903:—

Paper.	Lost.	Won.	Total Winning Odds.	£1 Fixed Stake.
Daily Express	670	299	678·93	Won £8
Jockey	696	243	687·86	Lost 9
Racehorse	566	240	555·52	" 11
Chilton's Guide	357	132	341·16	" 16
Morning Leader	690	309	667·93	" 22
Gale's	639	231	501·85	" 37
Sportsman	738	285	679·02	" 59

Daily Mail	642	278	574·19	”	68
Racing World	696	275	626·19	”	70
Standard	872	313	781·22	”	91
Star	750	317	635·36	”	114
Sporting Chronicle	785	299	669·68	”	115
Diamond Special	482	169	365·83	”	116
Daily Sport	895	293	768·20	”	127
Advertiser	724	259	589·36	”	135
Sporting World	886	303	747·44	”	139
Sporting Life	1327	411	1179·25	”	147
Telegraph	928	345	724·67	”	203

The following are taken from a day's selections—January 7, 1905—and show how the tips for hurdle-racing are even more unreliable than those for flat-racing:—

GATWICK MEETING (Six Races).

London Star (Capt. Coe's Specials)	6 selections —all wrong.
Middleham Opinion (Mentor)	3 selections (one “best thing”) —all wrong.
The Jockey	5 selections (one “special”) —all wrong.
Racehorse (Admiral)	1 selection (“one horse nap”) —wrong.
Early Bird's Finals	6 selections (one “good,” one “selected”) —all wrong.
Sun Dawn's Finals	6 selections (one “good”) —1 right (<i>not</i> the “good”).
Form's Finals	6 selections —2 right.

Presto's Double	Double selection for two races —wrong.
Sunday Chronicle. (Galliard)	4 selections —all wrong.
Sunrise's Finals	6 selections —all wrong.
Victor's Finals	6 selections (one "nap," one "good") —1 right (neither "nap" nor "good").
Yorkshire Herald (Yorkshireman)	6 selections (one "starred") —all wrong.
Yorkshire Press (Ivanhoe)	6 selections (one "special") —2 right (<i>not</i> the "special").
Result	{ 6 right. { 57 wrong.

There are many examples of the inaccuracy of sporting tips in the evidence of the Select Committee on Betting. The best are given below:—

REV. J. W. HORSLEY'S EVIDENCE

- (a) Manchester: out of 40 selected winners, not a single one was right.
- (b) Seven sporting papers gave 79 horses: in 74 cases their predictions were wrong.
- (c) Case of the *Standard*, which selected 179 horses for 148 races: 155 were wrong, and 24 right.
- (d) In 7 races the chief sporting papers gave in one week 45 horses, of which 40 were wrong; again, they gave 47 horses, of which only 1 was right.
- (e) In one month the chief sporting papers gave 898 horses for 156 races, out of which 777 lost.—*Vide* p. 183 of

Report.

THE DUKE OF PORTLAND AND TIPSTERS

The Duke of Portland sent £7: 14s. to thirteen sporting prophets. Four of these sent him 35 losers and 1 winner.—
Vide p. 186 of Report.

VIII
BIBLIOGRAPHY

Anti-gambling Crusaders, A Hint to the Clergy, and. W. H. Norris.

Anti-gambling League, Bulletin of the National. England.

Backing, Certain Systems of. Sefton.

Backing Horses, A Practicable System of. Brandon.

Betting. G. Poste.

Betting Club, Doncaster. W. Sheardown.

Betting, The Law relating to. G. H. Stutfield.

Betting and Gaming Houses, The Law affecting. L. Duckworth.

Betting, A Talk with Young Men on. A. Rowland.

Betting, Systematic. Its Use and Abuse. H.

Betting, New System of. Metallic.

Betting and Gambling. Student.

Betting and Gambling. J. M. Hogge.

Betting and Gambling. S. Churchill.

Betting, Gambling, and the Bible. A. T. Barnett.

Betting, Handbook of. Mathematician.

Betting, Tattersall's Rules on. G. H. Stutfield.

Blot on the Queen's Reign. J. Hawke.

Calculator, Jonathan's.

Card-Sharpping Exposed. J. E. Robert-Houdin.

Card-Trick Exposed, The Three.

Chance and Luck. R. A. Proctor.

Devil's Picture Books. Van Rensselaer.

Form, The New Book of. E. Chilton.

Gambling, History of, in England. J. Ashton.

Gambling World, Anecdotes, Memories, and Stories. "Rouge et Noir."

Gambling and Betting. H. H. Chamberlain.

Gambling Sinful? Is. H. J. Tebbutt.

Gambling. E. C. Chorley.

Gambling, Is it Wrong? J. M. Lambert.

Gambling, A Talk on. A. Rowland.

Gambling. W. J. S. Smith.

Gambling, Ethics of. W. D. Mackenzie.

Gambling, The Law of. W. Coleridge and C. V. Hawksforth.

Gambling Communities. A. Hepner.

Gambling Games of the Chinese in America. S. Culin.

Games of Chance Unlawful. W. Symington.

Game, The Great. A Treatise on the Turf. E. Spence.

Gaming-Tables, Monaco and its.

Horses to Follow. On the Alert: or Best. J. A. Peddie.

Horse Racing in England. R. Black.

Horse Sense: or How to Select the Winners. F. Morgan.

Horses, Best to Back. J. A. Peddie.

Monte Carlo and Public Opinion.

Monte Carlo, A Voice from the English Church at. W. Wight.

Monte Carlo, Facts about. By a Group of Shareholders.

Races, Way to Win Money on.

Racing Skill Competitions, Grosvenor Manual for Systematically Working.
T. J. Evanson.

Racing for Riches, or Money-making on the Turf. H. Bissell.

Racing for Gold. J. Peddie.

Racing Explained, Flat. Analyst.

Racing and the Winners, Horse. "Long Odds."

Racing Tipsters, Modern. Facts, Criticisms, and Exposures. H. Bissell.

Racing. Cost of the Sport. F. G. Aflalo.

Racing Vade-mecum. Systems to Govern Turf Investments. Sphinx.

Revelations! Revelations! How the Public are Gulled by Tipsters.

Speculation and Gambling. J. W. Diggle.

Sporting Library, "The Druid." H. H. Dixon.

Turf. New System. Chilton.

Turf. The Secure System of Operations.

Turf Ready Reckoner. Morden.

Turf, Secret of Making Money on the.

Turf. Guide to Investment J. D. Gerrard.

Turf, Analogy between Stock Exchange and. M. H.

Turf Lexicon. Silberer.

Turf, Mirror of the. L. H. Curzon.

Turf Facts and Wrinkles. Petrarch.

Turf, Success on the. Scrutineer.
Turf, How to Win on the. R. G. Bradley.
Turf, The. A. E. T. Watson.
Winning Post, The Way to. A. Gate.

PERIODICAL LITERATURE

1891

Gambling. W. B. Curtis. Fortnightly Review.
Gambling. Rev. H. Price Hughes. Sunday Magazine.
Gambling. H. Woodcock. Primitive Methodist Quarterly Review.
Gambling, a Symposium. Young Man.
A Glance at the History of Gambling. E. Bowen-Rowlands. Westminster Review.
Curiosities of Gaming. Cornhill.
The Gambler. An Apology. Paternoster Review.
The Ethics of Gambling. W. Douglas Mackenzie. Contemporary Review.
Systems of Gambling. Sir J. F. Stephen. Nineteenth Century.
Gambling in High Life. Gen. A. Badeau. Cosmopolitan.
A Night at Monte Carlo. Rev. W. J. Dawson. Young Man.
Gambling Sharps and their Tools. C. Bissell. Cosmopolitan.
Card-Sharping in Paris. Edw. Delille. Fortnightly Review.
The Prince of Wales and the Baccarat Case. Review of Reviews.

1892

The Ethics of Gambling. J. Oliphant. Westminster Review.
Why is Gambling Wrong? Venerable Archdeacon Sinclair. Young Man.

A Crusade against Betting and Gambling. Help.
Lotteries. E. E. Hales. Cosmopolitan.
Lotteries and Gambling. A. Comstock. North American Review.
Suppression of Lotteries by Taxation. H. White. Fortnightly Review.
Why is Pool Gambling Allowed? A. Comstock. Belford's Monthly and
Democratic Review.
Monte Carlo (One Hell the Less). Modern Review.
Gambling and Cheating in Ancient Rome. R. Lanciani. North American
Review.

1893

Gambling in its Relation to the Public Welfare. Rev. J. W. Riddle. American
Journal of Politics.
Pool-rooms and Pool-selling. North American Review.
Monte Carlo. H. C. Farnham. Cosmopolitan.
The Watchdogs of Our Lady Roulette. C. Whyte-Hall. Modern Review.
Our Sporting Zadkiels. Rev. J. W. Horsley. Westminster Review.

1894

About Gambling Systems. Chambers' Journal.
Science and Monte Carlo. Prof. Karl Pearson. Fortnightly Review.
Principles and Progress of the Anti-Gambling League. J. Hawke. New
Review.
Women and Gambling. Mrs. Aubrey Richardson. Help.
The Betting Craze. George Mortimer. Fortnightly Review.
Introduction to the Discussion on the Blacking Out of Sporting News in the
Free Libraries. R. K. Dent. Librarian.
Chinese Gambling. H. R. Cutter. Californian Illustrated Magazine.

Tendencies of the Turf. C. H. Crandall. North American Review.

1895

Betting and Gambling. W. J. K. Westminster Review.

What is Gambling? John Bigelow. Harper's Magazine.

A Danger of Modern England. Rev. H. Price Hughes. Great Thoughts.

Gambling. Dr. H. A. Stimson. Homiletic Review.

Behind the Scenes at Monte Carlo. John J. Waller. Pall Mall Magazine.

A Vision at Monte Carlo. C. E. Tyrer. Manchester Quarterly.

Suppression of Lottery and other Gambling in America. Dr. Newman Smyth. Fortnightly Review.

Gambling and Speculation in America. Symposium. Arena.

Rain Gambling in Calcutta. Chambers' Journal.

1896

Betting. Norwood. Badminton.

Betting and Gambling Men. Chambers' Journal.

The Gambling Curse, and how to Destroy It. Symposium. Temple Magazine.

Monte Carlo, the Great Gambling Palace. Sir George Newnes. Strand Magazine.

Gambling in America. J. Brand. Pearson's Magazine

1897

Ethics of Gambling. Rev. and Hon. E. Lyttelton. Economic Review.

Reply to "Ethics of Gambling." Independent Review.

Why are Betting and Gambling Wrong? Rev. Arthur T. Barnett. Economic Review.

On Betting. Prof. Marcus Dods. Good Words.

Gambling at Monte Carlo. Lady's Realm.

The Latter-day Wager. Badminton Magazine.

1899

Gambling as it Was and Is. Lawrence Irwell. New Century Review.

Lotteries, Luck, and Chance. J. Holt Schooling. Pall Mall Magazine.

Betting Symposium. Leisure Hour.

The Gambling Question. A Puritan Crusade. F. A. Mackenzie. Puritan.

Ocean Gambling. Chambers' Journal.

Paying an Election Bet. Strand Magazine.

Ethics of Horse Racing. Lieut.-Col. R. F. Meysey-Thompson. National Review.

1900

Lotteries, Luck, and Chance. J. Holt Schooling. Pall Mall Magazine.

Speculation and Gambling. Archdeacon Diggle. Help.

Gambling and Aids to Gambling. C. E. Russell and E. T. Champagne. Economic Review.

1901

Investment, Trade, and Gambling. Monthly Review.

The Gambling Habits of Society Women. Woman at Home.

Gambling on Board Ship. Nautical Magazine.

The Gambling Hells of Paris. Crampton's Magazine.

Licensed Gambling in Belgium. Geo. F. Babbitt. Fortnightly Review.

The Great Lottery Campaign in Louisiana. Reed Carradine. Munsey's Magazine.

1902

A Terrible Danger. F. M. Holmes. Quiver.

Evils of Betting. Rev. J. W. Horsley. Sunday Strand.

Betting Evil. John Hawke. Great Thoughts.

The Gambling Impulse. C. J. France. American Journal of Psychology.

Money Lost by Gambling. W. Greenwood. Sunday Strand.

The Results of Play at Monte Carlo. Rev. R. P. Downes. Great Thoughts.

The Wheel of Fortune, and how French State Lotteries are Worked. E. Charles. Wide Wide World Magazine.

The Gospel on the Race course. A. Wallace Myers. Quiver.

1903

River Gamblers of Old Steamboat Days. George Ogden. Everybody's Magazine.

The Totalisator in New Zealand. Sir Robert Stout. Australian Review of Reviews.

Can a Modern Man of Business be a Saint? F. Ballard. Young Man.

Race-course Swindles. W. J. Wintle. Harmsworth's Magazine.

Betting and Gambling. W. R. Sorley. International Journal of Ethics.

The Maelstrom of the Betting Ring. J. F. Marsten. Munsey's Magazine.

The Tipster and the Trade. Lieut.-Col. D. C. Peddie. Monthly Review.

1904.

Starters and Starting. A Starter. Badminton.

Behind the Scenes at Monte Carlo. C. N. and A. M. Williamson. Pearson's Magazine.

Racegoers and Racegoing. A Racegoer. Badminton.

Tipsters and Tipping. A Tipster. Badminton.

Gambling in Futures, Options, and Warrants. Wm. Field. Magazine of
Commerce.

Is Bridge Immoral? Lady's Realm.

FOOTNOTES

[1] W. D. Mackenzie, *The Ethics of Gambling*, p. 64.

[2] The gambling habits of the rich who do not know how to “fill in their time” also arise from *ennui*, but in this paper I do not discuss the problem which they present. It is: How can we compel them to find occupations of social value?

[3] Cf. *Nineteenth Century*, January 1903, art. “Is Society worse than it was?”

[4] Recent London balls in aid of hospital funds, for instance, where the sufferings of the poor were sought to be alleviated by orgies of the rich.

[5] *Early History of Charles James Fox*, pp. 100-1.

[6] Cf. Martineau’s *History of England*, 1800-1815, p. 196 (Bohn’s edition).

[7] *Mental and Moral Science*, p. 229.

[8] A somewhat dangerous extension of the powers of an intelligence-carrying agency, and one which should not be made if it can be avoided.

[9] Cf. Krapotkine’s *Factories, Fields, and Workshops*; and H. Rider Haggard’s *Rural England*.

[10] Cf. Rowntree and Sherwell’s *The Temperance Problem and Social Reform*, especially pp. 560-587.

[11] *Vide* Appendix.

[12] London: S.P.C.K., Northumberland Avenue, W.C.

[13] The writer is aware that to provide adequate counter-attractions would entail a very heavy expenditure. It has been estimated that, to provide adequate counter-attractions to public-houses would require annually £1000 for every 10,000 of the population, a sum which cannot be raised by private subscription. A scheme of Constructive Temperance Reform has been before the country for some time, under which the public-house trade would be taken out of private hands, and the profits given to the National Exchequer to be used for certain specified purposes. The first charge throughout the country would, however, be the provision of adequate counter-attractions to the public-house. In so far as the profits of the public-house trade are probably not less than £20,000,000 per annum, and since, upon the estimate given above, £4,000,000 would furnish the sum required for counter-attractions, it will be seen that under this scheme there would be no difficulty as to funds.

[14] 1900.

[15] See conviction for Betting Coupon Competitions (E. Hulton and Co., Ltd.) in Manchester, November 1901.

[16] The paper selected to show the value of sporting tips is the *Morning Advertiser*, an organ of the liquor trade which devotes much attention to sport.

INDEX

- Advertising Act (1874), [211](#)
- Albert Club, case against, [143](#)
- Allen (Russell), *Manchester Evening News*, evidence before Lords' Commission, [208](#)
- Allotments, a counter-attraction to public-houses, [184](#)
- Alverstone (Lord Chief-Justice), on betting and gambling, [215](#)
- Anti-gambling League, National, recommendations made by, [205](#)
- Anti-social desires, gambling induces, [13](#)
- Art Unions, [139](#)
- Ascot Heath, betting shed, [21](#)
- Athletic grounds, betting at, [197](#)
- Australian licensed bookmakers, [193](#)
- Automatic machines, gambling by, [137](#)
- Averages, law of, [103](#)
-
- Bain (J.), evidence before the Lords' Commission, [210](#)
- Bank Act, 1867, restrains speculation in bank shares, [147](#)
 proposed extension of restriction to all stocks and shares, [159](#)
- Bank of England and National Debt, [46](#)
- Bankruptcy, betting a cause of, [90](#)
- Bath, Recorder of (Mr. H. C. Folkard), on effects of gambling, [216](#)
- Battenberg, Prince Louis of, on effects of gambling, [216](#)
- Bazaar raffles illegal, but not subjected to prosecution, [139](#)

Beaconsfield (Lord), on the turf, [168](#)

Bell, M.P. (Richard), on gambling, [217](#)

Bennett (Curtis), on street betting, [214](#)

Beresford (Lord Charles), on gambling, [38](#), [215](#)

Beston, exposed by *Truth*, [225](#)

Betting-house Act (1853), [24](#), [199](#)

- amendments suggested by Lords' Commission, [196](#)
- amendments proposed to, [156](#)
- coupon gambling outside the meaning of the Act, [140](#)
- effect of, [191](#)
- new decision *re*, [140](#)

Betting-houses abroad evade the Act, [142](#)

Betting Act (1874), [199](#), [202](#)

- Lords' suggested amendments to, [196](#)

Betting and Loans (Infants') Act (1892), [197](#)

- Lords' suggested amendments to, [201](#)

Betting at athletic grounds, [197](#)

Betting, legislation against, [148](#)

- proposed Bill, [156](#)

Betting statistics, [232](#)

Bill, proposed street betting, [156](#)

Bill, to make bets in public-houses illegal, [157](#)

Birmingham, Official Receiver, on street betting, [214](#)

Bookmakers, appeal against bye-laws, [205](#)

- army of, [28](#)
- street, [195](#)

suppression of, would extinguish betting, [204](#)
turnover of, [28](#)
Bradford School Board, resolution on betting, [214](#)
Bridge-playing, [40](#)
Brighton, scene on the race-course, [32](#)
Bros (Mr.), London Stipendiary Magistrate, embezzlement caused by gambling, [214](#)
Bucknill (Justice), on betting and gambling, [217](#)
“Bulling and Bearing” on the Stock Exchange, [59](#)
Butcher, M.P. (J. G.), on gambling, [216](#)
Bye-laws against betting, Municipal and County, [154](#)

Campbell-Bannerman (Sir Henry), on gambling, [218](#)
Card-playing, [136](#)
Cards, gambling with, [40](#)
Cash-betting stopped, [25](#)
Certainties, betting on, [2](#)
Chances all for the bank, [3](#)
Chester Cup Race (1852), [25](#)
Children betting, [203](#)
Chisholm (Lord Provost of Glasgow), evidence before the Lords’ Commission, [209](#)
Citizenship, gambling and, [116](#)
Civil Service, gambling in, [37](#)
Clubs, gambling, [143](#), [163](#)
Commons, House of, Select Committee on Betting and Gambling (1844), [23](#)

Coroner for Mid-Surrey and backing horses, [214](#)
Cost of Stock Exchange dealing, [66](#)
Cottage, a week's betting transactions in a working man's, [80](#)
Counter-attractions from gambling, [183](#)
County authorities, bye-laws of, [154](#)
Coupon-gambling, [140](#), [162](#)
Crime and gambling (Canon Horsley), [85](#)
Criminal Procedure (Scotland) Act (1887), [202](#)
Croydon Bench, chairman of, *re* gambling, [215](#)

Daily Mail, racing tips, [106](#)
Daily News, week's betting results, [180](#)
Daily settlement of bets, [23](#)
Darling (Mr. Justice), *re* betting, [213](#)
Davey's Street Betting Bill 1903, Lord, [199](#)
Davis v. Stoddart, deposit of money for betting illegal, [153](#)
Dealings before allotment forbidden [56](#)
Devonshire, Duke of, *re* betting, [166](#)
 Evidence before the Lords' Commission, [211](#)
Doncaster Grand Stand, [21](#)
Downes v. Johnson, Gambling Club Case, [143](#)
Durham Lord, on tipsters, [222](#)

Education, more adequate, to counteract gambling tendency, [185](#)
Embezzlement due to betting, [30](#), [88](#)
Epsom, [22](#)

Field, The, strictures on racing, [32](#)

Fielding v. Turner, decision *re* gambling by machines, [138](#)

Fines for betting, recommendation by Lords' Commission, [195](#)

“Fish-ponds” illegal lotteries, [139](#)

Flat-racing and tipsters, [225](#)

Fludyer, Colonel, evidence of, [206](#)

Fox's gambling habits, [125](#)

France, Government of, and press gambling, [143](#)

Gambling—

definition, [1](#)

by automatic machines, [137](#)

clubs, [143](#), [163](#)

clubs and the Licensing Act (1903), [144](#)

coupon, [140](#), [162](#)

organised Sunday, [147](#)

pure and mixed, [1](#)

repression of, [170](#)

Gaming, industrial, [159](#)

machines, [137](#), [160](#)

Giffen, Sir Robert, estimate of bookmaker's profits, [31](#)

Gissing, George, description of Turf ruffianism, [34](#)

Glasgow, betting in workshops, [29](#)

Chief Constable's evidence before the Lords' Commission, [209](#)

Lord Provost's evidence before the Lords' Commission, [209](#)

Globe and Liberation Companies, [18](#)

Goodwood, [22](#)

Gould, J.P. (Chas.), Epsom, evidence before the Lords' Commission, [208](#)

Grantham, Mr., Justice, on gambling, [213](#)

Halsbury, Lord Chancellor, *Powell v. Kempton Park*, [150](#)

Harrow, Master of, evidence before the Lords' Commission, [207](#)

Hawke, John, evidence before the Lords' Commission, [203](#)

on gambling, [218](#)

Hawkins, Mr. Justice, on betting, [213](#)

decision in *Hawke v. Dunn*, [149](#)

Hawkins, Mr. Justice, decision in *Jenks v. Turpin*, [164](#)

Hereford, Bishop of, betting among women, [71](#)

Herschell's Act, Lord, [197](#)

Hodgman, George, *Sixty years on the Turf*, [35](#)

Holland, Admiral Swinton, gambling at sports, [216](#)

Hope, Adrian, and the anti-gambling league, [161](#)

Horsley, Rev. J. W., evidence before the Lords' Commission, [212](#)

on tipsters, [234](#)

House-to-house betting, [72](#)

Hulton, junr., Edward, evidence before the Lords' Committee, [210](#)

Hunter, Sir Robert, evidence before the Lords' Commission, [211](#)

Illegal games, [136](#), [159](#)

Immorality of gambling, [9](#)

Increase of betting, present, [26](#)

Industrial gaming unconnected with trade, [159](#)

“Jail, Jottings from,” [84](#)

Japan, gamblers ostracised, [43](#)

Jenks v. Turpin, [164](#)

Jockey Club and betting, [115](#)

cash betting, [26](#)

and tipsters, [223](#)

Powell v. Kempton Park, [157](#)

Joint Stock Company Law Amendment, is ineffective, [64](#)

Kingsley, Charles, letter to young men on betting and gambling, [179](#)

Knight, J.P. (Robert), evidence before the Lords’ Commission, [211](#)

women betting, [72](#)

Lamb, Charles, [11](#)

Lamb, Mr., Second Secretary Post Office, evidence before the Lords’ Commission, [210](#)

Lambeth, workshop betting in, [29](#)

Law of gambling, [135](#)

Law relating to betting, [135](#)

Law, suggested amendments in betting, [155](#)

Leeman’s Act (1866) stops speculation in bank shares, [62](#)

Lefroy, Dean, on Bridge, [80](#)

Legislation as to gambling, existing, [135](#)

Lennox v. Stoddart, deposit of money for betting illegal, [153](#)

Liberator and Globe Companies, [18](#)

Licence for bookmakers, [111](#)

Licensed bookmakers in Australia, [193](#), [194](#)

Licensing Act (1903), [144](#)
and gambling, [204](#)

Limited Liability Act (1862) increases stock gambling, [50](#)

Liverpool, Bishop of (Dr. Chavasse), on betting, [215](#)

London, Common Serjeant of, on betting, [217](#)

Lords, House of, Report of Committee (1844), [27](#)
Select Committee of (1901-2), Report, [28](#), [38](#)
summary of, [203](#)
betting among artisans, [155](#)
press and betting, [166](#)
recommendations of, [191](#)
women gamblers, [69](#)

Loria and elections, [127](#)

Lotteries abolished, public, [138](#)
and sweepstakes, [138](#), [161](#)
newspaper, protected by 8 & 9 Vict. c. 74; [140](#)
put down by Parliament, [63](#)

Lowther, M.P., James; evidence before the Lords' Commission, [209](#)

Luck in gambling, [8](#)

Luton Town Councillors and betting, [215](#)

Machines, gaming, [137](#)

Maclaren, Ian, on Bridge, [81](#)

Magistrates, a Chairman of, on embezzlement and betting, [214](#)

Manchester, Chief Constable, evidence before the Lords' Commission, [206](#)

Marginal groups, gambling prevails among people classed in, [118](#)

Miscellaneous gambling, [23](#)

Monte Carlo tables average daily profit, £500, [181](#)

Moseley Commission, [155](#)

Municipal bye-laws against betting, [154](#)

National Debt, stockbroking begins with, [46](#)

Newmarket betting-posts, [22](#)

Newspaper lotteries protected by 8 and 9 Vict. c. 74; [140](#)

Newspapers encourage small betting, [113](#)

Odds against the backer, [104](#)

One pound shares and Stock Exchange gambling, [51](#)

“Options,” [56](#)

“Pari Mutuel,” [193](#), [194](#)

Pauperism, betting next to intemperance a cause of, [91](#)

Pedestrianism, a note on, [219](#)

Petit Parisien, competition forbidden in, [142](#)

Philip of Macedon and gambling, [124](#)

Play a factor in life, [11](#)

Police abet gambling in clubs, [145](#)

Portland, Duke of, about tipsters, [135](#)

Postmaster-General, powers *re* betting circulars, [197](#)

Post Office, monetary interest in betting of the, [31](#)

powers over lottery matter, [141](#)
proposed increase of powers, [161](#)
Powell v. Kempton Park, [149](#), [154](#)
Press competitions and coupon gambling, [140](#), [142](#), [143](#), [162](#)
gives facilities for betting, [191](#)
Prisons and Provinces, [84](#)
Produce Exchange gambling, [41](#)
Prohibitive Acts insufficient to prevent gambling, [130](#)
Property, right of, [4](#)
Public excluded from betting circles, the general, [22](#)
Public-houses, proposed Bill to make betting in, illegal, [157](#)
Public opinion, the necessity for creating a sound, [174](#)
Pure gambling, [16](#)

Race-horses, poisoning of, [210](#)
Raffles, Government inaction in the matter of, [176](#)
really illegal, [139](#)
Rawson, Admiral, on gambling, [38](#), [216](#)
Remedy, bookmaker's suggestions for a remedy, [110](#)
Renals, Alderman Sir J., on street betting, [215](#)
Repression of gambling, [170](#)
Richmond, the Duke of, on cash betting, [26](#)
Ridley, Mr. Justice, on betting, [217](#)
Roulette, [137](#)
Russell, Chief-Justice, on street betting, [213](#)
Rutzen, Sir Alfred de, evidence before the Lords' Commission, [90](#), [206](#)

Salford, embezzlements in, [20](#)

Schools and betting, [214](#), [215](#)

Scotland Yard, conviction of three inspectors of, [85](#)

Secret gambling in modern commerce, [19](#)

Shannon, Superintendent Metropolitan Police, evidence before the Lords' Commission, [208](#)

Sharp, Luke, on women betting, [71](#)

evidence before the Lords' Commission, [207](#)

Signalmen as bookmakers, [36](#)

Sixty Years on the Turf, by George Hodgman, [35](#)

"Small man" in stock and share gambling, [52](#)

Smith, Horace, evidence before the Lords' Commission, [207](#)

embezzlement caused by betting, [213](#)

Social disease, gambling a, [119](#)

Souch, Charles, gambling at athletic clubs, [219](#)

Southampton, Church Congress on betting, [214](#)

Sport, betting in connection with, [39](#)

Sportsman prosecuted, [141](#), [156](#)

Sportsman, The Deluded, by a Bookmaker, [92](#)

Spruce, F. W., evidence before the Lords' Commission, [207](#)

Starting-price bookmaker, [112](#)

Starting-price odds, [166](#), [192](#), [204](#)

Stephen, Sir Fitzjames, on betting agents, [205](#)

Stephenson, Sir W. H., gambling among boys, [147](#)

Stock Exchange gambling, [41](#), [45](#), [147](#), [158](#)

Stoddart v. Sagar, Decision *re* coupon gambling, [140](#)

Street betting, [203](#)

Street betting, “a respectable trade,” [208](#)

Street Betting Bill (Lord Davey’s), [199](#)

Street bookmakers, [195](#)

“Street” defined as in Public Health Act (1875), [201](#)

Stutfield, G. H., evidence before the Lords’ Commission, [203](#)

Suicide resulting from gambling, [86](#)

Supports of gambling, real, [12](#)

Sutters, James, evidence before the Lords’ Commission, [207](#)

Sutton, Alderman (Newcastle), on betting, [214](#)

Sweepstakes, [138](#), [161](#)

“Systems” in gambling, [8](#), [224](#)

Tattersall’s Subscription Rooms established, [21](#)

Thomas, Bryan, evidence before the Lords’ Commission, [209](#)

Tipsters’ advertisements, suppression of, [114](#), [222](#)

and the Jockey Club, [223](#)

“Totalisator,” its introduction suggested, [193](#), [194](#)

Trevelyan, Lady, on Bridge, [41](#)

Trevelyan, Sir George, gambling as it affects politics, [125](#)

Truth on turf tipsters, betting agents, and system-mongers, [224](#)

“Vendors’ shares,” their part in share gambling, [58](#)

Village betting, [31](#)

Wages to working men, better; a counter influence to gambling, [185](#)

Walker, Colonel Tannett evidence before the Lords’ Commission, [210](#)

Watts, G. F., on betting and gambling, [218](#)

Wavell, General, on gambling, [38](#), [214](#)

Wells, Superintendent of Limehouse Division, evidence before the
Lords' Commission, [208](#)

White, Sir George, on gambling, [38](#), [218](#)

Wills, Mr. Justice, on illegitimate speculation, [213](#)

Women bookmakers, [70](#), [218](#)

Women, gambling among, [69](#), [203](#)
worse gamblers than men, [73](#)

Woodgate, W. B., evidence before the Lords' Commission, [210](#)

Workshops, betting in Glasgow, [29](#)

York, Archbishop of, on gambling, [217](#)

*** END OF THE PROJECT GUTENBERG EBOOK BETTING &
GAMBLING: A NATIONAL EVIL ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in

the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE

LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability,

costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other

ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.